

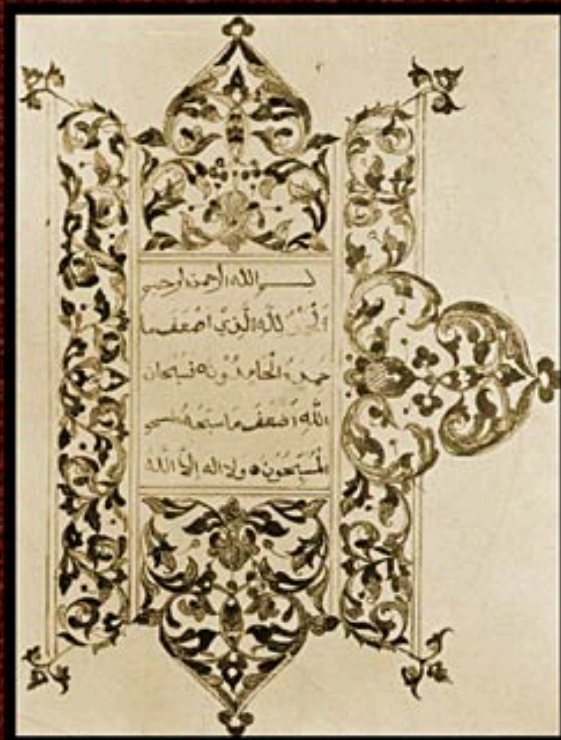
STUDIES IN
MORO HISTORY
LAW AND RELIGION



NAJEEB M. SALEEBY

1905

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MORO HISTORY
LAW AND RELIGION



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THE PROJECT GUTENBERG EBOOK OF STUDIES IN MORO HISTORY, LAW, AND RELIGION

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MORO HISTORY, LAW, AND RELIGION *****

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Ethnological Survey Publications

Volume IV, Part I

**Studies in Moro History, Law,
and Religion**

By
Najeeb M. Saleeby

Manila
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1905

Studies in Moro History, Law, and Religion

LETTER OF TRANSMITTAL

DEPARTMENT OF THE INTERIOR,
THE ETHNOLOGICAL SURVEY,
Manila, December 21, 1904.

SIR: I have the honor to transmit a series of papers on Moro history, law, and religion consisting of original studies and translations from Moro texts made by Dr. Najeeb M. Saleeby. I recommend that these papers be published as Part I of Volume IV of the scientific studies edited by the Survey.

Very respectfully,

MERTON L. MILLER,
Acting Chief of The Ethnological Survey.

Hon. DEAN C. WORCESTER,
Secretary of the Interior, Manila, P. I.

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CHAPTER I

HISTORY OF MAGINDANAO

Magindanao History and Genealogies

Introduction

The history of Mindanao prior to the advent of Islam is traditional and mythological, and no effort has been made to put it on record. With Islam came knowledge, art, and civilization. A new system of government was instituted and its records were registered. *Tarsila*¹ were written and the noble lineage of the datus was carefully kept. Each sultanate or dataship kept a separate genealogy. These genealogies, called *tarsila* or *salsila*, were very limited in their scope and brief in their narration of events. They are our only source of written information on the early history of the Moros, and are valuable on that account. Previously the Moros withheld these *tarsila* and kept them away from all foreigners and non-Mohammedans; but their attitude has changed lately, and several different *salsila* were secured from the chief datus of the Rio Grande Valley.

The original manuscripts could not be bought, but exact and true copies of the same have been secured and translated and their translations are herein published for the first time.

The Transliteration

These *tarsila* are written in the Magindanao dialect with Arabic characters, and a great part of their text is Magindanao names which have never yet been expressed by means of Romanic characters. In translating these *tarsila* such a large number of words have to be transliterated that it is deemed necessary to adopt a system of transliteration which can be easily understood by every English reader and which is more adequate to express Magindanao sounds than either Spanish or English. Such a system is herein adopted and is briefly described as follows:

With the exception of *ng* and *sh*, the characters used in this system are simple and represent simple sounds only. Every radical modification of a certain simple sound is regarded as a different simple sound and is represented by a separate and distinct character. Every compound sound is represented by those characters that express its simple constituent sounds. It is an unvarying rule in this system that every character represents an invariable sound and every sound has only one invariable character. The Magindanao dialect has only twenty-seven simple sounds and can be expressed by twenty-seven simple characters. These characters are the following:

a, ā, i, ī, u, ū, ũ, b, d, g, ng, h, j, k l, m, n, ñ, p, q, r, s, sh, t, w, y, z

The sounds which these characters represent conform very closely to the original Roman sounds of the letters.

- | | |
|----------|--|
| <i>a</i> | is the short sound of <i>ā</i> ; it is pronounced midway between the <i>a</i> in <i>bad</i> and the <i>e</i> in <i>bed</i> |
| <i>ā</i> | is pronounced as the <i>a</i> in <i>far, father</i> |
| <i>i</i> | is pronounced as the <i>i</i> in <i>fin, ill</i> |
| <i>ī</i> | is pronounced as the <i>i</i> in <i>machine, police</i> |

<i>u</i>	is pronounced as the <i>u</i> in <i>put, push</i>
<i>ū</i>	is pronounced as the <i>u</i> in <i>rude, flute</i>
<i>ũ</i>	is a midvowel, pronounced with the tongue slightly moved from its normal position; it is intermediate between <i>u</i> and <i>e</i> , and is somewhat related to the <i>u</i> in <i>hurt</i>
<i>b, d, k, l,</i>	are pronounced as in English
<i>m, n, p, r,</i>	
<i>s, t</i>	
<i>g</i>	is always hard, as the <i>g</i> in <i>gold, get</i>
<i>ng</i>	has a guttural-nasal sound like the <i>ng</i> in <i>ring</i>
<i>h</i>	has an aspirate sound and should be always pronounced like the <i>h</i> in <i>hill, behind</i>
<i>j</i>	is rarely used; when used it is pronounced like the <i>s</i> in <i>adhesion, vision</i>
<i>ñ</i>	has a distinct palato-nasal sound and is related to the Spanish <i>ñ</i> in <i>señor</i> ; it is generally followed by <i>ya</i>
<i>q</i>	is a clicking, guttural sound related to <i>k</i>
<i>sh</i>	is equivalent to <i>sh</i> in <i>ship</i>
<i>w</i>	is always consonantal and sounds like the <i>w</i> in <i>we, twin, water</i>
<i>y</i>	is always consonantal and sounds like the <i>y</i> in <i>you, yes, beyond</i>
<i>z</i>	is pronounced midway between <i>z</i> and <i>s</i>

The triphthongs herein expressed by *tsha* and *ñya* are used in words of Malay origin, and are represented by single characters in Malay and Magindanao.

In many cases when *u* precedes *w* and *i* precedes *y* the natives omit the *u* and the *i*, and the same word may be written either with or without the *u* or the *i*. When written they are pronounced very short; *ũ* at the beginning of a word, as in *ũndu, ũnggū*, is often omitted both in pronunciation and in writing. Such words may be written *ndu* and *nggū*.

To write Magindanao words by means of Arabic characters correctly a certain knowledge of Arabic grammar and orthography is necessary. The

Moros lack that knowledge and write very inaccurately and inconsistently. They neither punctuate nor use the accent sign.

In transliterating these *tarsila* that pronunciation which seemed consistent and characteristic of each *tarsila* was adopted in the transliteration of the same. The text is punctuated. The accent sign is used very frequently. It is generally omitted when the accent is upon the first syllable in words of two syllables and when it is upon the syllable containing the long vowel. Some stress should be put on the last syllable as a rule.

The Magindanao tongue is energetic and strong. Its pronunciation is generally forcible, the last syllable being spoken abruptly and with a certain amount of stress.

The word Mohammed is written with *o* in spite of the fact that it is pronounced with *u* sound in both Arabic and Magindanao.

The combinations *ay*, *āy*, *aw*, *āw* are not diphthongs, but simple syllables. The *y* and *w* in these cases and in all cases where they precede a vowel have pure and distinct consonantal sounds.

A Geographical Sketch of the Chief Moro Settlements Mentioned in the Tarsila of Mindanao

The term Mindanao² or Magindanao was originally given to the town now known as Cotabato and its immediate vicinity. As the power of the sultan of Magindanao extended over the adjacent territory it was next applied to the lower Rio Grande Valley and later to all the valley and the whole seacoast that was brought under the rule of the sultan. The word is derived from the root “danao,” which means inundation by a river, lake, or sea. The derivative “Mindanao” means “inundated” or “that which is inundated.” “Magindanao” means “that which has inundation.” This is the most appropriate term which could have been given to this land. For more than 10 miles from the sea the Rio Grande, aided by the rise of the tide,

periodically overflows its banks and floods all the adjacent lands. In the rainy season this inundation extends farther up and includes an extensive tract of country. The word “Cotabato” is in Moro *kuta watu*, which means a stone fort. *Batu* is the equivalent of *watu* in Malay, Sulu, Tagalog, and Visaya. This name is very modern, for the older maps that are still in use give the name Mindanao in place of Cotabato. The little stream that rises in the sulphur springs of Cotabato and empties into the Rio Grande at its junction with the Matampay in front of the present guardhouse is still known as the Stream of Magindanao.

The name of the Rio Grande in the Magindanao dialect is “Pulangi,” which means “large river.” The Rio Grande divides, 20 miles before it reaches the sea, into the north branch and the south branch. Cotabato is situated on the left bank of the north branch, about 5 miles from its mouth. The hill of Cotabato is called “Tantawan,” which means “extensive view.” Paygwan means “the place of washing,” and is on the left bank of the river at its mouth and above the bar. The Spanish maps give it as Paiuan. Tinundan is at the mouth of a dead estuary of the same name that joins the Pulangi about half a mile above Paygwan and on the same side. Slangan is the western part of present Cotabato and extends along the Manday stream. The Moros call the Manday “Masurut.” Simway extends along the river of the same name for about 2 miles from its mouth and lies about 4 miles north of Cotabato.

The Matampay River is a dead stream which joins the Pulangi at Cotabato. Tagiman is the name of an old settlement built on the Matampay River some distance above Cotabato. It is now called Binilwan. Matampay and Lusudñ were built on the Matampay River east of Cotabato. Katitwan is an old settlement on the right bank of the river 3 miles below Libungan. Libungan is built at the junction of a river of the same name with the Pulangi, about 9 miles above Cotabato. The point at the fork is called Tambao. Three miles below Tambao on the right bank of the south branch is the site of Bagumbayan. Three miles below Bagumbayan on the left bank of the river is Taviran or Tapidan. Ten miles below Taviran comes Tamontaka, which is nearly south of Cotabato and about 4 miles distant. Tamontaka is about 4 miles from the mouth of the south branch of the Pulangi.

Lumbāyanági lies a little below Tamontaka, on the right bank of the river. Immediately above the fork and on the left bank of the main river lies the old site of Kabuntalan. Fourteen miles above the fork lies Dulawan, the settlement at present occupied by Datu Piang. Here empties one of the largest tributaries of the Pulangi, which is navigable by launches for 12 miles farther up, to Sapakan, Datu Utu's main residence. Rakūngan lies in the foothills of the Tiruray Mountains about 12 miles south of Sapakan. Talayan lies in the foothills of the Tiruray Mountains 15 miles southwest of Dulawan. Two miles below Dulawan lies the old site of Bwayan, on the left bank of the Pulangi. Opposite Bwayan and Dulawan lies the land of Kudarangan. Tinunkup is Reina Regente and Kabarukan is the wooded hill beyond. Sarunayan is the stretch of country lying north of Reina Regente and northeast of Kudarangan and extending to the base of the Kulingtan Mountains, which separate the Rio Grande Valley from the Ranao region. The country occupying the declivities of these mountains north of Sarunayan is called Pidatan. Bagu Ingūd is an old settlement that lies along the left bank of the river about 16 or 20 miles above Reina Regente. Matbangan is on the right bank of the river and extends a short distance below Piket. The Malitigaw or Malidigaw is a large tributary of the Pulangi, about 15 miles above Piket. Matinggawan is located at the junction of the Kabakan tributary and about 30 miles above Piket. It is the chief settlement of the last Moro district in the Rio Grande Valley whose farthest boundary is the Mulita stream, which is about 115 miles by river above Cotabato.

Immediately south of the mouth of the south branch of the Rio Grande and rising above the seashore at Līnuk is the lofty and picturesque pyramidal peak of Mount Kabalalan. From Kabalalan and the hills of Taviran there stretches an extensive mountainous region or table-land which extends as far south as the Bay of Sarangani. This table-land is designated as the Tiruray table-land or mountains for the reason that its northern half is inhabited by the tribe of pagans of the same name who are not met with anywhere else. The Bay of Sarangani is called in Moro Sugud Bwayan. *Sugud* means "bay," and Bwayan is the chief settlement at the head of the bay. North of the head of Sarangani Bay and at the southern terminus of one of the ranges of the Apo system of mountains towers the picturesque and conical peak of Mount Matutun. *Matutun* means "burning," and the

mountain is an extinct volcano. Lying between Matutun on the east and the previously mentioned table-land on the west is the country of Talik. North of Talik lie Lake Buluan or Bulwan and farther north Lake Ligwasan, which empties into the Rio Grande through a stream called *Maytūm īg* or black water. This junction occurs at Kūkmūn, about 8 or 10 miles above Reina Regente.

Balabagan is about 10 miles south of Malabang. Magulalung is in the neighborhood of Balabagan. The Iranun sultanate was on the shore of Illana Bay, and the term *Iranun* signifies, in general, the people who live along the shores of that bay. *Iranun* is also pronounced and written as *Ilanun*; hence the corrupted Spanish name given to the bay. The former Iranun sultanate must have occupied the country in the vicinity of Malabang. Tubuk is the territory immediately bordering on Malabang to the north of the Malabang stream. Baras lies a few miles north of Malabang. Ramītan is in the immediate vicinity of Baras.

Malālis is near Tukurun. Dinas is the principal settlement on the western coast of Illana Bay. Kumaladan is at the head of Dumanquilas Bay. Sibugay is the name of the large bay east of the Zamboanga peninsula.

The word “ranao” means a lake and is the name the Moros give to the upland lake lying midway between Malabang and Iligan and to the region surrounding the lake. The mountain range separating the Ranao table-land from the Rio Grande Valley is called the Kulingtan Range on account of the resemblance its peaks bear to the knobs of the row of *kulingtan* on which the Moros make their music. The highest peak in this range north of Parang and above Barīra is supposed to be Mount Bīta. The highest ridge west of Ranao is called Mount Gurayn, at the base of which lies the settlement of Bacolod or Bakulud.

The Ranao settlements which are mentioned in the *tarsila* are Kadingilan, Bayan, Makadar, and Bakayawan in the south, and the Bayābaw settlements of Marāwi (Marahui), Madāya, and others in the north; also Sīkūn, Didagūn, and Dupilas.

At the time of the Spanish invasion of Mindanao all the southern and western shores of the Island of Mindanao except the eastern shore of Illana Bay were ruled and controlled by the sultan and datus of Magindanao. The Ranao inhabitants are related to the Iranun in language and tribal characteristics.

The word *Mindanao* unless restricted by the sense of the sentence is generally used to mean the Island of Mindanao, while the term *Magindanao* is limited to the old district or town of Cotabato proper.

The Mythology of Mindanao

Long ago, before the days of Kabungsuwan, Magindanao was covered by water and the sea extended all over the lowlands and nothing could be seen but mountains. The people lived on the highlands on both sides. They were numerous and prosperous, and many villages and settlements arose everywhere. But their prosperity and peace did not last very long. There appeared in the land pernicious monsters which devoured every human being they could reach. One of these terrible animals was called *Kurīta*. It had many limbs and lived partly on land and partly in the sea. It haunted Mount Kabalalan³ and extirpated all animal life in its vicinity. The second was called *Tarabūsaw*. This ugly creature had the form of a man, but was very much larger. It was extremely voracious and spread terror far and wide. It haunted Mount Matutun and its neighborhood.

The third was a monstrous bird called *Pah*.⁴ This bird was so large when on the wing that it covered the sun and produced darkness underneath. Its egg was as large as a house. It haunted Mount Bitu and the eastern Ranao region. It devoured the people and devastated the land. The people were awe-struck, and those who escaped hid themselves in the caves of the mountains.

The fourth was a dreadful bird, also, which had seven heads. It lived in Mount Gurayn and the adjacent country.

The havoc was complete and the ruin of the land was awful. The sad news found its way to strange and far lands, and all nations felt sorry for the fate that befell Mindanao.

When the news reached Raja Indarapatra, the King of Mantapuli, it grieved him very much and filled his heart with sympathy. Raja Indarapatra called his brother, Raja Sulayman (Solomon) and asked him to come to Mindanao to save the land from those destructive animals. Raja Sulayman was moved with sorrow, mingled with enthusiasm and zeal, and consented to come. Raja Indarapatra handed to his brother his ring and his kris, *Juru Pakal*,⁵ and wished him safety and success. But before they parted Raja Indarapatra took a sapling and planted it in the ground in front of his window. This he thought was a sure sign by which he could tell what would happen to Sulayman after his departure. He said to Sulayman, "If this tree lives, you will live also; and if this tree dies, you will die too."

Raja Sulayman left Mantapuli and came over to Mindanao in the air. He neither walked nor used a boat. The first place he reached was Kabalalan. There he stood on the summit of the mountain and viewed the land and the villages, but he could not see a single human being anywhere. The sight was woeful, and Raja Sulayman exclaimed, "Alas, how pitiful and dreadful is this devastation!" As Sulayman uttered these words the whole mountain moved and shook, and suddenly there came out of the ground a dreadful animal which attacked Sulayman and fixed its claws in his flesh. The minute Sulayman saw the *Kurīta* he knew that it was the evil scourge of the land, and he immediately drew his sword and cut the *Kurīta* to pieces.

From there Sulayman went to Matutun. There he saw greater devastation and a more awful condition of affairs. As he stood on the mountain he heard a noise in the forest and saw a movement in the trees. Soon there appeared *Tarabūsaw*, which drew near and gave a loud yell. It cautioned Sulayman and threatened to devour him. Sulayman in his turn threatened to kill *Tarabūsaw*. The animal said to Sulayman, "If you kill me, I shall die the death of a martyr," and as it said these words it broke large branches from the trees and assailed Sulayman. The struggle lasted a long while, until at last the animal was exhausted and fell to the ground; thereupon Sulayman

struck it with his sword and killed it. As the animal was dying it looked up to Sulayman and congratulated him on his success. Sulayman answered and said, “Your previous deeds brought this death on you.”

The next place Sulayman went to was Mount Bitā. Here the devastation was worse still. Sulayman passed by many houses, but they were all vacant and not a soul lived there. “Alas, what havoc and what misfortune has befallen this country!” he exclaimed, as he went on. But suddenly there came a darkness upon the land and Sulayman wondered what it could mean. He looked up to the sky and beheld a wonderful and huge bird descending from the sky upon him. He at once recognized the bird and understood its purpose, and as quick as he could draw his sword he struck the bird and cut off its wing. The bird fell dead, but its wing fell on Sulayman and killed him.

At this same time Raja Indarapatra was sitting in his window, and he looked and saw the little tree wither and dry up. “Alas!” he said, “Raja Sulayman is dead;” and he wept.

Sad at heart but full of determination and desire for revenge, he got up, put on his sword and belt, and came over to Mindanao to search for his brother. He traveled in the air with wonderful speed and came to Kabalalan first. There he looked around and saw the bones of the *Kurīta* and concluded that his brother had been there and had gone. At Matutun he saw the bones of *Tarabūsaw*, but Sulayman was not there. So he passed on to Mount Bīta and resumed the search. There he saw the dead bird lying on the ground, and as he lifted the severed wing, he saw the bones of Sulayman, and recognized them by means of the sword that was lying by their side. As he looked at the sword and at the bones he was overwhelmed with grief and wept with tears. Raising up his head he turned around and beheld a small jar of water near him. He knew that the jar was sent down from heaven, so he took it and poured its water on the bones of his brother, and his brother came to life again. Sulayman stood up, greeted his brother, and talked with him. Raja Indarapatra had thought that Sulayman was dead, but Sulayman assured him that he had not been dead, but that he had been asleep. Raja Indarapatra rejoiced and life and happiness filled his heart.

Raja Sulayman returned after that to Mantapuli, but Raja Indarapatra continued his march to Mount Gurayn. There he met the dreadful bird that had seven heads and killed it with his sword, *Juru Pakal*.

Having destroyed all these noxious animals, and having restored peace and safety to the land, Raja Indarapatra set himself searching for the people that might have escaped destruction. He was of the opinion that some people must have contrived to hide in the earth and that they might be alive yet. One day during his search he saw a beautiful woman at some distance, and as he hastened to meet her she disappeared quickly through a hole in the ground where she was standing. Having become tired and pressed with hunger, he sat down on a rock to rest. Looking around for food, he saw a pot full of uncooked rice and a big fire on the ground in front of it. Coming to the fire he placed it between his legs and put the pot over his knees to cook the rice. While so occupied he heard a person laugh and exclaim, "Oh, what a powerful person this man is!" He turned around and, lo, there was an old woman near by looking at him and wondering how he could cook his rice on a fire between his legs. The woman drew nearer and conversed with Raja Indarapatra, who ate his rice and stood talking to her. He inquired of her about her escape and about the inhabitants of the land. She answered that most of them had been killed and devoured by the pernicious animals, but that a few were still alive. She and her old husband, she said, hid in a hollow tree and could not come out from their hiding place until Raja Sulayman killed the awful bird, *Pah*. The rest of the people and the datu, she continued, hid in a cave in the ground and did not dare to come out again. He urged her to lead him to the cave and show him the people, and she did so. The cave was very large, and on one side of it were the apartments of the datu and his family. He was ushered into the presence of the datu and was quickly surrounded by all the people who were in the cave. He related to them his purpose and his mission and what he had accomplished and asked them to come out and reinhabit the land. There he saw again the beautiful girl whom he had observed at the opening of the cave. She was the daughter of the datu, and the datu gave her to him in marriage in appreciation of the good he had done for them and the salvation he had brought to the land. The people came out of the cave and returned to

their homes, where they lived in peace and prosperity again. At this time the sea had withdrawn and the lowland had appeared.

One day as Raja Indarapatra was considering his return home he remembered Sulayman's ring and went out to search for it. During the search he found a net near the water and stopped to fish to replenish his provisions for the continuation of the march. The net caught a quantity of *buganga* fish, some of which he ate. Inside one of the fish he found his ring. This cheered Raja Indarapatra's heart and completed his joy. Later he bade his father-in-law and his wife good-bye and returned to Mantapuli pleased and happy.

Raja Indarapatra's wife was pregnant at the time of their parting and a few months later gave birth to twins, a boy and a girl. The boy's name was Rinamuntaw and the girl's name was Rinayung. These two persons are supposed to be the ancestors of some of the Ranao tribes or datos.

This narration was secured from Datu Kali Adam, who learned it from the late Maharāja Layla of Magindanao and from Alad, one of the oldest and most intelligent Moros living. Alad says that Mantapuli was a very great city far in the land of the sunset; where, exactly, he does not know, but he is sure it was beyond the sea. Mantapuli was so large, he said, and its people were so numerous, that it blurred the eyes to look at them move; they crushed the bamboo very fine if it was laid in the street one day.

Raja Indarapatra is the mythological hero of Magindanao and Mantapuli is his city. These names are very frequently mentioned in Moro stories, and various miracles are ascribed to them.

Kabalalan, Matutun, Bīta, and Gurayn are the most prominent and picturesque peaks of Mindanao and Ranao with which the Moros are familiar. The whole narration is native and genuine, and is typical of the Magindanao style and superstitions. Some Arabic names and Mohammedan expressions have crept into the story, but they are really foreign and scarcely affect the color of the story.

The animal *Kurīta* seems to bear some resemblance to the big crocodiles that abound in the Rio Grande River. *Tarabūsaw* may signify a large variety of ape. A heinous bird is still worshiped and is greatly feared by the Tirurays and Manobos who live in the mountains south of Cotabato. The hateful *Balbal*, in which all Moros believe, is described as a night bird, and its call is supposed to be familiar and distinctly audible every night.

What relation the names of *Rinamuntaw* and *Rinayung* bear to the ancestors of the Ranao Moros it will be very interesting to find out in the future.

Manuscripts

Manuscript No. I

From Adam to Mohammed

The Genealogy of Mohammed

This manuscript was copied from Datu Mastūra's book. It relates, in the dialect of Magindanao, what the Moros of Mindanao know about Adam, the death of Abel, and the ancestors of the Prophet Mohammed.

The first line is Arabic and is generally written at the beginning of every book they write. The second line is Malay; this also is the rule with most Moro writers. The Moros derived what learning they have from Malay and Arabic sources, and consequently take pride in what Malay and Arabic they

know and can write; hence their custom of beginning their books with an Arabic and Malay introduction.

Literal translation of Manuscript No. I

IN THE NAME OF GOD THE COMPASSIONATE AND THE
MERCIFUL

This chapter speaks of the story of the prophet of God, Adam. Adam and Sitti Kawa (Eve) begot first the twins Abdu-l-Lāh and Amata-l-Lāh. They also begot Abdu-r-Rakmān and Amatu-r-Rakmān, other twins. They also begot Hābil (Abel) and Kalīma, who were twins also. They again begot Kābil (Cain) and Aklayma, his sister; these also were twins.

A STORY ABOUT HĀBIL AND KĀBIL

Kābil killed Hābil in order to take away his wife. Adam and Sitti Kawa wept on the death of Hābil, therefore God sent Jabrāyil (Gabriel) to admonish them. The Lord said to Jabrāyil, "If they simply lament for their child, I will restore him to them." The Lord then replaced him by the prophet of God, Sīt.

Sīt begot Yānas. Yānas begot Kīnāna. Kīnāna begot Mahalayla. Mahalayla begot Idrīs. Idrīs begot Uknūk. Uknūk begot Mustāwsalik. ⁶ Lāmik, Nūk, Sāmīr, Paksal, Sākih, Āmir, Pālik, Rāgū, Rūk, Pakūr, Azāra, Ibrāhīm, Ismāyil, Sābit, Yaskib, Yārab, Batrik, Tāku, Mukāwim, Ādadi, Adnāni, Mādi, Nazar, Mudri, Ilyās, Mudākih, Karīma, Kīnāna, Nadri, Mālik, Kahri, Gālib, Lúway, Kābu, Múrat, Kilāb, Kusay, Abdu-l-Manāp, Hāsim, Abdu-l-Mútalib, Abdu-l-Lāh, Mohammed, may the mercy and the blessing of God be his.

The father of Baginda (Caliph or Sayid) Ali was Tālib. The father of Usmān was Āpan. The father of Umar was Kattāb. Abu Bakar was surely beloved by God.

[THE END]

The Genealogy of Kabungsuwan and his coming to Magindanao; or, the Conversion of Magindanao to Islam

Introduction

Part I

This manuscript is a copy of the original in the possession of Datu Mastūra of Magindanao. The original copy is neat and very well written. It gives first the descent of Kabungsuwan from Mohammed, then a narrative of his departure from Juhūr, his arrival in Mindanao, and the conversion of the people of Mindanao to Islam. The latter half of it gives the genealogy of the reigning family of Bwayan from Pulwa to Pakīh Mawlāna and Pakāru-d-Dīn, his brother. It is a very good type of the style and composition of the Mindanao dialect. It is original and borrows nothing of its text and form from either Malay or Arabic.

The combination of the genealogy of Bwayan with the story of the conversion of Magindanao to Islam brings the history of Bwayan into attention before that of Mindanao; but, as very little is known of the early history of Bwayan, it matters not when it comes.

The rule of Bwayan extends all the way from the head of the delta or from the *Kakal* (canal) to Bagu-Ingūd, which is a few miles below Piket. In fact the datus of the surrounding country, all through the upper valley of the Rio Grande, owed more or less allegiance to the rulers of Bwayan through all ages.

The sultan of Bwayan is known as Raja Bwayan. The rajas of Bwayan attained a distinction and a power second to none, except that of the sultan of Magindanao. The greatest datus of Bwayan who have figured prominently in the recent history of the country are Datu Ūtū and Datu Ali of Tinunkup, both of whom will be referred to later.

Diagram No. 1 ends with Sultan Sakandar. The relation between him and Sultan Maytūm, the next raja of Bwayan, is not given in the records. The second diagram begins with Sultan Maytūm and ends with the present generation of rulers.

Part II

Diagrams Nos. 1 and 2 show plainly that the sultanate of Bwayan did not follow any direct line of succession, that the rajas of Bwayan did not always stay at Bwayan, and that Bwayan was not the only capital of the sultanate. The datus and the sultans of the neighboring datuships who married the principal princesses of Bwayan seem to have assumed the title of Raja Bwayan also.

The order of succession was a very complicated one. It is not stated in the records nor can it be exactly inferred from the genealogies kept. Sharif Ali of Sapakan gives the following order:

1. Raja Sirūngan
2. Sultan Tambingag Kahāru-d-Dīn
3. Sultan Sabaraba Jamālu-d-Dīn
4. Kāyib Alīmu-d-Dīn
5. Mālāng Jalālu-d-Dīn
6. Sahīd Amīru-d-Dīn
7. Sakandar Jamālu-l-Ālam
8. Pakīr Mawlāna Alīmu-d-Dīn

9. Sultan Maytūm

Sharif Afdal of Dulawān gives the following order:

1. Raja Sirūngan
2. Datu Mapūti
3. Tapūdi
4. Tamay
5. Mālang
6. Sakandar, Sultan of Lakūngan
7. Burhān
8. Jamālu-l-Ālam
9. Banswīl
10. Sayid Wapāt
11. Pakīh
12. Maytūm

These two orders represent the best opinions of the *Saraya* or upper valley, but there is no doubt that both of them are wrong. The order of Sharif Ali is, generally speaking, nearer the truth. From an examination of the records the following order seems the best of all:

1. Raja Sirūngan
2. Datu Mapūti
3. Tambingag
4. Datu Tapūdi
5. Baratamay
6. Sabaraba
7. Mālang
8. Manuk
9. Sakandar
10. Maytūm

Sultan Kāyib given by Sharif Ali probably is Baratamay. There is no indication in the records that Tamay, Burhān, Jamālu-l-Ālam, and Banswīl were ever rajas of Bwayan, as Sharif Afdal seems to think. The records that

seem most reliable are those in the possession of Datu Mastūra, which are herein translated.

The missing link, as far as these records and the notes of the author are concerned, is the relation between Sultan Maytūm and his predecessors. Common opinion declares him to be a son of Pakīr Mawlāna, but this does not seem probable, and it is certainly not in the records of Magindanao, though these are reasonably accurate and complete. Sharif Ali, in his list, makes no distinction between a successor and a son; most people have the same idea, which is very misleading, to say the least. From the facts obtainable it seems probable that Sultan Maytūm was the son of either Sultan Sakandar of Rakūngan or Datu Mapūti, the uncle of Sakandar. This is corroborated by the fact that the chief line of descent has been in the line of Datu Mapūti, the son of Raja Sirūngan, and his grandson, Sabaraba. The opinion of the sheikh-a-datu of Mindanao is that Sultan Maytūm was the son of Datu Mapūti, who would be the most eligible to the succession.

Jamālu-l-Ālam mentioned here is Sultan Kahāru-d-Dīn Kuda of Magindanao. Sahīd Wapāt, or Amīru-d-Dīn, is Sultan Jāpar Sādik Manāmir of Magindanao. Mupāt Batwa is Sultan Dipatwān Anwār. Pakīh Mawlāna Alīmu-d-Dīn is Sultan Pakīr Mawlāna Kayru-d-Dīn Kamza. Panglu is Sultan Pakāru-d-Dīn.

From Sultan Maytūm down the succession is accurately known. The sultanate has evidently been divided. Marajānūn or Bāngun, the older brother, succeeded to Bwayan and all the country lying on the left bank of the Pulangi and the Sapakan Rivers and all the country between Sapakan and the lakes of Ligwasan and Bulawan. Bāyaw, known as the sultan of Kudarangan, succeeded to Kudarangan and all the northern half of the sultanate.

Datu Ūtū succeeded his father, Marajānūn, and lived first at Bwayan. After the Terrero campaign of 1886 he moved to Sapakan. His full name is Sultan Anwāru-d-Dīn Ūtū.

The sultan of Kudarangan was succeeded by his son, the sultan of Tambilawan. Tambilawan is the name of the sultan's residence and lies on the right bank of the Rio Grande a short distance above Kudarangan. The sultan of Tambilawan is a weak leader, and the chief power of the land has fallen to his brother, Datu Ali, who is a noted warrior among the Moros.

Literal translation of Manuscript No. II

PRAISE BE TO GOD. I HAVE FULL SATISFACTION THAT GOD IS MY WITNESS

This book gives the genealogy of the descendants of the Apostle of God who came into Magindanao. It is learned that the Apostle of God begot Pātima Zuhrah, who begot Sarīp⁷ Hasan and Sarīp Husayn. The latter begot Sarīp Zayna-l-Ābidīn; Sarīp Mohammadu-l-Bākir; Sarīp Jāpar Sādik; Sarīp Ali; Sarīp Īsa; Sarīp Akmad; Sarīp Abdu-l-Lāh; Sarīp Mohammad Alawi; Sarīp Ali; Sarīp Alawi; Sarīp Abdu-l-Lāh; Sarīp Ali; Sarīp Mohammad; Sarīp Abdu-l-Lāh; Sarīp Akmad; Sarīp Ali Zayna-l-Ābidīn.

Sarīp Zayna-l-Ābidīn came to Juhūr and heard that the sultan of Juhūr, Sultan Sulkarnayn, had a daughter called Putri Jūsul Āsikīn. The Sarīp married Putri Jūsul Āsikīn and begot Sarīp Kabungsuwan. As Sarīp Kabungsuwan grew up and reached maturity he obtained his father's permission and set out on a sea voyage with a large number of followers from Juhūr. As they got out to the open sea they unfurled their sails to make speed, but a very strong wind blew and scattered them in all directions, so that they lost track of one another. As a result Sarīp Kabungsuwan arrived at Magindanao. The others scattered to Bulunay (Brunei), Kūran, Tampāsuk, Sandakan, Palimbang, Bangjar, Sūlug, Tūbūk, and Malabang.

Sarīp Kabungsuwan anchored at Natúbakan, at the mouth of the Rio Grande. Tabunaway and Mamālu directed some people of Magindanao to carry their net for them and went down to the mouth of the river. There they

met Sarīp Kabungsuwan, and Tabunaway sent Mamālu up the river to bring down all the men of Magindanao. After the arrival of the men Tabunaway invited Kabungsuwan to accompany him to Magindanao. Kabungsuwan refused to accompany them unless they became Moslems. Tabunaway and Mamālu then repeated their invitation and all of them promised to become Moslems. Kabungsuwan insisted that he would not land at all unless they came together then and there and were washed and became Mohammedans. This they did, and on account of the bathing at that place they changed its name to Paygwān.

Kabungsuwan then accompanied Tabunaway and Mamālu, and the men towed them up all the way from Tinundan to Magindanao. Thus Kabungsuwan converted to Islam all the people of Magindanao, Matampay, Slangan, Simway, and Katitwān.

Soon after his arrival in Magindanao Sarīp Kabungsuwan married Putri Tunīna, whom Mamālu found inside a stalk of bamboo. This occurred at the time Tabunaway and Mamālu were cutting bamboo to build their fish corral. As Mamālu, who was felling the bamboo tree returned, Tabunaway inquired whether all the tree was felled or not. Mamālu answered that all the tree was felled except one young stalk. Tabunaway then said, “Finish it all, because it omens ill to our fish corral to leave that one alone.” Mamālu struck it and it fell down, and there came out of it a child who was called Putri Tunīna. Her little finger was wounded, for the bolo had cut through the bamboo.

Some time later Sarīp Kabungsuwan and Putri Tunīna begot three children—Putri Māmūr, Putri Mīlagandi, and Bay Batūla. Putri Māmūr married Mālang-sa-Ingūd, the datu of Bwayan. Mālang-sa-Ingūd died later, and Pulwa, his brother, came down to Magindanao and married the widow of his elder brother, Putri Māmūr.

Mālang-sa-Ingūd and Pulwa were the children of Budtul. Budtul was the son of Mamū, the first datu of Bwayan.

Pulwa and Putri Māmūr begot Raja Sirūngan, who was the first raja of Bwayan. Raja Sirūngan begot Datu Mapūti, Tambingag, Tangkwag, and the daughters Kdaw, Banītik, Malilūmbūn, Duni, and Lību.

Datu Mapūti begot two daughters, Gimbulānan and Gawang. Gawang married Datu Tapūdi of Tawlan and begot Sabaraba and a daughter, Dumbay. Dumbay begot Tamay, who married a concubine and begot Līnug-Bulawan and the daughters Nānun, Pinayū, Antanu, and Putri.

Sabaraba begot Datu Mapūti and Mālang, who was Raja Bwayan, in Bwayan. Mālang begot Sakandar, who was sultan of Rakūngan.

Tambingag begot Burhān and the daughters Kalīma, Tambil, and Sīnal. Sīnal married Jamālu-l-Ālam, who was treacherously murdered. She bore Banswīl and Kūning. Kūning was married to Sahīd Wapāt and begot Pakīh Mawlāna and Panglū, who was Mupāt Hidāyat, and the daughters Salīlang, entitled Baya-lābi, and Gindulūngan, who was the mother of Baya-lābi of Lakūngan.

Tangkwag begot Mukarna and Buntang, who was the son of a concubine.

Kdaw was married to Makadūlū and begot Baratamay and Bāni. Makadūlū begot also Undung and Nawang by a concubine.

Baratamay married Gimbulānan and begot Lalanū, entitled Baya Budtung, who married Sultan Barahamān and died without offspring; she was overshadowed by Panabwan, a lady of Tajiman.

Baratamay and Bāni were both born of a princess; so one day Baratamay said to Bāni, “You rule Bwayan, for I am going away and shall be absent,” and Baratamay left for Sūlug. There he married a lady of Sūlug and begot Pangyan Ampay. Some time after that Baratamay returned to the land of Bwayan and went up as far as Bagu Ingūd. There he married a lady of Bagu Ingūd and begot Munāwal and Gangga. Munāwal married Mupāt Batwa and begot Manuk, Raja Bwayan in Bagu Ingūd. Manuk begot Manman, Tapūdi, and Raja Mūda of Matingawan. Manman was sultan of Bagu Ingūd.

Baratamay begot also Tuntū, who begot Dungkūlang, a datu of Kabulūkan, and Ambuludtu, and Ugu Nīga; also Pandalīgūn, Anib, Kābaw, Manabū, Talibūbū, Dānaw, and the daughters Gāyang and Tūndwan. These were all the children of Baratamay—in all, fourteen.

[THE END]

Manuscript No. III

The Genealogy of Bwayan

Introduction

This manuscript is copied from a scroll written for the sultan of Kudarangan by Twan Kali, a noted Moro judge who was in the service of the sultan. It was obtained through the favor of Sharif Afdal, the son-in-law of the late sultan.

The few books or documents belonging to the family of Bwayan or Kudarangan that I have seen are neat and well written. The dialect spoken in Saraya differs a little from that of Magindanao, but in the main they are one and the same dialect. This manuscript is strictly Magindanao in its dialect and in its style. The first two pages of this copy give the genealogy of Kabungsuwan from Mohammed and Adam; it is similar to that of Manuscripts Nos. I and II, and ends with Putri Māmūr, the daughter of Sarīp Kabungsuwan, who married Pulwa, the first Mohammedan datu of Bwayan.

The second part gives the descendants of Pulwa and the genealogy of the rajas of Bwayan. This is, however, incomplete and deficient. It stops at the

seventh generation, which is practically midway, and does not distinctly state who were the rajas of Bwayan.

It is fuller than Manuscript No. II in giving the descendants of all the sons of Raja Sirūngan, but it does not proceed in the main line of descent as far and as fully as Manuscript No. II. The original scroll from which this copy was taken is evidently older than Datu Mastūra's copy.

Literal translation of Manuscript No. III

Part I

... Mahlayl begot Uknūk, who is Idrīs. Idrīs begot Mustawsilik, Lāmik, the prophet of God Nūh, Sāmir, Arpaksāl, Sākih, Āmir, Pālih, Rāgū, Sārūk, Pākūr, Āzara, the prophet of God Ibrāhīm, Ismāyil, Sābit, Yuskab, Yārab, Yatrah, Tākū, Makūm, Adadi, Adnāni, Mādi, Nazār, Madri, Ilyās, Mudrīka, Karīma, Kināna, Nalil, Mālik, Kahri, Gālib, Lway, Kābun, Murrat, Kilāb, Kusay, Abdul-Manāp, Hashim, Abd-l-Muttalib, Abd-l-Lāh, Mohammed, the Apostle of God.

The Apostle of God, Mohammed, begot Pātima Zuhrah; Sayid Sarīp Husayn; Sarīp Ali Akbar and Ali Asgar and Zayna-l-Ābidīn and Pātima; Sarīp Zayna-l-Ābidīn begot Sarīp Mohammed; Bākir; Sarīp Jāpar Sādik; Sarīp Ali; Sarīp Mohammed; Sarīp Īsa; Sarīp Akmad; Sarīp Abdullāh; Sarīp Alawi; Sarīp Mohammed; Sarīp Alawi; Sarīp Ali; Sarīp Mohammed; Sarīp Alawi; Sarīp Abdu-r-Rakmān; Sarīp Akmad; Sarīp Abdullāh; Sarīp Ali; Sarīp Mohammed; Sarīp Abdullāh; Sarīp Akmad; Sarīp Ali; Sarīp Mohammed; Sarīp Husayn; Sarīp Ali Bakar; Sarīp Ali, not the former Ali,

but the one who came to Juhūr and married the sister of Sultan Iskandar of Juhūr. They begot Sarīp Kabungsuwan. Sarīp Kabungsuwan begot, in Juhūr, Sambgan and a daughter, Mazawang.

Some time after that Sarīp Kabungsuwan came to Magindanao and married Putri Tunīna, whom Tabunaway and Mamālu found inside the bamboo. By Putri Tunīna he begot Putri Mīlagandi and Putri Māmūr. Sarīp Kabungsuwan brought his children Sambgan and Mazawang to the town of Magindanao. This finishes the book relative to the earlier ancestors.

Part II

The first ruler of Bwayan was Mamū.

In the name of God the Compassionate and Merciful. The first datu of the town of Bwayan was Mamū. Mamū begot Budtul. Budtul begot Pulwa and Mālang-sa-Ingūd. Pulwa married Putri Māmūr in the town of Magindanao. Putri Māmūr was the daughter of Sarīp Kabungsuwan from Putri Tunīna, whom Tabunaway and Mamālu found inside the bamboo. Pulwa begot Raja Sirūngan from Putri Māmūr. By another wife he begot Dikāya; by a concubine, Sābabnūn, Butākū, and Balatūkay. Raja Sirūngan begot Datu Mapūti, Kdaw, Tambingag, Tungkwang, Binītis, Malilimbūn, Dūni, Lībū.

The children of Datu Mapūti were all girls. The oldest was Gimbulānan, another was Gāwang. Tapūdi, a Tawlan datu, married Gāyang and begot Sabaraba and a daughter, Dumbay. Dumbay begot Tamay. Tamay married a concubine and begot Līnug Bulawan and the daughters Nānum, Pināyū, Antanu, and Putri.

Sabaraba begot Datu Mapūti and Mālang. By a concubine he begot Kūba, Ndaw, and Taming. Mālang begot Sakandar, who was entitled sultan of Lakūngan.

Kdaw married Makadūlū and begot Baratamay, and Bāni, and Nawung, a datu of Talayan, and Undung, a datu of Matabangan.

Baratamay married Gimbulānan, the daughter of Datu Mapūti, and begot Lalanū, the Lady of Budtung, who had no children.

By a Sulu lady Baratamay begot Pangyan Ampay; by a lady of Bagu Ingūd, Munāwal, Dānaw, Gāyang, and Tindwan; by a concubine, Ambuludtu, Ugu Nīga, Ani, Gābaw, Ganggay, Manabū, Talibūbū, Pūndū, Tuntū, Sawal; by another concubine, Pandalīgan, he begot also Magalang, who married a lady from Lagindingan.

Tambingag, the son of Raja Sirūngan, married Sīnal and begot Burhān; by a concubine he begot Kāsim and Tambil.

Tungkwang begot Mukārna and Buntang.

Binītis begot Sāyim, Dimamamāla, Bunsal, Piniyāta, Kasangkalan, Miza, Tapūli, Bulūdan, Salab; a daughter, Kanggay, and Dimakāling.

Malilimbūn begot Manding, the father of Panalan Samu.

Dūni, the daughter of Raja Sirūngan, married the datu of Bansayan, whose name was Arūgung, and bore Burwa, and a daughter called Indīngu. After the death of the datu of Bansāyan she married Alīp and bore Ugu.

Dikāya, the son of Pulwa by a concubine, begot Dūka. Dūka married a lady of Malitigaw called Rantyan, whose mother was Agb. To Dūka and Rantyan there were born Būlus, Manalidtū, Pwi, and a daughter, Miyandung.

Burwa married Nungku, the sister of Nūni, and begot Mūluk, Nanak, Banālak, Māma-sa-Palu, Kalangīt, and Wapagáy.

Later Malilimbu married Balbal, the datu of Magulaling, and bore Abad, Māma-Rapat, and a daughter, Gansawu. Gansawu married Uku, the son of Pundūma from Ampas, and bore Alawa-d-Dīn, also called Aluyūdan and Jannatu-n-Nayīm, and Ālim, and Arīraw, and Igang or Būging.

Jannatu-n-Nayīm begot Badūyan or Adwi, Īnal, Limbayan, Sayimbu, Bāyū, Mbayū. He also begot Tungkaling, Buliyūngan, and Anggūrung by a concubine.

Adwi and Dungklang married and there were born to them Dunding, Ratkan, Pataw, Gāyang, Arīraw, and Pimbarat, who was sultan of Balabagan.

Ratkan, the datu of Isikūn, begot Dimalawang and Marang. Dimalawang begot Arani. Arani begot Antaw, Sayū, and Arawa. Arawa married Bayū and begot Baya.

Manuscript No. IV

History of the Dumātūs and the Conversion of Mindanao to Islam

Introduction

This manuscript is a correct copy of the original which is in the possession of Datu Kali Adam of Kalangnan, one of the principal present representatives of the *dumātūs*. The *dumātūs* are a distinct class of the Moros of Magindanao who trace their origin back to the former chiefs of the country who reigned before the introduction of Mohammedanism. The original was written by Datu Kali Adam himself, copied from a previous manuscript handed down to him from his father, who was a prominent judge, with some later additions of his own. It was neither neat nor well kept. It abounds with grammatical mistakes and has several errors in the text. Its style is mixed; Ranao words, pronouns, and terminations occur; still, in general it is a fair specimen of the literature of the Magindanao

dialect. It is the best authority on its subject, and is greatly valued by the people. It is the oldest manuscript known on this subject.

The ruler of Magindanao at the time of Kabungsuwan's arrival was Tabunaway. Tabunaway was not a datu; he was a *timuway*. The word *timuway* or *timway* means chief or leader, and is still generally used by the Tirurays and Manobos and other hill tribes. Kabungsuwan evidently conquered Magindanao, and its sovereignty passed over from Tabunaway to him, and to his descendants after him. The Moros greatly regard and respect every Mohammedan who is related to the Prophet, and look upon every Arabian as of noble birth and equal in rank to their datu class. Descent from Kabungsuwan constitutes all their claim to nobility and their right to the datuship.

The descendants of Tabunaway are naturally jealous. They claim to have come from an Arabian ancestor who is descended from the Prophet, and take great pride in the fact. They assert that the datu omitted this part of the history from their books intentionally in order to give more importance to Kabungsuwan and to their own descent.

The descendants of Tabunaway are called *dumātūs*, which is the future tense of the verb *dātū*. The *dumātūs* are well known, and I have met several of them. Chief among them I mention Datu Mawlāna Sa-Magindanao and Datu Kali Adam. The former has lately been favored with the honorary title of datu by Datu Mastūra, because his mother was a datu's daughter and he personally deserved the honor. Both Datu Mawlāna and Datu Kali claim that Sharif Maraja, the father of Tabunaway, was an uncle of Sharif Kabungsuwan and that he and his children were Mohammedans prior to the arrival of Kabungsuwan, though their people were not so until Kabungsuwan converted them. The story that the angels brought paradise to Mindanao does not appear in the other manuscripts, but it is generally believed by all the datu and people of Magindanao. I heard both Datu Mastūra and Datu Mawlāna Sa-Magindanao affirm the fact. They say that a part of the white earth of paradise was left in the hill behind Cotabato and they call it the sacred dust. It was the custom in Magindanao to bring this earth before the new sultan after his appointment that he might step on it for

the confirmation of his sultanate. They believed no sultan could be successful and prosperous in his reign unless he performed this rite. The last sultan who obeyed this custom was Sultan Untung Qudratul-Lāh, Datu Mastūra's father, during the latter part of whose reign the Spaniards came into Magindanao and occupied Cotabato. The later three sultans did not perform this rite; this the Moros cite as the cause of the decline of the sultans' power and the lack of prosperity in the country. They believe this white earth still exists in the hill of Cotabato, but nobody can find it except the oldest living *dumātūs* whose forefathers have not intermarried with either datos or the common people, and to whom the secret has been handed down from Tabunaway. This they keep away from everybody except their children. The *dumātūs* are a privileged class of people, and claim they can follow any datu they choose, and that they should not pay any tribute. They assert that when Tabunaway resigned his sovereignty in favor of his older brother, Kabungsuwan, he reserved this privilege for his children, which privilege Kabungsuwan promised to respect.

For these reasons the *dumātūs* keep their own records of the history of their country, and the genealogy of their line.

Sambŭg, who is mentioned here, is stated to be the son of Tabunaway. Manuscript No. III states that Kabungsuwan had a son named Sambgan, who was born in Juhūr. Whether these two are one and the same name or not it is very difficult to say. Probably they are two different names.

Literal translation of Manuscript No. IV

The Genealogy and History of the People of Mindanao

The land of paradise was brought by the angels from the west (Arabia) to Mindanao. Later the angels moved paradise to Madinat, but the earth did not balance and tipped on the side of Mindanao. They then measured the

earth to find its center, but it had none. Then the angels took paradise and carried it to Mecca, but a part of it remained in Mindanao.

Sharif Awliya knew that and came to Mindanao to search for it. He saw a column of smoke, and as he came to this smoke he found that it was a woman. He took her and married her and begot a daughter whose name was Paramisúli, whom he left in the blessed land.

Afterwards there came from Juhūr Sharif Hasan and Sharif Maraja, who were brothers. Sharif Hasan came to Sulu, and from him descended all the datus of Sulu. Sharif Maraja had two sons, Sharif Bidayan and Sharif Timbangan. He or one of his sons lived at Basilan. Sharif Hasan and Sharif Maraja were followed by Sharif Kabungsuwan, a nephew of Sharif Maraja. Sharif Maraja was the first Mohammedan who came to Bawangin, which is Mindanao. He first came to Slangan (the western part of Cotabato), where he saw *Burak* (an animal intermediate between a bird and a horse) light on a bamboo tree. *Burak* slipped and let fall his load, which was the lady, Paramisúli. Sharif Maraja dived into the river and brought up Paramisúli; later he married her and begot several children. The oldest of his children was Tabunaway, the youngest Mamālu. The daughters were Sarabānun and Pindaw.

Some time after that Sharif Kabungsuwan came from Juhūr and anchored at Tinundan (a stream or estuary very near the mouth of the Rio Grande of Mindanao). There was nobody there then; but the sharif saw a *taro* plant and a cornstalk floating down, and said, "There must be some people at the head of this river; let us wait until they come down." Later there came down the river Manúmbali, the datu of Slangan, with seven men, to fish at Tinundan. They saw Sharif Kabungsuwan. The sharif called them, but they could not understand him. He beckoned to them, but one of them died on that account, and they were frightened and returned. Later the people of Katittwan, having heard of this, came down the river to see the sharif, but they also could not understand him, and one of their men died of the same cause. They again returned and told Tabunaway, who came down the river and saw Sharif Kabungsuwan. The sharif called to Tabunaway and Mamālu, who both understood him and came into his boat. Tabunaway saw the ring

of Sharif Kabungsuwan, and the sharif observed the ring of Tabunaway. The sharif then asked Tabunaway how he had become possessed of this ring, and if he had bought or inherited it. Tabunaway replied that he had not bought the ring, but that he had inherited it. "Then," said the sharif, "you must be a descendant of my uncle." He then informed Tabunaway of his relation to him, and they became acquainted with each other. They then went up the river together in the boat of Sharif Kabungsuwan and came to Magindanao (which is Cotabato). There Kabungsuwan met Sarabānun, the sister of Tabunaway, and asked to marry her. Tabunaway consented and the sharif married Sarabānun, but she died before her child was born.

After the death of his father Tabunaway became datu of Magindanao.

Sitti Paramisūli, the mother of Tabunaway, had asked her son to bury her comb, after her death, underneath her window. This he did. The comb grew and become a large bamboo tree. As Mamālu was cutting the tree one day he found a lady in one of the bamboo joints which he had cut. The blow had reached her little finger and cut it slightly. He took the child to Tabunaway who told Mamālu to adopt her because he had no children. They called her Putri Tunīna, because they thought their mother had come to life again. As she was a virgin and of age she was married to Sharif Kabungsuwan and bore three daughters. The first daughter was called Mamuranda, and married Pulwa, the datu of Bwayan. The second was called Milagandi, and married Mālang-sa-Ingūd, who is also a datu of Bwayan. The third daughter was called Putri Batūla.

Sambūg, the son of Tabunaway, married and begot Dagansina. Dagansina begot Ampan; Ampan begot Alang; Alang begot Dumāya, who married Duyuttanan, who is from Liyāmin in Balabagan. Dumāya begot Lawana and Mandawa and Taluwa. Lawana begot Bansara. Bansara begot Iput and Ibrāhīm and Jubayr and the following daughters: Lamyuna, Kalīma, and Malubay, the mother of Sultan Izra of Ramītan. From Lamyuna descended Mohammed, whose children are Gayag and Sakandar and Undang. Kalīma bore Antim. Antim begot Jayra and Tunug.

Iput begot Karija. Ibrāhīm begot Ugu. Ugu begot Mintal and Umar, one of whom was a judge (*kali*). The judge begot Ruranūn and Gansing and Mamālu and a daughter called Mandi. Kali Ruranūn begot Nyaw and Tarawya and Mangilay. Mamālu begot Kudarat and Dawuntānan and Mantag. Nyaw begot Jamarun and Kawali. Tarawya begot Anggrīs and Sayd. Mangilay begot Abbas and Payag and Dadaw. Mandi begot Gawi and Mindang and Inding. Gawi begot Lambway and Bkaran and Gandayra. Mindang begot Rakman. Inding begot Dindaw.

Manuscript No. V

The Oldest Copy of the Genealogy of Magindanao and the Iranun Datus

Introduction

This manuscript is a copy of the original which is in the possession of Datu Kali Adam of Kalangnan mentioned in the previous manuscript (No. IV). It is written partly in the Mindanao dialect and partly in Malay. It refers to three subjects and comprises three distinct parts.

The first part includes the first three pages and three lines of the fourth page. The first two pages are written in the Mindanao dialect and the rest in Malay. It gives the genealogy of many of the Iranun datu, but is very ambiguous and lacks interest. The Malay part is written by the same Mindanao author, no doubt, and is neither correctly written nor clear. This part has no special interest except for the student who desires to investigate the oldest records referring to the origin of the ruling datu of the country.

The second part is much more interesting. It is the oldest record on hand referring to the genealogy of Magindanao proper with distinct information

as to the source from which it was obtained. It is all in Malay, but it is so poorly written and composed that its translation is a very difficult task. Pakīr Mawlāna, the authority this book claims, was one of the most intelligent sultans Magindanao had. The substance of this text was transmitted in Malay by Pakīr Mawlāna himself to Capt. Thomas Forest in the year 1775. It appears that there have always been in Mindanao natives who could converse and write in Malay. The statement of Captain Forest would lead one to infer that the book from which Pakīr Mawlāna translated was written in the native dialect, and not in Malay. Probably the text of this manuscript is not identical with that of Pakīr Mawlāna's copy, but derived from the same source and written in Malay instead of Magindanao. Its text is by no means as reliable as that of Manuscript No. VI, but it gives some very interesting information which is not mentioned in the other copies. Sultan Barahamān, to whom the principal source and authority of the *tarsila* is referred, was the fifth grandson of Sarīp Kabungsuwan and the first grandson of Sultan Qudrat, the famous Corralat of Combés. He had several children who figured prominently in the history of the country, four of whom are quoted here as authorities, and who are surnamed Sahīd Wapāt, Wapāt Batwa, Jarnīk, and Sumannap. Their full and exact titles were Sultan Jāpar Sādik Manāmir, Sultan Dipatwān Anwār, Gūgū Jarnīk, and Datu Ma-as Sumannap. Manāmir was assassinated by his nephew, Malīnug, and is always referred to as Sahīd Wapāt, which means, in Arabic, "Dead Martyr." Jamālu-l-Ālam, the brother of Barahamān, is Sultan Mohammed Kahāru-d-Dīn Kuda, who usurped the sultanate after the death of his brother. Pakīh Mawlāna Amīru Dīn was the eldest son of Sahīd Wapāt, and his correct full title was Sultan Pakīr Mawlāna Mohammed Kayru-d-Dīn Kamza. He is generally referred to as Pakīr Mawlāna, and is sometimes called Pakīh instead of Pakīr.

Though the text of this manuscript varies from that of No. VI, it very often mentions facts and names that are lacking in the latter and which help to complete the sense and the subject-matter of the *tarsila*. The first two words of the address Paduk Sari Sultan do not belong to the Mindanao dialect, but are Malay. This *tarsila* ends with the children of Barahamān and Jamālu-l-Ālam, and evidently belongs to the period prior to the death of Pakīr

Mawlāna, or his name and those of his brothers would otherwise have been mentioned.

The third part is written in the Magindanao dialect and comprises the twelfth and thirteenth pages only. It shows the exact ancestral relation that exists between the ruling datus of Magindanao and the Iranun datus, and throws considerable light upon the nature and the tribal characteristics of the datuships or Moro communities. The principal ancestors of the sultans of Ramītan, Tubuk, Dissan, and Tapurug were Umang Nāgu, Anta, and Umbun, respectively, and they were the grandchildren of Dimasangkay, the brother of Kapitan Lawut Bwīsan, whose descendants are the sultans of Magindanao. Ramītan lies a little north of Baras and Malabang. Tubuk is the principal district in the immediate vicinity of Malabang. Dissan lies on the north shore of Lake Lanao.

Being mainly written in Malay, this manuscript is of no literary value at all. That part of it written in the Magindanao dialect shows a slight admixture of the Iranun dialect. Both its composition and style are poor, and mistakes in spelling and writing abound.

Literal translation of Manuscript No. V

Part I

This is the genealogy of the forefathers of Rahaban.⁸

Ami and Pālū were brothers from one father and one mother. Ami begot Mangqaw. Mangqaw begot Layna and Linawan, and the sons of Luntung

and Makabūyū. Layna begot Rahaban, Kusin, Malin, and Usman. Linawan begot Anggab, Amīru, Nudin, and Mūsa, and the daughters Limbwan, Ambay, and Alīma. Luntung's sons were Pālū and Mamangking; his daughters were Īdaw, Ubaw, Baylawā, and Gnaw. Makabūyū begot Asan, Ibrāhīm, Kambal, Dunggi, Malnang, Linaw, and Ami. Pālū begot Dingan, Ansi, Alumay, and a son, Ganap.

Dingan begot Sultan Padinding. Sultan Padinding begot Paramāta, Sultāna Wata, Sultan Alūd, Raja Mūda Dawd of Balangingi, Badang, Daga of Lyangan, Badwi, Māwung, Mūna, and Ktim.

Talāma was the sister of Maka-Kuyung, the sultan of Tapurug.

Dmak of Tatarīkūn, the son of Māgi and Dabulawan, begot Aluyūdan, Palala, Amilulung, Dilabayan, Zumukar, Kandīgan, Makalīnug, and Midaray.

Midaray married a lady from Tatarīkūn and begot Matanug, Tapū, Mapundilu, and Tumūg. Aluyūdan begot Anzang, Dapamāgi, Laygu, and Madayaw. Madayaw begot Īlunayn, Datu Kābu, and Andabū. Anzang begot Antus. Antus begot Mpas. Dapamāgi begot Adadang, Aryung, and Aryung begot Bāgang. Layngu begot Mangakut and Mangakut begot Dāba. Andabū begot Maslang, Kaluyūnan, and Umbayū. Kaluyūnan begot Datu Kayū. Umbayū begot Saygū. Saygū begot Rabsar, Baypat, and Binisa. Binisa begot Angūdap and Antus.

Matanug begot also Angalin. Angalin begot Ujyaw and Utūq. Utūq begot Abayug, Kubag, Angalin, and the daughter Awyanu. Abayug begot Gī. Gī begot Saliling Zaynudin. Zaynudin begot Ayad and the daughters Ijag and Alay. Alay⁹ bore Tarid, Bāyutuga, and the daughter Agayun. Agayun⁹ bore Badri. Badri begot Datu Gibang. Datu Gibang begot Māma-Sati and Datu Badar Adayaw. Datu Badar begot Mbāyug. Zaynudin Saliling begot also the daughters Nūrun, the mother of Apki, and Agunukū, Padangan, and Layma, the grandmother of Diping.

Part II

This book is the genealogy of the descendants of Hashim and Kureish, who came from Mecca to Mindanao, Bwayan, and the land of Ilanun. It was obtained from Pakīh Mawlāna Mohammed Amīru-Dīn, who acquired it from his father, Sahīd Wapāt. Sahīd Wapāt and his brothers Umar Maya, Wapāt Batwa, Jarnīk, and Sumannap received it from their father, Barahamān, who was surnamed Minuli Karakmatu-l-Lāh, and Jamālu-l-Ālam. Later it passed into the possession of Kali Akmad and Sapak,¹⁰ who married Duyan.

The descendant of the Apostle of God, Sarīp Mohammed, came to Juhūr and married a woman related to the sultan of Juhūr and begot Sarīp Kabungsuwan, who came to Mindanao and introduced the religion of Islam.

The ruler of Mindanao then was Raja Tabunaway. Kabungsuwan married Banun, the sister of Raja Tabunaway, who died before any children were born to them. After that Kabungsuwan married Putri Tunīna, who became human and was begotten by Mamālu out of the bamboo. Putri Tunīna bore three daughters—Putri Mīlagandi, Putri Māmūr, and Putri Batūla. Putri Māmūr married Pulwa, Raja Bwayan. Putri Mīlagandi married Mālang-sa-Ingūd. Putri Batūla married Ambang.

Later Sarīp Kabungsuwan married Angintābu of Malabang, whose mother was Mazawang and whose father was Sambāhan. Angintābu bore Maka-alang, surnamed Sarīpada, Angintābu had a brother whose name was Maka-apūn. Maka-alang married a Bilan woman who was begotten out of a crow's egg, and begot Bangkāya. Bangkāya married two women of Mindanao and begot two sons, Dimasangkay and Gūgū Sarikūla, one from each wife. Later he married Magīnut of Malabang, the daughter of Maka-apūn, and begot Kapitan Lāwut. Dimasangkay married a woman of Lusud,

called Mīra, and another of Simway who bore Umūn and Būtu-na-Samar. Būtu-na-Samar was surnamed Jukulānu, but died young and had no children. Dimasangkay married also Ampas, the sister of Sandab, and begot Umbūrung. Umbūrung married Umūn and begot Nūni, who was surnamed Amatanding. Ampas married again Pindūma. Nuūni married Gāyang, the daughter of Kapitan Laāwut Bwīsan and the sister of Qudrat, who was surnamed Mupāt, and begot Anta, Nāgu, Umbūn, and the daughters Patawu, Pindaw, Bāyu, and Sā-ib.

Sarikūla married a lady of Sūlug called Raja Putri, who was the sister of Raja Husayn, both of whom descended from the original rulers of Sūlug. Raja Putri begot one daughter, Raja Mampay.

Kapitan Lāwut married a lady of Slangan called Imbang, who descended from Raja Tabunaway, and begot a son called Qudrat, and a daughter called Gāyang, who married Nūni.

Qudrat married Raja Mampay and begot Tiduray. Tiduray married Myayū of Lwān and begot Paramāta Āsya, who was known as Baya-lābi.

He married again Angki, the daughter of Natīb Syām by his wife Sawākung of Puntiyābaq, and begot two sons—Barahamān, known as Minuli sa-Rakamatu-l-Lāh, and Jamālu-l-Ālam.

Barahamān married a woman of Tagmān named Panubāwun and begot four sons—Bāgas, also known as Raja Mūda; Anwāl, who was entitled Paduka Sari Sultan and surnamed Wapāt Batwa; Jarnīk, who was entitled Gūgū; and Sumana, who was Datu Ma-as; also four daughters—Ngway, Lūgung, Āwu, and Tundug. By Basing of Sangīr, the daughter of Makalindi and Timbang Sarību, he begot Manāmir, who was entitled Paduka Sari Sultan and surnamed Sahīd Wapāt; and Tubu-tubu, entitled Umar Maya; Magīnut; Ātika; and Pātima. By a Samal woman he begot Datu Sakalūdan Jamālu-d-Dīn and Manjanay. Raja Muda Bāgas begot Ampwan, Dāyang, and Bāyaw by a concubine. Jamālu-l-Ā'lam married Sīnal of Bwayan and begot a son, Banswīl, and a daughter, Karani. He also begot Īja, Īla, Āwū, Ampan, and Sayka-Datu Abdu-r-Rakūn.

Manāmir married Karani and Banswīl married Manjanay, all of whom are first cousins, the children of Barahamān and Jamālu-l-Ā'lam.

Part III

Amatunding married Gāyang, the sister of Qudrat, and begot Anta, Nāgu, and Umbūn and the daughters Pindaw, Dawa-dawa, Bāyu, Sāyib, and Umang. Umang was the grandmother of the sultan of Ramītan. Nāgu was the grandfather of the sultan of Tubuk. Anta was the grandfather of the Sultan Sarīp Ulu of Dissan. Umbūn was the grandfather of Makakuyung, the sultan of Tapurug. Umbūn begot Burwa. Burwa begot Māma and Nanak. Nanak begot Bnul, who married Baya Wata of Kabuntalan. Bnul left Baya Wata and went to Unayan with an understanding that unless he returned in forty days their marriage would be null. Bnul did not return, so Baya Wata married Timbang Sūlug, and soon after gave birth to Damda, whom she conceived by Bnul.

Mana, the brother of Nanak, married the daughter of the sister of the sultan of Sūlug and begot Datu Milbahar, Bantīlan, and Datu Adana.

Manuscript No. VI

The History and Genealogy of Magindanao Proper

Introduction

This manuscript is a copy of the original which is in the possession of Datu Mastūra, the best-informed datu of Magindanao, and the son of Sultan Qudrat Jamālu-l-A'lam Untung, the greatest of the late sultans of Magindanao. Datu Mastūra has the best collection of Magindanao books and records and owns the most reliable of the royal documents that have been preserved. This copy is one of the best specimens of Magindanao literature extant. It is principally genealogy and speaks briefly of the early history of Magindanao and the rise of its sultanate, its main purpose being to preserve the record of descent and determine the right of succession to the sultanate.

The first page describes the birth of Putri Tunīna and her relation to Tabunaway, the ruler of Magindanao. The second page describes the coming of Sharif Kabungsuwan to Magindanao, his conversion of Mindanao to Islam, and his marriage to Putri Tunīna. The third page gives an account of Kabungsuwan's marriage to a princess from Malabang and his descendants from her. The rest of the manuscript is a detailed account of births and descendants down to the birth of the great grandfather of the present sultan, which must have occurred shortly before the beginning of the nineteenth century. It is the most complete and the most nearly correct copy that exists. It is written at a later period than that of No. V, and covers two later generations. The history and genealogy of the nineteenth century were obtained by personal investigation and inquiry from the oldest and most reliable datu and other persons living. Diagrams Nos. 3 and 4 show the descent of the rulers of Magindanao from Kabungsuwan to the present time.

The full names and titles of the sultans in the order of their succession are as follows:

1. Sharif Kabungsuwan
2. Sharif Maka-alang
3. Datu Bangkāya
4. Datu Dimasangkay
5. Datu Gūgu Sarikūla
6. Datu Kapitan Lāwut Bwīsan

7. Sultan Dipatwān Qudrat (Corralat)
8. Sultan Dundang Tidulay
9. Sultan Barahamān
10. Sultan Kahāru-d-Dīn Jamālu-l-Ālam Kuda
11. Sultan Mohammed Jāpar Sādik Manāmir, generally known as Sahīd Mupāt or Wapāt
12. Sultan Dipatwān Anwār, also known as Wapāt Batwa
13. Sultan Mohammed Tāhiru-d-Dīn Malīnug
14. Sultan Pakīr Mawlāna Mohammed Kayru-d-Dīn Kamza, generally known as Pakīr Mawlāna or Pakīh Mawlāna
15. Sultan Pakaru-d-Din
16. Sultan Mohammed Amīru-l-Umara Alīmu-d-Dīn Kibād Sahriyāl
17. Sultan Kawāsa Anwāru-d-Dīn
18. Sultan Qudrata-l-Lāh Jamālu-l-A'lam Untung
19. Sultan Mohammed Makakwa
20. Sultan Mohammed Jalālu-d-Din Pablu, sometimes called Sultan Wata
21. Sultan Mangigīn

Literal translation of Manuscript No. VI

IN THE NAME OF GOD THE COMPASSIONATE AND MERCIFUL.
PRAISE BE TO GOD THE LORD OF THE UNIVERSE. I HAVE FULL
SATISFACTION THAT GOD IS MY WITNESS

This book speaks of the origin of the rulers of Magindanao. The first known rulers were Tabunaway and his brother Mamālu. One day they were cutting bamboo to build a fish corral. Mamālu cut down all the trees except one small stalk that was left standing alone. Tabunaway then called to Mamālu, “Finish it up, because it omens ill to our fish corral.” Mamālu therefore cut it and found in it a girl whose little finger was slightly cut by a slip of the bolo. He carried the girl to Tabunaway, but Tabunaway told him to keep her and adopt her as his child. This girl was named by Tabunaway Putri Tunīna.

On the other hand, there came out from Mecca Sharif Ali Zayna-l-Abidīn, who proceeded to Bawangin (Malaysia) and settled at Juhūr. Here he married the daughter of Sultan Iskandar Thul-Qarnayn of Juhūr, whose name was Jūsul Āsiqin, and begot Sharif Kabungsuwan. Sharif Kabungsuwan came to Magindanao to the mouth of the Tinundan. There he met Tabunaway and accompanied him to the town of Magindanao. This is Sharif Kabungsuwan, who converted to Islam all the people of Magindanao, Slangan, Matampay, Lusud, Katittwān, and Simway, and who was followed by all those who accepted Islam in the land of Magindanao.

And it came to pass that Tabunaway married Sharif Kabungsuwan to the girl that was found inside the bamboo stalk, whose name was Putri Tunīna. To them were born three daughters—Putri Māmūr, who married Mālang-sa-Ingūd, an older brother of Pulwa; Putri Mīlagandi, who married Pulwa, the datu of Bwayan; and Putri Bay Batūla, who had no children.

Later Sharif Kabungsuwan married Angintābu, the daughter of Maka-apūn, a coast datu of Malabang, and begot Sharif Maka-alang.

Sharif Maka-alang married Būli, a Bilan woman who was found by Parāsab in a crow's egg. There were born to them a boy called Bangkāya and a girl called Maginut.

Bangkāya married a woman of Magindanao and begot Dimasangkay. He also married a woman of Matampay and begot Gūgū Sarikūla. Later he married Ūmbūn of Slangan and begot Kapitan Lāwut Bwīsan and Tagsan and Pinwis.

Dimasangkay married a Simway woman and begot Būtu-na Samal, who had no offspring, and Ūman, a woman. He married also Ūmpas, the sister of Sandab, and begot Ūmbūrung, who was not well known.

Gūgū Sarikūla married Raja Putri, a Sūlug lady, who gave birth to Putri Mampay. He also married the sister of Dasumālung of Linilwān and begot Gāwu.

Kapitan Lāwut Bwīsan married Ambang, the daughter of Dalamba of Slangan, whose son was Sultan Dipatwān Qudrat and whose daughter was Gāyang.

Sultan Dipatwān Qudrat married Putri and begot Dundang Tidulay and Arawaldi.

Dundang Tidulay married Paramāta Āsiya, a Bitalan lady, and begot Putri Gunung Līdang, who was the first Bayalābi of Magindanao and who had no offspring. His children from a concubine were Īla and Īja; from Angki, the daughter of Katīb Syam and Puntāyābak of Sawakungan, Sultan Mohammed Barahamān and Sultan Mohammed Kahāru-d-Dīn Kuda.

Īla married Tawbālay and begot Gantar and Lumampaw and a daughter Sarabanun.

Īja was married to Binulūkan and begot Marāja Layla Dangkaya and the following daughters: Tūmām, Pūdtad, Darīsay, Nūrun, Lāyin, Imbu, Līlang, Ābū, and Ampay, who had no offspring.

Sultan Barahamān begot from Panubāwun Raja Mūda Bulāgas and Sultan Dipatwān Anwār, and Gūgū Jarnīk and Datu Ma-as Sumannap, and a daughter Anig, and Gāwu, and Datu Sakalūdan Jamālu-d-Dīn, and Manjani and Āwū and Tundug, and Ngwā and Lūgung. From Lady Bāsing, the daughter of Makalindī, and Timbang Sarību, a lady of Sangīl, he begot Sultan Jāpar Sādik Manāmir and Umarmaya Tubu-tubu, and the following daughters: Maginut, Fātima, and Atik.

Sultan Kahāru-d-Dīn Kuda married Lady Sīnal, the daughter of Datu Tambīnag, and begot Balingkūl, Hajji Sayk Abdu-r-Rakmān Banswīl, and Putri Kalāni Kūning. By a concubine he begot Marāja Layla Bahar, Paki Abdu-l-Kahār Ampan, and Hajji Sayk Abdu-r-Rakīm, Dinda, Dangsābu, Īla, Talāma.

Raja Mūda Bulāgas married Tūmbāyu, a lady of Bwayan, and begot Baratamay and the daughters Nānun, Māyay, Antanu, and Putri. By a

concubine he begot Parāsab, Gūgū Ampwān, and the daughters Mustūri, Bāyu, and Dābu.

Sultan Dipatwān Anwār married a lady of Agākan Munāwal and begot Raja Bwayan Manuk. By a Bwayan lady he begot Tambāyū and Kandug; by Lady Pāyak, Sultan Mohammed Tāhiru-d-Dīn Malīnug and Datu Sakalūdan Gantar; by a concubine, Datu Lūkūs Gānwi and Marāja Layla Yūsuf and Talinganup, and the daughters Dāging, Dāyang, Dawung, and Dang.

Gūgū Jarnīk begot Nānu and Kūnan.

Datu Ma-as Sumannap begot Midtūd-sa-Ingūd Bāni and Asan.

Nway begot Anday.

Āwū married Arādi and begot Talīla and Andu.

Lūgung married Lūbas and begot Uranjib and Pīnaw.

Datu Sakalūdan Jamālu-d-Dīn married Layma, the daughter of Sultan Kuda, and begot Mawlāna Kudanding Sabīru-l-Lāh and Datu Sakalūdan Lagat.

Tundug married Ajipāti and begot Rannik and Ami. By Palug he begot Dīngan.

Umarmaya Tubu-tubu married Babak and begot Sharif Kunyaw and Sultan Digra Alam and Pataw. He also married Andaw-mada, a Tawlan lady and begot Bagūmba, Sarabanun, and Bay. By a concubine he begot Jukulānu adīwa, Bāl, Būli, and a daughter, Sajar.

Fātima married Datu Gūlay of Sulug and begot Raja Baginda Timbang.

Sultan Mohammed Jāpar Sādik Manāmīr married Putri Kalāni Kūning, the daughter of Sultan Kuda, and begot Sultan Pakīr Mawlāna Mohammed Kayru-d-Dīn Kamza, Sultan Mohammed Pakāru-d-Dīn Bulāgas Armansa, and Samal, and the daughters Bayalābi Sari and Gindulūngan. By a concubine he begot Dipatwān Palti, Jalālu-d-Dīn Tambi, Marajā Layla

Abdu-l-Lāh, Marāja Dinda Jambŭrang, Rastam, Kahār, Mamalum'pung, and the daughters Amīna, Īnam, Panubāwun, Atshar, Bitun, Angki, and Labyah.

Hajji Sayk Abdu-r-Rakmān Banswīl married Manjani, the daughter of Sultan Barahamān, and begot Datu Sakalūdan, a Lingkung Tidulay, and Putri Kintay, Kalūdan, the son of a concubine, Jāpar, Undung, Kapitan Lawut Mohammed, and Ibrāhīm, and the following daughters: Dūni, Pindaw, and Dasŭmbay.

Marāja Layla Bahar begot Badaru-d-Dīn and Sakandar, and the daughters Dīna and Bidūry.

Paki Hajji Abdu-l-Kahār Ampan begot Ismāyil and Mīlug.

Hajji Sayk Abdu-r-Rakīm begot Namli, Amīna-l-Lāh, Yāsīn Kamīm, Mohammed, Māwug, Akmad, and the daughters Latīpa, Badalya, Bulawan Dagāyug, Dindyaw, Sitti.

Dinda married Abdul Patah, a Sūlug datu, and begot Pangyan Ampay.

Papani married Sumūkū and begot Mahrāja Layla Mindug and a daughter, Sīnal.

Ungki married Simping and begot Īday.

Īla married Datu Wata Mapūti and begot Mīlug and Māyug.

The children of Talāma by Dumlinaw are Jiwana Jāya, Nasari, Palāwan, and a daughter, Kurays.

The children of Maharāja Layla Parāsab by Pangyan Bata, the daughter of Gūgū, are Māyug and Tāhir.

The children of Gūgū Ampwān are Makalapŭn, Kanday, Tāwug, and Udin, the last two being daughters.

The children of Sultan Dipatwān Malīnug are Watamāma, Gūlay, Tawpan, Ūkū, Bay Māyung, Dīngan, and Mustūri.

Datu Sakalūdan a Kantar, begot by Nānaw, Anni and Mangki. Marāja Layla Yūsop begot Īday, Ndawmada, Mūnay, Bāyū, Dāyang, Zaman, Mūning, Tamāma, Undung, Ga-as, and Palti.

The children of Datu Lūkūs Gānwi are Mūnay from Bāyū, and Manūn and Jamalya by a concubine.

The children of Talinganup are Dindu, Bungāyū, Ampay, Nānaw, and Kunan.

Dāyang begot by Tuwyla Answay.

Dang begot by Sumāpa Jamālu-d-Dīn and Sabdulla.

Panubāwun begot by Bagwa Datu Tabunaway, Tamāma, Ulu, Timbang, Gindu, and Ampay.

The children of Atshar from Sultan Yūsop are Isrā-il, Watababay Pāyak, Mustūri, Dadaw, Lyaw, and Kunan.

Bitun married Mawlāna Tāray and begot Agas and Kūntay.

Angki married Raja Mūda Kalūdan and begot Jamālu-d-Dīn, Mīlug, Ismāyil, Ayung, Āyū, and Fātima.

Rastam married Pīnaw and begot Dīngan and Kirām; he also begot Indīm by a concubine.

Marāja Dinda Jambūrang married Pīnaw and begot Danding, Isrā-il, Ani, Bantīlan, Ayung, Īja, and Nānun.

Jalalu-d-Dīn Tambi begot Angkāya, Panji, Gūlay, Manalantang, Lūgung, Mangki, Anday, Gāyung, Latīpa, Ami, Būli, Bahar, Darīsay, and Pataw; the last eight being females.

Dipatwān Palti married Būli and begot Sarabanun. He also begot Sahābu-d-Dīn, Ampan, Īja, Kūntay, and Ayung by a concubine; the last three are females.

Pakīr Mawlāna Mohammed Amīru-d-Dīn Kamza begot the following: By Dang, Raja Mūda Amīru-l-Umara Mohammed Alīmu-d-Dīn Kibād Sahriyāl; by Dawung the daughter of Dipatwān Anwār, Līdang and Paywa; by Dawa-dawa, Kuda, and Lalanu; by Bay Līnaw, Burhānu-d-Dīn; by Sapar, Bāsing and Hājar; by Kānul, Pakū; by Sināyan, Mohammed Sahru-d-Dīn, Āsim, and Tāwung; by Dalikāyin, Jamālu-d-Dīn, Gindu, Amīna, and Ampay; by Talangāmi, Jamalya, Ami, Zamzam, and Ismāyil; by Mūna, Sāra, Yāsīn, Malīnug, and Abdu-l-Lāh; by Mīda, Īdu, and Sād; by Ūntay, Isrā-il, Angkāya, and Tambi; by Palambi, Ndaw; by Jalya, Dudawa; by Anggun, Pāyak; by Kalīma, Badaru-d-Dīn; by Jānim, Maryam; by Limbay, Īsa; by Linuyāman, Sīnal; by Mīlagandi, Bilangkūl.

Sultan Mohammed Pakāru-d-Dīn Bulāgas Armansa married Badwi and begot Kartaw, Atik, Anday, and Pindaw, the last three being females. He also married a concubine and begot Zaman, Sumannap, Bayna, and Nānaw, the last two being females.

Datu Sakalūdan Lingkung Tidulay begot Kakā-it.

Datu Sakalūdan Lagat begot Parāsab, Ampan, Manunggul, Dāding Umar, Dubwa, Tā-ib, Nānun, Māyay, and Gāyang.

Nānun married Datu-a-Wata Mapūti and bore Tamāyug, Dawa-dawa, and Idāyū.

Māyay married Raja Bwayān Manuk and bore Maman, Tapūdi, Kūdaw, and Ampay.

Putri married Datu Maytūm Bwīsan and bore Dubwa.

Tamaying married Bungu and begot Gangga. He also married Mangilay and begot Answay and Anig. He again married a concubine and begot Parāsab and Tūli.

Baya-Lābi Sari married Mawlāna Kudanding Pŭrang Sabīlu-l-Lāh and bore Maman, Abu Bakar, Kŭntay, Mindarakma, and Mimya.

Kibād Sahriyāl married Nīnig, the daughter of Dātū Sakalūdan Gantar, and begot Yūsuf and Fātima; by Watababay Apāyak he begot Anwār and Sul-Karnayn; by Angki, Palti; by Kindaw, Badaru-d-Dīn and Māyug; by Jāmi, Nasaru-d-Dīn; by Līna, Imrān; by Jūlya, Dīngan and Ibrāhīm; by Istipānya, Ābidīn.

Babay Bāsing married Watamāma Sahābu-d-Dīn and bore Barahamān, Kuda, Manāmir, Fātima Zuhra, Sari, and Mindarakma.

Púyuwa married Raja Bwayan Mālang and bore Sajar.

Burhān married Kudi and begot Jamālu-d-Dīn and Īla.

Mohammed Sahru-d-Dīn married Mulāk and begot Dumalúndung.

Pakū married Sultan Ajipāt and bore Kŭning.

Sīnal married Mundŭg and bore Dāru-d-Dīn.

Jamalya married Saydūna and bore Mohammed Idrīs and Tŭli.

To Gantar, the son of Jiwana Kŭnik, she bore Samal and Nīnig.

Jamālu-d-Dīn married Gāyang, the daughter Datu Sakalūdan Lagat, and begot Amīna and Dawung.

Zamzam married Dindyaw, the child of Sayka Datu, and bore Paramāta.

Bŭli married Mupalal, the son of Namli, and bore Harmansa.

Badaru-d-Dīn married Putri, the daughter of Namli, and begot Jalālu-d-Dīn.

Sari married Amīl and bore Ibrāhīm and Sitti.

Nasaru-d-Dīn married Āyū and begot Kamid.

Kartaw married Paramāta, the daughter of Watamāma Gūlay, and begot Putri Līdang, Ani, Jumjuma, and Gindulūngan; by Jayba he begot Jāya; by Jamīla, Ndaw and Nangka; by Uyam, Dadawa and Naw; by Alīma, Nunay.

Pindaw married Lintang and begot Mīlug.

Ndīma married Hajji Kāri Abdu-r-Rakman and bore Mohammed, Tāha, Banūn, and Panubāwun.

Completed on the day Thursday of the month Shaban. God's knowledge is superior.

Manuscript No. VII

The Genealogy of Bagumbayan

Introduction

The sultanate of Bagumbayan occupies the middle ground between the Saylud or lower Rio Grande Valley and the Saraya or upper Rio Grande Valley. It is located at the head of the delta, and really comprises the upper part of the Saylud, and lies mainly along the banks of the southern branch of the Rio Grande. It extends as far down the banks of the southern Rio Grande as the upper borders of Tamontaka, and as far down as Libungan, along the banks of the northern branch of the Rio Grande. Its upper limit is Maysawa, a little above the Kakar or canal.

The present sultan, Abu-Bakar, lives at Bagumbayan proper, which is located on the right bank of the southern Rio Grande about 3 miles below Tambao or the fork. He is still addressed, at times, as the sultan of

Talakūkū, which was the proper address of his father, named after the older name of the capital. The word *Bagumbayan* means “newly built,” and has lately been applied to the sultanate on account of the late change of the residence of the sultan. Talakūkū is the word that appears in all Spanish records and histories. Kabuntalan is still older and is more used by the Moros themselves. The old site of Kabuntalan was on the left bank of the main river just above the fork. It has been completely abandoned.

Nagtangan is the oldest name and the one which appears first in this manuscript.

This manuscript is copied from the original, which is in the possession of the sultan himself. It was obtained through the favor of Datu Balabadan, who is a relative of the sultan and who belongs to the same family or an allied branch of the same.

The original is a very old copy and many of the leaves and margins are torn and have fallen into pieces. The handwriting is fair and plain, but the composition and grammar are very poor. The orthographical errors committed in writing Moro names in Arabic characters are very numerous and greatly change the expression of the words. It is evident that the original author was a poor writer, and did not have the usual practical knowledge in writing in Arabic characters that other Moro authors had.

The dialect is strictly that of Magindanao. The titles of the datos are similar to those used in Magindanao. Two new titles, Jukulānu and Jīwana, appear often, and in all probability are applied to subdatus of the same rank as Gūgū, Umar Maya, Marāja Layla, etc.

Literal translation of Manuscript No. VII

Genealogy of Kabuntalan

IN THE NAME OF GOD THE COMPASSIONATE AND MERCIFUL

This book speaks of the ancestors of the datu of Nagtangan. Daman asked for a datu from Bwayan and got Dikāya. Dikāya married a Nagtangan wife and begot Dūka. Dūka married Lantyan, a Malitigaw woman, and begot Myadung. He also married a woman called Ambun and begot Babak and Naw and Sūman.

Babak married Umar Maya, Tubu-tubu, and bore Sarīpada Kunyaw, Sultan Digra Alam, and Pataw. Umar Maya married also Andawmada, a Tawlan lady, and begot Bagamba, Sarabanun, and Bay. By a concubine he begot Jukulānu Dīwa and Bāl, and the daughters Būli and Gaw and Bahar.

Sarīpada Kunyaw married Anik and begot Sultan Mohammed Alīmu-d-Dīn, who had no offspring, Mawlāna Mündüg, and Datu Sakalūdan Dūdin. He also married Andawmada, an Ipuktn lady, and begot Baya-Wata. By a concubine he begot Jīwana Jambang, and the following daughters: Kumkuma, Ayag, Pāyak, Talīlah, and Minding.

Sultan Digra Alam married Nyā, a Magindanao woman, and begot Raja Muda Mangindra and Mohammed; by Bay he begot Baya-Lābi; by a Talayan woman he begot Baya-Wata Līlang.

Bagamba married Raja Bwayan and bore Sultan Darimbang.

Sarabanun begot Kamad, Ūbuk, and Dumpiras. Jukulānu Dīwa begot Marajal, Bāya Nāyug, Jukulānu Kūnuk, Jukulānu Badal, and Undung, and the daughters Atik, Ilug, Nawila.

Bāl begot Ginda, Abas, Duwi, and Dangkay, and a daughter, Būli. Būli married Mupāt Salām and bore Bānun. She also married Aspa and bore Jīwana Kūnik.

Mawlāna Mündüg begot Wata-māma Kamad and Ngyan. By a concubine he begot Dūla, Dastara, Jaynal, and Ālam, and the daughters Dadaw and Sambāsing. By Lamidas he begot Kadīja; by a concubine, Daldal; by Saban, Amīnu-l-Lāh.

Datu Sakalūdan Dūdin married Amīna, the daughter of Jukulānu Dīwa, and begot Danding, Madaga, Kudanding, Pātima, Gindulungan, and Anat. By a concubine he begot Gānwi and Kunan.

Baya-Wata married Timbang Sūlug and begot Wata-māma Damda.

Jīwana Jimbang begot Asab and Pata.

Raja Muda Mangindra married Māyung, a Binilwan lady, and begot Anīg, Umun, Daywa, and Dawada; and the sons, Sultan Mohammed-sa-Barahamān, Kūnday, Pataw, Jānipan, and Dindyaw. By a concubine he begot Lubāba; by Baya-lābi, Ingkung.

Baya-Wata married Aman and begot Īnuk, Ūkū, and Anti, and the daughter Wata-Babay Dīdu.

Gūgū Kirām begot Anti, Nānun, Lintang, Dīdu, Ngūlū, and Bānun.

Marāja Layla Dikāya begot Marāja Layla Kandug, Kūnan, Marāja Layla Amad, and Papung.

Sultan Mohammed Darimbang begot Raja Bwayān Paki, Damda, and Pidtaylan. By a concubine he begot Kakayt.

Kamad married Anīg and begot Bulawan, Īnuk, and Dagāyug. By a concubine he begot Māma-sa-Ilud, and Kūntay.

Ūbuk begot Daga, Māma-Santi, Būlūg, and Tawp.

Dupiras begot Lyaw and Dabū by a concubine.

Jukulānu Kūnuk married Dawada, the daughter of Raja Muda Mangindra, and begot Tamay and Diyug.

Jukulānu Badal married Mayakay and begot Panggu. He also married Gīnu, the daughter of Wata-māma Kamad, and begot Ungji, Ulanulan, Indalan, Udamag, Kadidung, Aslan, Amīnalla, Duwag, Nyūgaw, and Tiban.

Ūdung married Ninaw and begot Mamag, Tūli, Līlang, Lastam, Aning, and Ālungan. By Baybay he begot Nāmar; by Lūmba, Indig and Dandung.

Nawila married Lūgung, the son of Jalāludīn Tambi, and bore Putri and Kirig.

Ginda begot Malaga.

Abas married Ngyan, the daughter of Mawlāna Mūndūg, and begot Atshar and Pinayū; and Nānaw by a concubine.

Wata-Māma Kamad begot Ginū.

Dulay begot Bandun, Jawala, Būli, and Dyaw. By Payaka he begot Kubung and Paygwan.

Dastara's children lived in Kūran.

Alam married Gindulūngan and begot Malatunul. Gindulūngan married Mawg, the son of the sultan of Tūba, and bore Qudrat.

Ngyan married Abas and begot Atshar and Pināyu.

Dadaw married Badang and begot Jambrang, a twan (sir) of Lawgan.

Kadīja married Ātun, Datu of Burūngan; her children lived at Burūngan.

Daldal married Kāyag and begot Sarīpa and Nyaw.

Talīlah begot Sābu-Dīn. Sābu-Dīn begot Abu Bakar, Mindung, Kawan, Ītug, and Pimbar.

Nānaw married Tamāma and begot Kalumpūnit.

Datu Sakalūdan married Lady Tīdung and begot Tīma and Randu. He also married Yungāyu and begot Andam and Bāsing.

Barāyim married Anu, the daughter of Maraga, and begot Raprūk.

Raja Bwayan Mohammed Alīmu-Dīn married Ani, a lady of Magindanao, the grandmother of Mupāt Idāyat, and begot Kabāyan. By Māyay, a lady of Kabalūkan, he begot the sultan of Magindanao; by a concubine, Gūgū Jambūrang; by Salāya, Gūgū Panāsang; by Dadayu, Nūgal and Gansing; by Pandarāgan, Gāga; by Sitti, Itug; by Kasimna, Atung and Panunggu; by Takdung, Bāsing; by Īnam, Atabwān; by Inding, Apūn; by Amil, Nangālun.

Alīmu-Dīn, the grandson of Baya-lābi Sari, married Maraga, the daughter of Ginda, and begot Tūka and Dubwang.

Kudanding married Kindang and begot Āyung. By Tīma, a lady of Tīdung, he begot Putri; by Īja, Limulang and Sīna; by Nāyung, Gandang and Kūtay; by Nawg, Babayāsi.

Datu Tamay and Diyug were cousins. Kibād was their second cousin. Tagi was a brother, the son of Maryam. Quadrat was another cousin. Anatan, datu of Kabuntalan, was their uncle.

Madaga married Sultan Mohammed-sa-Barahamān and bore Māyug and Sultan Iskandar Manāmir, which makes three datu of Kabuntalan. Anatan, datu of Kabuntalan, married Jawa and begot Dīdu, Untung, and Padīdu. By Malāli, he begot Pāwag and Kirig and Dyaw and Parug; by Sitti, Umbag; by Madīdu, Anaw and Baralaga.

Wata-Māma Balindung Adamūnda married Ani and begot Asim, Iday, Kalug, Kūntay, Nānun, and Tayting. By a woman of Kadingilan he begot Bantīlan.

Asab begot Putri.

Pata married Jīwana Aryung and begot Kibād, Kanapya, Sarapūdin, and Ilm.

Daywa married Datu Pālug of Binirwan and bore Kūnik, Bānun, and Iyaw. Dindyaw married Marāja Layla Kandug and bore Talawung and Dastara.

Mawlāna Mawg married Īday, the daughter of Balindung, and begot Maning, Ampal, Līlang, Anti, Bagwa Datu, and Tapūdi.

Kāwan married Timbay and begot Paydu, Dandayung, and Īday.

Pānggu married Talung, the daughter of Marāja Layla Kandug, and begot Ulanan, Tubu-tubu, and a daughter, Tyā. He also married Kubra and begot Ūla.

Tamay married Antam and begot Limulang and Makabwat.

Diyug married Tūli, the daughter of Undung, and begot Paki, Dada, Tingaw Pulwa, Myāyū, Mālug, and Tinābun.

Mamag married Dīdung and begot Babay, Māma, Diruyūdūn, and Manángka.

Anti, the son of Gūgū Kirām, begot Muyūka, Pinagūnay, Kūnaw, Pindaw, and Bungāyū.

Nglū married Tabābay and begot Nawīla and Amil.

Lintang begot Bantūgūn.

Brāyim married Anu and begot ———.

Raja married Dabu and begot Kirig and Pakamaman.

Ingkung married Dubung and begot Arimaw, Kalug, Sarību, Padaw, Dūkin, and a daughter, Mayla. By a concubine he begot Pinū, Bilālang, and Talawd.

Marāja Layla Akad married Miyāyū and begot Inal, Īdu, and Atshar.

Sultan Mohammed Iskandar Manāmir married Sarīp, the daughter of the sultan of Magindanao, and begot Iskandar Sulkarnayn and Sahābu-d-Dīn. By Gāyang he begot Idrīs; by Kāti, Māmūnu-r-Rashīd, Kindang, and Puyuwa; by Apsa, Kadīja.

The grandfather of Baya-lābi Sarīp, by her father, was Raja Bwayan. Her grandfather, by her mother, was Sultan Diruyūdūn of Bagu Ingūd.

Tāgi married Manjanay and begot Lintang and Paramāta. By Putri, the daughter of Kudanding, he begot Pindaw; by Apsa, an Ilanun, Dubuwa, Tūku, Pakīr, and Pandīta; by Bayid, Māma-sa-Ingūd; by Dabū, Bwīsan; also Kúmkuma.

Idrīs married Minda, the grandmother of Umar-Maya Anti, and begot Sindad. By another woman he begot Kūnik.

Sultan Mohammed-sa-Barahamān begot also Kamsa. Kamsa begot Itaw, Jimbah, Antil, Limpūl, and Mandi.

Dipatwān Mīnug married Madaga and begot Tandwal, Pipikan, Pamupun, Diluyūdūn, and Talambūngan.

Kūnik married Pinduk and begot Nīnig, Marajal, and Kumipang. By Kumāla he begot Bunti and Muyuk; by Paydu, Atik.

Namal married Tīma and begot Tantung, Sawad, and Mohammed.

Bulawan married Rajalam and begot Bula, Anggrīs, and Pindug.

Raja Muda Asim begot Pintay and Ubāb.

Kalug begot Talūlad and Māyay, and Katampara and Talāma, the last two from Kurma.

Kintay married Balug and begot Dalmatan, Muntya, Tālib, and Alūngan.

Gānwi married Itug and begot Gāyug. He also married Bāsing and begot Anday, Atshar, Lūping, and Ūtung.

Quadrat married Idāyū, the daughter of the Sultan of Balīlah, and begot Bwīsan, Dundang, and Nūni. By Līlang he begot Asibi; by Tapayā Migāyad; and by Agak, Mohammed.

Rastam married Dawag and begot Tawp, Ampan, Igay, and Payluyan. He also married Uman and begot Saligan, Gambil, and Timbaw.

Kibād married Nīnig and begot Pinduma and Dulan.

Bantūgan married Lagay and begot Ayug and Gambis. He married also Tubu and begot Dawa, Dulan, and Balalagay. By Abu, he begot Bwanda.

Andam married Pūdin and Bangkas, Māyung, Māma-sa-Ingūd, Gandi, and Gimbang.

Amīnūla married Bāsing and begot Ragīnut, Angjum, and Anu.

Pāwag married Tapūdi and begot Talīla, Maytūm, Mantya, and Sandag.

Kirig married Baliwan and begot Nānwi.

Sapūla begot Mindal, Awa, Ijang, Rūging, and Nyaw.

Datu sa-Dalīkan married Dagāyug and begot Pāyak, who lived in the care of a Manobo of Dalīkan—not the one who was intrusted to the care of Sultan Mohammed Iskandar Manāmir of Kabuntalan by a Tiruray of Dalīkan. This latter woman was the daughter of the former and was not an inheritance for the Nagtanganūn because the datu did not furnish her with a dowry. Angki married Puwi and begot Dangus and Tapūdi, the cousin of the sultan's mother.

Sultan Diluyūdūn of Bagu Ingūd married Jumjuma, the daughter of Dipatwān Marajānun, and begot Danding and Māyung. By Kabayan, a lady of Kabalūkan, he begot Apan, Bwat, and Timbukung; by Adung, Panalaw; by Paku, Gasing and Dgaw; by Raja, Muntya; by Ampas, Kambang; by Angkung, Salamat and Gindu; by Bītu, Kapyā, Tīmu, and Naypitan and Pinamīli; by Idag, Ūyag, Makalay, Singag; by Kalīmah, Umbul; by Ibad, Amad; by Batata, Dalding, the daughter of Gandum, Maguman; by Anuk, Kulaga; by Ingi, Paytakay, Bungalus Pimpingan, and Idag.

The sultan of Magindanao married Māyung, the daughter of the sultan of Bagu Ingūd, Sarīp, and begot Bāngun, the sultan Raja Muda Bāyaw, Bagu, and Gidu. By Atik, a lady of Makatūdugan, he begot Laga and Tandu; by Wayda, Talumpa and Taganūk; by Matundun, Malatunul, Sarabanun, and Bisinti; by Awig, Gubal; by Kūdaw, Isad; by Myayug, Atik, Blaw, Ngyan; by Malāyū, Makaw; by Kūmbay, Byalung.

IN THE NAME OF GOD THE COMPASSIONATE AND MERCIFUL.

The first datu of Bwayan was Budtul, who married a woman from Magindanao and begot Mālang-sa-Ingūd and Pulwa. Putri Māmūr was married first to Mālang-sa-Ingūd, but after his death she married Pulwa. Pulwa married also Budang of Tijaman, and begot Dikāya.

The History of Bagumbayan.

The two greatest powers that figured prominently in the Rio Grande Valley are the sultan of Magindanao and the raja of Bwayan. These rulers have at all times been considered as greater in power and higher in rank than any other ruler in the valley. In the latter part of the eighteenth century and during the main part of the nineteenth century the sultan of Kabuntalan also figured prominently and held a very intimate relation and a close position to both of the other sultans, which position he still holds at the present time.

It appears that the first ruler of Kabuntalan was Dikāya, the son of a raja Bwayan, who simply held the honorary title of datu. His successor had no male heir, and one of his daughters, Babak, married Umar Maya Tubu-tubu of Magindanao, who became ruler of Kabuntalan and whose son was the first mentioned sultan there. This makes the line of descent of Kabuntalan related by Babak to the line of Bwayan and by Umar Maya to that of Magindanao. This relation to both Magindanao and Bwayan and the intermediate position Kabuntalan holds to both Saylud and Saraya have been very prominent factors in the history-making events of the valley, and

have successively been taken advantage of by both Spanish and American authorities managing the affairs of the country.

Diagram No. 5 gives in a very explicit and clear manner the names of the rulers of Kabuntalan or Bagumbayan, the order of their descent and succession, and the relation they hold to each other. Their names in the order of precedence are as follows:

1. Datu Dikāya
2. Datu Dūka
3. Datu Umar Maya
4. Sultan Digra Alam
5. Sultan Mohammed Alīmu-d-Dīn
6. Sultan sa-Barahamān
7. Sultan Mohammed Iskandar Manāmir
8. Sultan Iskandar Sul-Karnayn
9. Sultan Idrīs
10. Sultan Abu Bakar

The diagram shows also the principal relations of Bagumbayan to Bwayan and to Magindanao.

Very little is known about the early history of Kabuntalan. Datu Kali Ibrahim, who is the chief judge of Bagumbayan, told the following story:

Soon after the arrival of Dikāya in Kabuntalan the chief people of the village took their new datu in a boat on a little excursion. When they had gone some distance from the village they engaged in a sham fight and one party attacked the datu. This affair was prearranged and planned to test the courage and power of their datu. They made their attack with crises and bamboo lances. Dikāya was frightened and ran away. The people lost respect for him and expelled him from the village. Some time later he won their friendship by his good behavior and was reinstated as datu of Kabuntalan.

The statement on page 47 that Dikāya was the son of Pulwa was taken from the Bwayan *tarsila* and is added on account of the relation it bears to the

subject. The part of the *tarsila* of Bwayan which bears on this subject states that Dikāya was the son of Pulwa by a concubine, and that Dikāya begot Dūka, who married Rantyan, a Malitigaw lady whose mother was Agūb. The children of Dūka and Rantyan were Bulus, Manalidtū, Puwi, and Miyandung.

As Pulwa must have lived about the year 1550, and as Digra Alam must have ruled about the year 1770, the statement that Dūka married Ambun and begot Babak, the mother of Digra Alam, can not be accepted as true. Some links in the list are evidently missing, but the fact is that the right to rule Kabuntalan belonged to the descendants of Dūka, and was principally derived from Bwayan.

The first ruler of Kabuntalan addressed as sultan was Digra Alam, the son of Umar Maya and Babak. Diagram No. 5 shows plainly that Digra Alam must have ruled about the same time as Sultan Pakīr Mawlāna Kanza of Mindanao, or his brother, Pakāru-d-Dīn, that is about the year A. D. 1770.

In a treaty between the Spanish Government and the sultan of Kabuntalan in the year 1857 the sultan is addressed as sultan of Tambao. He must be either Sultan Iskandar Sul-Karnayn or Sultan Idrīs, probably the latter.

About midway between Tambao and Libungan on the left bank of the river is a small monument, possibly a tomb, erected in memory of those who died during the fight between the Spaniards and Sultan Idrīs. In 1861 Tambao and Taviran or Tapidan were occupied by the Spaniards. In 1884 Sultan Idrīs submitted unconditionally to the Spanish authorities and received their protection against Datu Ūtū. Datu Ayūnan of Taviran, Datu Balabadan's brother, aided the Spanish authorities in the war against Datu Ūtū and was one of the most prominent datus of Talakūkū and Magindanao.

Manuscript No. VIII

The Ancestors of the Datus of Mindanao

Introduction

This manuscript is a copy of the original in the possession of Datu Mastura. It was written by the same original author as Manuscript No. II and belongs to the same class and style of composition. It consists of nineteen paragraphs that give the names of the first rulers or datu of nineteen datuships of Mindanao. A few Malay words are used at the beginning of each paragraph. Each paragraph begins as if it were written as a separate document or statement, distinct from all the rest, and in the same manner as their letters and books generally begin.

The Arabic words *sūrat*, *riwāyat*, *kissa*, *hadīs*, *asal*, meaning book, narrative, story, discourse, origin, respectively, are all used to signify book or history. The word *tsharetra* is Malay and means a story. *Sarsila* or *salsila* and *tarsila* mean genealogy or history and are used in the same sense.

Literal translation of Manuscript No. VIII

IN THE NAME OF GOD THE COMPASSIONATE AND MERCIFUL

1. This book tells about the ruler of Bwayan. The first ruler of Bwayan was Pulwa, the first raja Bwayan. He begot Raja Sirūngan, the second raja Bwayan. Pulwa married the daughter of Sarīp Kabungsuwan.
2. This is a statement about the ruler of the country of Mandanāwi, the Land of Peace. The first datu of Magindanao was Mangalang or Maka-alang, the son of Sarīp Kabungsuwan, from Angintābu. Maka-alang was the second sarīp; Sarīp Kabungsuwan was the first.

3. This is the genealogy of the ruler of the country (or town) of Ilanun. The first datu of Malabang was Gantar, the father of Maka-apŭn and Angintābu.
4. This story tells about the ruler of Bakayawan. The first datu of Bakayawan were Mirŭgung and Dimalawang.
5. This is the history of the ruler of Bayābaw. The first datu of Bayābaw was Kalangīt. His son was Pundama, who married Ŭmpas. The end.
6. This is the history of the ruler of Balabagan. The first datu of Balabagan was Dungkŭlang. His son Rimba was sultan of Balabagan. The end.
7. This is the history of the ruler of Pidātan. The first datu of Pidātan was Dyam, sultan of Pidātan. He begot Punduma. Punduma begot Tawgung.
8. The first datu of Lumbāyanági was Sultan Gulambay. He begot Ranu.
9. The first datu of Dupilas was Dindu, who was called Datu sa-Palaw. He begot Dimalawang.
10. The first datu of Sŭlug was Sarīp Pāyang, who begot Raja Hasan, sultan of Sŭlug.
11. The first datu of Sangīr was Makalindi. Makalindi married Timbang Sarību and begot Manāmil, sultan of Sangīr.
12. The first datu of Malālis was Ampwan, sultan of Malālis.
13. The first datu of Dulangan was Alip, the son of Abu, sultan of Dulangan.
14. The first datu of Makadar was Sultan Limba, who also is a son of Abu.
15. The first datu of Didagŭn was Abad. Abad begot Dumalundung, who was sultan of Didagŭn.
16. The first datu of Barīra was Dŭmak. Dŭmak begot Antāgu, who was sultan of Barīra.

17. The first datu of Sīkūn was Amat. Amat begot Salumbay, datu of Islhūn.

18. The first datu of Kadingīlan was Kapūsan, the brother of Salumbay, son of Amat.

19. The first datu of Magulāngūn was Balbal, who married Marādi, the daughter of the sultan of Tatarīkūn, and begot Burwa. Burwa became sultan of Tatarīkūn.

Here ends the genealogy of all the countries or towns.

The History of Magindanao

Before the first mass was celebrated on the northern shore of Mindanao mosques had been built on the fertile banks of the Pulangi, and before Legaspi landed on Cebu Kabungsuwan had been declared and acknowledged datu of Magindanao.

The Mohammedan conqueror of Mindanao was neither an admiral of a fleet nor a leader of an army of regular troops. He had no nation back of him to reënforce his battalions nor a royal treasury to support his enterprise. His expedition was not prompted by mere chivalry or the gallant adventures of discovery. He was not looking for a new route to rich lands nor searching for spices and gold dust. The emigrant sought a new land to live in, and trusted his fortune and success to the valor of his crew and the influence of his witchcraft.

Having a fair admixture of Malay blood in him and sufficient Arabian energy and enthusiasm to push on, he came and conquered and soon found himself at home in Mindanao as well as at Juhūr. There was no racial prejudice to contend against and the language of the new land was akin to his own. But true to his religion, as he was true to his ancestry, his faith suffered no defeat. No submission was accepted without conversion, and no

friendship was cultivated with the unfaithful. He married in the land of his conquest, and the ties of faith were soon strengthened by the ties of blood and kinship; and as the first generation passed and the second generation followed, the conqueror and the conquered became one in blood and sympathy, one in faith, and one in purpose. A new dynasty which stood for Islam, for progress, and for civilization arose on the ruins of barbarism and heathenism. Savage and fierce as the Moros look, they are greatly superior to the surrounding pagans who inhabit the hills and the interior of Mindanao. Once their equals and kinsmen, they have vastly surpassed them now and are preëminently above them. With Mohammedanism came art and knowledge, and communication with the outside world was established.

For four centuries two different agencies of civilization have been at work in the Philippine Islands. One started in the north and worked its way south, continually progressing and constantly growing in power and improving in character. The other began in the south and extended north, but it soon reached a definite limit, and like a tree stunted in its growth it reverted to its wild nature and grew thorny and fruitless. The first graft of the tree of Magindanao was not aided by later irrigation. The first wave of immigration was not reënforced, and with an ebb tide it lost most of its size and force.

The Moros of Mindanao figured very prominently in the history of the Philippines. They were never united under one flag, but they formed different sultanates, some of which attained considerable power and fame. In the fullness of his glory, the sultan of Magindanao ruled over the whole southern coast of Mindanao from Point Tugubum, east of Mati, to Zamboanga, and beyond this latter point to the outskirts of Dapitan. All the pagan tribes living around the Gulf of Davao and in the Sarangani country, and all the Subanos west of Tukurun and Dapitan submitted to his power and paid him tribute. In the upper Rio Grande Valley the power of the rajas of Bwayan was felt and respected as far as the watershed of the Cagayan Valley on the north and the inaccessible slopes of Mount Apo on the east. The Ranao Moros controlled the whole country and the seacoast west of Cagayan de Misamis and north of the Illana Bay.

The large majority of the Moro sultanates are, however, small, and have never been fully numbered or described. They generally represent small divisions of territory and subdivisions of tribes, each under one chief who calls himself sultan or datu. Nevertheless, tribal relations and language group these petty divisions into two large distinct groups, the Magindanao and the Iranun. The Magindanao group includes the majority of the tribes. The Iranun group is restricted to the tribes living along the eastern coast of the Bay of Illana from the point of Polloc to the neighborhood of Tukurun, and the whole Ranao region lying between that line and the Bay of Iligan.

The Magindanao group is the greater of the two in number, in the extent of its territory, and in fame. Indeed, all the Moros of Mindanao, except the Iranun, were at one time under one influence and were brought under the sole control of the sultan of Magindanao.

The Samal Moros, who are variously classified by different writers and who are often mentioned as one of the main divisions of the Moros of Mindanao, are really foreign to Mindanao and belong to a distinct and separate group. Until recently they had never been independent, but had lived under the protection of various datos, and always served the datu for the protection he afforded them, or paid him tribute. They were sea rovers and had no claim on territory anywhere. Lately they have settled down on the Island of Basilan, the Sulu Archipelago, and around the Zamboanga peninsula. The Samals were the latest of the Malay people to arrive in the Philippine Islands. In fact, they are the only Malay people of whom we have positive historical statement of emigration from the Malay Peninsula to Sulu and Mindanao, and were in all probability Mohammedans prior to their arrival in the Philippine Islands. With the Magindanao and Iranun peoples it is different. They were in the land and belonged to the native element of the country long before their conversion to Islam.

Islam was successfully introduced and firmly established in Mindanao by one man. This same man founded the sultanate of Magindanao and reformed the whole system of government among his converts. His full name was Sharif Mohammed Kabungsuwan, generally known as Sharif Kabungsuwan.

Kabungsuwan was without doubt the greatest Mohammedan adventurer who trod the soil of the island. But both the traditions of Magindanao and its written records state that he was preceded by two pioneers, the first of whom was Sharif Awliya. Awliya was universally regarded as a relative and a predecessor of Kabungsuwan. His history is wrapped in myths. He is said to have come to Mindanao in the air to search for paradise, or that part of it which remained in Mindanao, and, while he was looking for it on the hill of Tantawan (Cotabato), to have found a houri who was sent to him from heaven. He married this houri and she bore a daughter called Paramisuli. Later the sharif returned to the west, but his wife and daughter remained in Magindanao.

The second arrival in Magindanao was Sharif Maraja, who married Paramisuli and was thought to have begotten Tabunaway and Mamālu, who were the chiefs of Magindanao when Kabungsuwan arrived in the land. Sharif Maraja is said to have had a brother called Sharif Hasan, who accompanied him as far as Basilan, but who stopped there and founded the sultanate of Sulu. Whether Bidayan, the son of Sharif Hasan, who is mentioned in the fourth *tarsila*, should be Bidin, the abbreviated form of Zainul-Abidin, who was the first sultan of Sulu, it is not easy to say. No copy of the Sulu genealogy has been obtained as yet, and no authoritative statement can be made. But it is universally believed that the first sultan of Sulu came from Basilan, and that the ancestors of the sultans of Brunei, Sulu, and Magindanao were brothers.

Sharif Kabungsuwan was the son of Sharif Ali Zainul Abidin, a descendant of the Prophet Mohammed who emigrated from Hadramut, southern Arabia, to Juhūr, Malay Peninsula. The sultan of Juhūr, was evidently a Mohammedan then, and was called Iskandar Thul-Karnayn, the Arabic appellation of Alexander the Great. The word “Sharif” is Arabic and means “noble.” It is a title which is universally given to the descendants of the Prophet Mohammed. The full title is “Sayid Sharif,” the “master and noble.” The Arabians generally use the first word, *Sayid*, alone, but the Moros have adopted the second. Being highly respected on account of his ancestry, Zainul-Abidin was given the hand of the sultan’s daughter in marriage. Her name was Jūsul Asiqīn, a corrupted form of the Arabic name

“Jawzul-’Ashiqīn.” It is generally believed that she bore three children, the youngest of whom was called Kabungsuwan. The word “Kabungsuwan” is Malay and means “the youngest.” The names of the two older brothers of Kabungsuwan were variously given. They were not mentioned in the *tarsila* and have been obtained from mere traditions. One authority gave them as Ahmad and Alawi, the other as Mohammed and Ahmad. Both authorities agreed on the fact that the oldest founded the sultanate of Brunei, and the second the sultanate of Sulu.

Kabungsuwan probably knew some Arabic, but he necessarily spoke and used the Malay language, his mother’s tongue.

The incidents connected with his departure from Juhūr are of considerable historical interest. No dates have been obtained relative to this departure. The early Moros never dated their events or documents. Their narratives were very brief and crude. When they dated their events or wars they used a cycle of eight years, and designated its years by the letters A, H, J, Z, D’, B, W, D”. Whenever one cycle ended they began another without any relation or reference to the corresponding Mohammedan year. The earliest date that has been obtained which has immediate bearing on Mindanao history is that Bwīsan, the father of the Corralat of Combés, was living in 1597; the next date was that of Corralat’s defeat by General Corcuera in 1636. Bwīsan had two older brothers, and he was probably preceded in the sultanate by both of them. His father, Bangkāya, was the son of Makaalang, the son of Kabungsuwan. It will therefore be within safe limits to say that Kabungsuwan’s departure from Juhūr or his arrival in Mindanao occurred about the end of the fifteenth or the beginning of the sixteenth century. Captain Forest, who visited Magindanao in 1775, placed that event roughly at A. D. 1475, which is near enough to assume as correct.

Tarsila No. II states that there departed with Sharif Kabungsuwan from Juhūr many people who were dispersed by the storm and ultimately found their way to different ports. The places to which they went were Balimbang, Bangjar, Kuran, Tampasuk, Brunei, Sandakan, Sulu, Malabang, Tubuk, and Mindanao. There is no doubt that this statement refers to an emigration from Juhūr east as far as Mindanao, and that with this emigration came

Kabungsuwan. The Samal people generally believe that they came from Juhūr and its neighborhood. The traditions of Magindanao distinctly state that the people who came with Kabungsuwan were Samals. The Samals or Bajaws are the sea nomads of the Malay Archipelago and their emigrations are frequent.

The Samals of the Sulu Archipelago are ruled by the Sulu datus and are generally very submissive. They are allowed to live on Sulu soil, but they have never made themselves independent anywhere. Indeed, all the evidence that can be obtained seems to point distinctly to the fact that they are of late arrival and do not belong to the older peoples of the Philippine Islands.

The early Magindanao records give the impression that the arrival of Kabungsuwan and the conversion of the people of Magindanao to Islam were accomplished peaceably. The word *Samal* is never mentioned and the Samals are always considered as aliens in every respect. The Samals seem never to have settled in Magindanao itself, but they did settle for some time on the Island of Bongo or Bungud, that lies opposite the mouth of the Pulangi, and at Batwan and Banago, near Malabang. From these places they moved later to Sibugay and Sarangani and the Gulf of Davao. Combés called the Samals *Lutaw* and said that they were in the employ of Corralat, and manned some of his boats, fighting and carrying on piracy side by side with the people of Magindanao and with the Iranun. Summing up the preceding evidence, we can unhesitatingly say that the Samals came to Magindanao with Kabungsuwan, but that they did not settle on the soil of Magindanao, nor did they intermarry sufficiently to assimilate with the Magindanao people.

The character of the conquest Kabungsuwan achieved and the bearing it has on the admixture of races in Mindanao is therefore of special interest. When Kabungsuwan arrived at the mouth of the Pulangi there were on the neighboring soil of Magindanao the following settlements: Slangan, Magindanao proper, Lusud, Matampay, Tagiman, and Katitwan. The first and the last were probably the greatest and the strongest of all, for they were the first to meet Kabungsuwan and interrupted his advance at

Tinundan. After some fighting they were evidently defeated and retreated up the river. The people of Magindanao, under the leadership of the brothers Tabunaway and Mamālu, came next, but their attitude was not hostile. For some reason they secured an alliance or agreement with Kabungsuwan and invited him to Magindanao. They submitted to a form of Mohammedan baptism and to circumcision, and towed Kabungsuwan's boat from that place up to Magindanao. Hence the meaning of the word *tinundan*, the place of towing. The ceremony for circumcision occurred at Katuri, the little settlement on the river just opposite Cotabato; the baptism or washing occurred at Paygwan at the mouth of the river. The word *katuri* means circumcision.

The *dumatus* urge that Tabunaway and Mamālu had been Mohammedans previous to that incident and that they had some intimate relation to Kabungsuwan. This is possible, but it is very difficult to understand how such a submission could have been enforced or obtained had Kabungsuwan been a mere relative and guest whom they had never seen before. The people of Magindanao proper were, even in the best days of the sultanate, far outnumbered by the people of Slangan. Yet, soon after his arrival in Magindanao, Kabungsuwan went on conquering and converting to Islam all the surrounding tribes and chiefs, and succeeded. This seems impossible of achievement unless Kabungsuwan had some force with him which commanded the fear and respect of the natives, and which, with the aid of Magindanao, was able to carry his arms to victory over all the neighboring native chiefs and tribes of the land. This force was in all probability made up of the Samals who accompanied him from Juhūr and who remained in his service and in the neighboring seas for a certain period of time. But having married in Mindanao, the succession to Kabungsuwan's sultanate naturally reverted to the native element, and the Samals were gradually alienated and their sympathy with their master grew steadily weaker. Not being agricultural in their habits and preferring the sea, they gradually withdrew from Magindanao. The natives proved superior to the Samals and, though converted to Islam, they preserved, to a great extent, their own identity and their language. Knowing how insignificant the former chiefs and their settlements had been, it is not difficult for us to conceive how Kabungsuwan, with a small foreign force but with superior talent and with

superior arms, could so easily accomplish the conquest of Magindanao. It is commonly believed that the natives who fought Kabungsuwan had no swords and depended chiefly on their wooden arrows as implements of war, and that the Mohammedans who attacked the natives fought with swords and gained an easy victory. Possibly they used gunpowder, too.

The inhabitants of Slangan, Magindanao, Katitwan, and those of all the other settlements of the valley were pagans and were very similar to the present Tirurays in language and worship. Those who adopted the new religion remained in the rich lowlands of the valley, but those who refused fled to the mountains and have stayed away ever since. Those who wavered in accepting the new terms of submission and who were later suffered to stay in the neighboring hills were called Tiruray. Those who refused to submit, fled to more distant places, and kept up their enmity and opposition were called Manobos. The pagans who are thus spoken of as related to the Moros of Mindanao in origin, besides the above, are the Bilans, the Tagabilis, and the Subanos.

Every settlement of these former pagan tribes had its chief. The chief was called *timway*. Tabunaway was the last *timway* of Magindanao. Manumbali was the last *timway* of Slangan. The Tirurays and the Manobos still call their chief *timway*. The ruler of the Mohammedan dynasty assumed the title of datu. The noun *datu* means king or ruler; the verb *datu* means to rule. Kabungsuwan retained the title sharif. His son Maka-alang also is always referred to as sharif. Later the term datu prevailed, and the first datu who is mentioned in the *tarsila* as sultan was Sultan Qudrat, whom Combés called Corralat.

Soon after Kabungsuwan had established his power in Magindanao he received the submission of many chiefs, all of whom he converted to Islam. Later he advanced up the valley to Bwayan and along the coast to Malabang. Some believe that he went to the Ranao country, but it is difficult to support all the statements made. His descendants and his converts carried on the war and the conversion, so that before the Spaniards reached their country their conquest and conversion had reached the present limits.

The story of Putri Tunīna and her marriage to Kabungsuwan is universally known to the Moros of Mindanao. The custom of burying the dead next to the house, as practiced by Tabunaway, is still common everywhere, and trees are often planted around the tomb.

By Sarabanun, the sister of Tabunaway, Kabungsuwan begot no children. By Putri Tunīna he begot three daughters, one of whom, Putri Māmūr, married the first Moslem datu of Bwayan, Mālang-sa-Ingūd. At Malabang Kabungsuwan married Angintābu, the daughter of the chief of that place, and begot Sharif Maka-alang, who succeeded him.

The people of Magindanao who aided Kabungsuwan in his wars secured from him certain privileges and favors over their neighbors. These privileges are still claimed by the dūmātūs, the present descendants of Tabunaway. They have not paid tribute to the datos and have often intermarried with the datu class. It was different with the people of Slangan. The descendants of Manumbali and his subjects all became subjects and servants to the datos. Their descendants are, however, still known and live in Lugaylugay, about 1 mile below Cotabato, and on the same side of the Pulangi.

Little is known about Sharif Maka-alang. He in all probability ruled in Magindanao, not in Malabang. His wife was a Bilan woman related to Parāsab, a Bilan chief.

Bangkāya succeeded Maka-alang and married three wives, daughters of the principal chiefs of Slangan, Magindanao, and Matampay, by each one of whom he begot a son. His sons were Dimasangkay, Gūgu Sarikūla, and Kapitan Lāwut Bwīsan, all of whom become datos and succeeded to the rule of Magindanao in order. Sarikūla married a Sulu princess called Raja Putri, who was supposed to be the noblest lady of her day in Magindanao and who probably was the daughter of the sultan of Sulu. The word *Putri* is equivalent to “princess,” and *Raja Putri* means “royal princess.” *Kapitan* means “holder” or “leader.” *Lāwut* is a Malay word meaning “sea.” *Bwīs* means “tax.” Kapitan Lāwut Bwīsan distinguished himself more than his predecessors and was the most powerful enemy Spain encountered in the

south in her first effort to reduce the Moro land. In 1597, in company with Silūngan, the raja of Bwayan, he checked the invasion of Marquis Rodriguez and defeated him at Tampakan.

Bwīsan was succeeded by his son, Sultan Dipatwān Qudrat, the Corralat of Combés. The word *Dipatwān* is Malay in origin and means “master” or “sir.” The word *qudrat* is Arabic and means “power.” The letters *d* and *r* and *r* and *l* are interchangeable in Moro, and the word *qudrat* is commonly pronounced *kudlat* or *kurlat*; hence the corrupted form “Corralat.” Sultan Qudrat overshadowed his father, Bwīsan, and ruled with a strong hand. He was probably the strongest and greatest Mindanao sultan that ever lived. He fought the Spaniards bitterly and held their sovereignty in check for many years. His pirates terrorized Luzon and the Visayas and controlled the southern seas for a long time.

In 1636 General Corcuera led an expedition against him and after considerable difficulty reduced his fort and defeated his forces. Qudrat appears to have had a large number of firearms, and his fort was very strongly fortified. The Spaniards captured 8 bronze cannons, 27 *lantaka* or culverins, and 100 muskets.

In 1645 his relations with Spain had undergone a distinct change. He had become more powerful, but he was desirous of peace and made a treaty with the Spanish Government. This treaty was in the nature of an alliance for mutual aid and protection. It secured better commercial facilities and gave the Jesuits the privilege of building a church in the sultan’s capital. Thirteen years later hostilities were renewed and another campaign was directed against Simway. This time Qudrat succeeded in blocking the river at different places and successfully checked the invasion.

Qudrat was followed by his son, Dundang Tidulay, of whom very little is known. Sultan Dundang Tidulay begot Sultan Mohammed sa-Barahamān and Sultan Mohammed Kahāru-d-Dīn Kuda. Barahamān ruled peacefully and begot several children, two of whom, Jāpar Sādik Manāmir and Dipatwān Anwār, became sultans.

After the death of Sultan Barahamān his son Manāmir was declared sultan. As Manāmir was very young, his succession was considered illegal and an act of enmity directed against his uncle, Kuda. Kuda therefore “usurped the government and went to Simway, carrying with him the effects of the deceased sultan.”

Civil war ensued and the peace of the state was greatly disturbed. This war must have lasted more than thirty years, and its story is variously related by the Moros. The *tarsila* do not mention it at all. The best description was given by Captain Forest, who learned its details from the mouth of Pakīr Mawlāna, the chief person who conducted the campaign and terminated the struggle.

Kuda invited a party of Sulus living in Magindanao to Simway to support him against his nephew. The Sulus came, but finding him with only a small force, they treacherously murdered him and plundered his camp and possessed themselves of many pieces of heavy cannon, which Kuda had transported from Magindanao to Simway. “The Sulus returned home with their booty, and Manāmir’s party got the ascendancy.” But the Sulus, conscious of their iniquity and fearful of resentment when peace should be restored, fomented trouble between Manāmir and his brother Anwār, and supported the latter. The state was again divided against itself, and the second struggle proved worse than the first. Skirmishes were kept up and nightly attacks and assassinations were continued until both sides were very much weakened. Their enmity grew bitter and Malīnug, the son of Anwār, killed his uncle Manāmir. Manāmir was the rightful sultan, and on account of his assassination he has ever since been called Sahīd Mupāt, which means “died a martyr.” Pakīr Mawlāna and Pakāru-d-Dīn, the sons of Sahīd Mupāt, were obliged to leave Magindanao, and retired to Tamontaka. “The country then suffered much. The great palace at the town was first plundered and then burned. In the conflagration many of the houses of Magindanao were destroyed, as was also a great part of the town of Slangan. The groves of cocoanut trees were also mostly destroyed, as being convenient and at hand to make palisades for temporary forts.”

In the meantime Sultan Anwār died at Batwa and has ever since been referred to as Mupāt Batwa, which means “died in Batwa.” Malīnug assumed the sultanate after his father’s death and kept up the fight.

“After a tedious, desultory war, Malīnug fled up the Pulangi to Bwayan. Pakīr Mawlāna then got possession of all the lands about Magindanao, and peace was made soon after. Malīnug died a natural death, and some time later his two sons visited Pakīr Mawlāna.”

Pakīr Mawlāna was a man of low stature, smiling countenance, and communicative disposition. He acquired a great reputation for wisdom and bravery during the civil war, which he brought to a happy conclusion. He spoke Malay and wrote the best *tarsila* of Magindanao. Magindanao flourished in his day and regained its former glory and prosperity. His pirates invaded the Celebes and had several encounters with Dutch and English vessels, often with success. His relations with Spain were friendly, but Spain had very little influence outside of the Zamboanga colony.

The greater part of Magindanao was in his days built on the point and the adjacent narrow strip of land which lies at the junction of the Matampay and the Pulangi and between them. A longitudinal raised street began at the point and extended for half a mile to a canal which was cut from river to river. More than 150 houses were situated on both sides of this street. The other part of the town of Magindanao did not exceed 20 houses. The town of Slangan was really continuous with Magindanao and extended for about half a mile down the river, forming one continuous street. Slangan was the larger town and had over 200 houses. Both towns had large numbers of mechanics, vessel builders, and merchants. Many Chinese carpenters, arrack distillers, and millers lived in both towns, but chiefly in Slangan. Gardens and rice fields surrounded the town. The chief datus at that time had forts and kept small bodies of troops as bodyguards and artillery corps to take care of the muskets and guns. Kibād Sahriyāl, son of the sultan, had the best and strongest fort at that time. This fort was called *Kuta Intang* (diamond fort) and was located at the extreme point of the land and commanded the river and the town. The fort had five pieces of cannon, 6 and 9 pounders, and a large number of swivels and *lantaka*. The

Magindanao warriors of those days wore armor coats and helmets and carried krises, spears, and shields. The natives made gunpowder and secured their saltpeter from a cave near Taviran. They built vessels of all dimensions and cruised as far as Java and the Celebes. Their vessels were always long for the breadth and very broad for their draft of water.

In 1774 Mawlāna retired from office in favor of his brother, Pakāru-d-Dīn. Pakār was a weaker man than his brother and practically had very little control over affairs, and always acted in important state questions with the advice and consent of Kibād, his nephew. During his time the English tried to get Bongo Island and to establish a footing near the mouth of the Pulangi.

Sultan Pakāru-d-Dīn was succeeded by Kibād Sahriyāl, who possessed many of the good qualities of his father and ruled with firmness and success. In the meantime the power of Spain in Mindanao had revived and her forces became active again. Kibād maintained friendly relations with Spain and signed a treaty with her in 1794, in which he promised not to enter into any treaty or agreement with another power.

Like his father he had many wives and concubines and begot many children, chief among whom are Sultan Kawāsa and Alamansa Sul-Karnayn.

Kawāsa succeeded his father and maintained the dignity of his office and the prosperity of his sultanate. He is often called Anwāru-d-Dīn (lights of religion) and Amīru-l-Umara (the prince of the princes). He had many children, chief of whom was Intirīnu or Amīrul.

Alamansa died at Dansalan. He had many children, two of whom were Raja Twā, and Datu Dakūla, the prince of Sibugay. Raja Twā begot Untung and Perti. The nation looked to Raja Twā to succeed Sultan Kawāsa, but he died before his uncle, and the sultanate fell to his young son, Untung. Intirīnu was rejected for family reasons and Datu Dakūla was set aside to give representation to the favorite house of Twā.

Untung was known as Sultan Sakandar Qudratu-l-Lāh (Alexander, the power of God). He was also surnamed Jamālu-l-A'lam (A'zham), which

means “greatest beauty.” Qudrat the Second was the last sultan who observed all the customs and rites of the sultanate. He was young when he assumed power, and his reign marked the beginning of the downfall of the sultanate and the actual occupation by Spain of the Rio Grande Valley. In the treaty of 1837 he submitted to the sovereignty of Spain and accepted the subordinate title of Feudatory King of Tamontaka. Spain appointed his successor and prohibited his people from invading any territory west of Point Flechas. She regulated the licensing of boats sailing beyond Zamboanga and erected a trading house at Paygwan, at the mouth of the Rio Grande.

In 1843 Datu Dakūla ceded to Spain the west coast of the Zamboanga peninsula, promised to aid in suppressing slavery, and acknowledged Spanish protection.

In 1845 Sultan Qudrat confirmed the treaty of 1837, with a more definite submission, and allowed the establishment of a Spanish trading house at Cotabato.

This aggression on the part of Spain was prompted by her increased strength and an additional naval revival. Steamboats and improved firearms ended Moro aggression and solved the Moro question. In 1851 Polloc was occupied and was made a naval station. In 1857 Spanish boats advanced as far up as Tambao and drew up a treaty with the sultan of Talakūkū in which he acknowledged his surrender and his submission to the authority of Spain. In 1861 camps were established at Cotabato, Libungan, Tambao, Taviran, and Tamontaka.

Sultan Qudrat begot Mamakū, Ambuludtu, Mastūra, Raja Putri, and others. Mamakū is the present Raja Muda of Magindanao and lives at Cran, Sarangani. Ambuludtu and Mastūra are living at Nūling, about 1 mile above Cotabato. Raja Putri, generally known as the Princesa, was Datu Ūtū’s wife.

Sultan Mohammed Makakwa, the son of Intirīnu, succeeded Qudrat. He was the last sultan of Magindanao who lived in Cotabato. The Spaniards paid him a monthly salary of 70 pesos, but kept him under complete

control. In his days modern Cotabato was built, and in 1871 it was made the capital of Mindanao. An earthquake destroyed the town that year, and in 1872 it was abandoned as capital in favor of Zamboanga.

Makakwa died about 1883, and his son, Pablu, became sultan. Pablu's full title was Sultan Mohammed Jalālu-d-Dīn Pablu. He lived at Banūbu, opposite Cotabato, and was the last sultan who received a salary from the Spanish Government.

In 1884 the Spanish engaged the forces of Idrīs, the sultan of Talakūkū, on the banks of the river at Tambao and completely defeated him. Idrīs then signed a treaty acknowledging unconditional surrender and submission.

During Pablu's life General Terrero conducted the campaign of 1886–87 against Datu Ūtū of Bwayan, and the Spanish gunboats destroyed every fort on the river.

Datu Ūtū resisted the Spanish invasion vigorously and repeatedly, but he was repeatedly defeated, and the Moros of the Rio Grande felt convinced that the arms of Spain were much superior to their own, and have submitted peacefully ever since. Pablu's sultanate was nominal and powerless. In 1888 Pablu died, and the seat of the sultanate remained vacant until about 1896. Pablu died without a male heir. Mamakū, the Raja Muda of Magindanao, did not meet the requirements of the sultanate, so the sultanate passed over to the house of Datu Dakūla the First. The prince of Sibugay had three sons, Pagat, Puyū or Jamālu-l-Kirām, and Datu Dakūla the Second. Pugat, the eldest, begot Mamuppun, the last prince of Sibugay, and Mangigīn. Datu Dakūla the Second begot Datu Dakūla the Third, who lives at Kumaladan, at the head of Damanquilas Bay. Mamuppun was passed over by the council of the datus in favor of Mangigīn, the present sultan.

Mangigīn is a weak man. After his succession he went to Libungan and lived there during Spanish rule. After the Spanish evacuation and after the attack on Cotabato by Datus Ali, Jimbangan, and Piang, which occurred in 1899, he became fearful of the Saraya datus and returned to peaceful Sibugay, his birthplace and the land of his father.

In her conquest of Mindanao Spain directed her forces against the district of Sibugay first, and then against Mindanao. The district of Sibugay was in a state of complete submission before the Rio Grande Moros were controlled. The subjection of Sibugay advanced to such an extent that in 1896 the region was divided into three districts, to each one of which a datu was assigned by Spanish authority. The datu received orders and directions from the governor of Zamboanga direct, and an annual tax of one *real* was imposed upon every Subano and Moro male above the age of 18 years.

¹ Throughout this paper foreign words which do not often appear in an English text are given the same form for both singular and plural.

² Mindanao, Magindanao, and a few other words with the same terminal sound are written in this paper with the final “ao” because they are well-known words. Other words ending with the same sound are written with the final “aw,” in accordance with the author’s rules for transliteration.—[EDITOR.]

³ The word *Kabalalan* means the place of the rattan, because the rattan plant used to grow abundantly on the mountain and its base.

⁴ This word may be a corruption of the name of the bird *Rock* or *Rokh*, mentioned in the Arabian Nights.

⁵ This word is a corruption of the Arabic word *Thul-Fakar*, the name of the famous sword of the Caliph Ali. Ali was a noted warrior.

⁶ The translation here omits the formal words and repetitions and simply gives the names of the descendants in order.

⁷ Sarīp and sharif are both in common use and have the same meaning. The latter is the Arabic form of the word.

⁸ It will be noticed both here and elsewhere that the genealogies are confused and that often it is not possible to make out in the text the descent of a given individual. In explanation of this confusion the translator says: “The Moros do not know any better. This is the way they write. No attempt was made in the translation to change the order of the original text.”—[EDITOR.]

⁹ It is not clear in Moro who the parents were. These are chosen pursuant to the general rule that the pronoun refers to the nearest noun, unless otherwise indicated.

¹⁰ The Malay version said three people, but mentions only the above two, Akmad and Sapak.

CHAPTER II

LAWS OF THE MOROS

General Introduction

The Mohammedan conquerors of Mindanao and Sulu established a new form of government planned on lines similar to those of the Arabian caliphate, and adopted written codes of law for guidance in the administration of the state. In all probability the art of writing was not known in Mindanao and Sulu prior to the Mohammedan invasion. The author has no knowledge of the existence of any written law among the pagan tribes of Mindanao, nor of any written material that antedates Islam in Mindanao or Sulu. The Moros are not savage, though they seem so at first sight. As early as the end of the fifteenth century they could read and write. Mohammedanism encouraged education and invited learning. The Arabic alphabet was applied to the Mindanao tongue, and old Arabic and Malay books on religion and law were translated into the native Magindanao and Ranao dialects. The Moros of Magindanao have translations of the Quran, Hadeeth, some books on law, some commentaries on the Quran, some magic, and other varied literature. Their original writings in the Magindanao tongue consist of many genealogies and stories.

The Sulu Moros have done the same. They acted independently, but on the same general lines.

The languages of Mindanao and Sulu are members of the general Malayan family of languages, but they differ so much as to render intercourse impracticable without an interpreter. The Moros are several tribes, and each tribe differs as much from the others as the Visayan and the Ilocano and the Igorot tribes differ one from another.

The laws of these tribes are different. They came from similar sources, but they were worked out and compiled separately and independently. The present chapter includes the best official codes of Magindanao and Sulu. The manuscripts themselves are undoubtedly authentic and complete. Every care has been taken to render the translations as accurate and complete and useful as possible.

The Luwaran; or, The Laws of Magindanao

Introduction

The term *Luwaran*, which the Mindanao Moros apply to their code of law, means “selection” or “selected.” The laws that are embodied in the *Luwaran* are selections from old Arabic law and were translated and compiled for the guidance and information of the Mindanao datu, judges, and *pandita* who do not understand Arabic. The Mindanao copies of the *Luwaran* give no dates at all, and nobody seems to know when this code was made. They say it was prepared by the Mindanao judges some time ago, but none of those judges is known by name. Datu Mastura’s copy of this code was written about 1886, and it is undoubtedly copied from some older manuscript. The original manuscript¹ accompanying this code is older still, but it bears no date at all.

The Arabic books quoted in the *Luwaran* are *Minhāju-l-Ārifeen*, *Taqreebu-l-Intifā*, *Fathu-l-Qareeb*, and *Mirātu-t-Tullāb*. The first of these, generally known as the *Minhāj*, is the chief authority quoted. Datu Ūtū had an old copy of the *Minhāj* that looked more than two hundred years old. The author of the *Minhāj* must have lived in the ninth or tenth century. The compilation of the *Luwaran* must have been made before the middle of the eighteenth century.

Each Mindanao datu is assisted in the administration of justice by a judge and a vizier. The judge is called Datu *Kali*. The word *kali* is derived from the Arabic word meaning “judge.” The Datu Kali is the chief *pandita* of the district and is supposed to be the best-informed man of the community. The *pandita* is the scholar who can read and write and perform the functions of a priest. The vizier is called “*wazir*,” he is a *pandita*, too, and acts in a semijudicial and clerical capacity. Mohammedan law being based on the teachings of the Quran, the chief *pandita* of the district is naturally regarded as the most competent expounder of the law and the best-fitted person in the community to act as a judge. As the *wazir* is a *pandita*, he should be a well-informed and wise man. Some datu are *pandita* themselves, and some take all matters into their own hands and delegate none of their offices or duties to a judge or a vizier; but this is the exception, not the rule.

In making the *Luwaran* the Mindanao judges selected such laws as in their judgment suited the conditions and the requirements of order in Mindanao. They used the Arabic text as a basis, but constructed their articles in a concrete form, embodying genuine examples and incidents of common occurrence in Mindanao. In some places they modified the sense of the Arabic so much as to make it agree with the prevailing customs of their country. In a few instances they made new articles which do not exist in Arabic but which conform to the national customs and common practices. The authority of the *Luwaran* is universally accepted in Mindanao and is held sacred next to that of the Quran. The Mindanao judge is at liberty to use either of them as his authority for the sentence to be rendered, but as a rule a quotation from the Quran bearing on the subject is desirable.

All datu and viziers and all persons acting in the capacity of a chief or a vizier find the *Luwaran* very convenient and helpful. Very few people can become *kali*, but all who are able to read can study and use the *Luwaran*. Consequently the *Luwaran* has had general use, and copies of it are seen in all the districts that speak the Magindanao dialect. To establish this fact copies of it were secured from the ruling datu of Bagumbayan and of Saraya or the upper valley.

The copy² secured from Datu Mastura is by far the most complete of all. The text is well written, neat, and distinct. The original Arabic articles are written

separately on the margin of the book and opposite the Magindanao articles with which they were supposed to correspond. Datu Mastura is the best living descendant and representative of the house of Mindanao, and he probably owns the most reliable books and documents that have been transmitted from the previous generations.

This book is certainly the best specimen of Magindanao literature; it is genuine, correct, and well written. On account of inability to secure the book itself, an accurate and exact copy of the same was taken. The Magindanao articles are written separately and are numbered for convenience in reference. The translation is not exactly literal, but nearly so.

The Arabic marginal quotations are copied separately and are numbered in the order in which they appeared in the original copy. They are also translated, and a table indicating the Arabic quotation which corresponds to each article of the *Luwaran* is attached to the introduction to the translation.

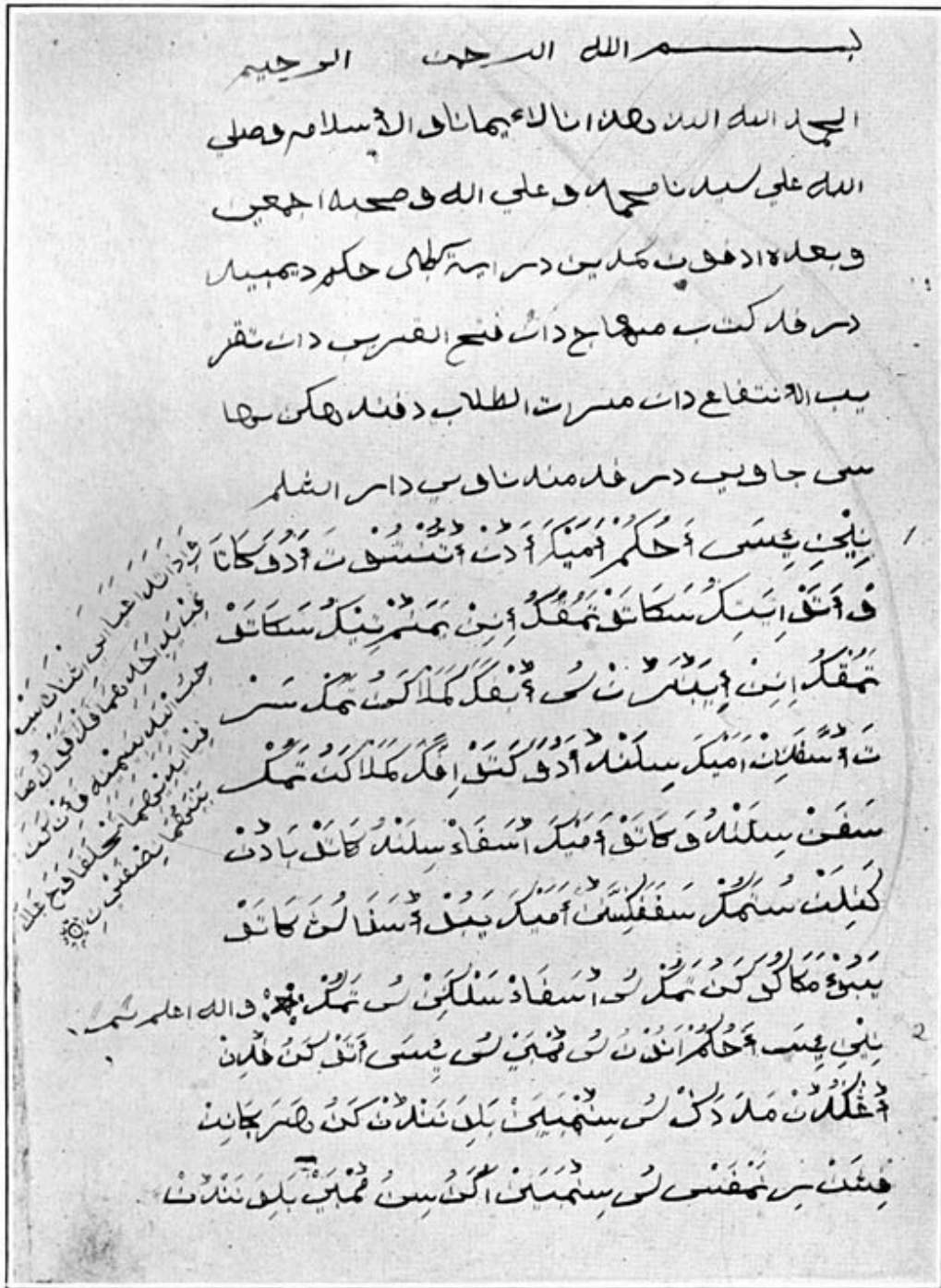
In actual practice the Moros do not distinguish between custom and law. Many of their customs are given the force of law, and many laws are set aside on account of contradiction to the prevailing customs of the day.

Slavery is such an established custom and institution of the land that it is generally sanctioned and supported in the *Luwaran*.

An oath on the Quran is so firmly binding and the fear of perjury is so strong in the mind of the Moro that oaths are generally taken and are always regarded as sufficient confirmation even in the absence of evidence.

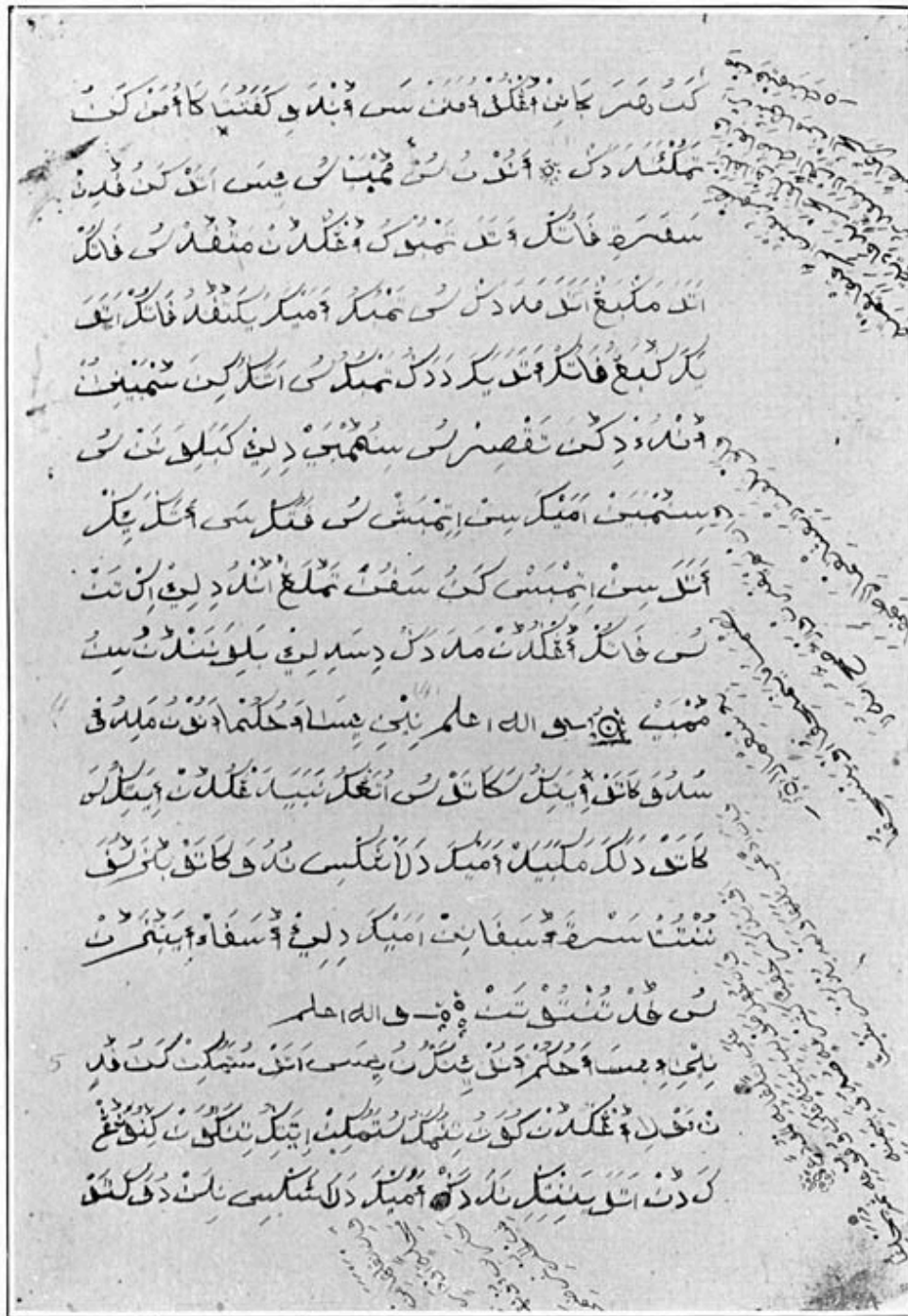
The Moros are not strict nor just in the execution of the law. The laws relating to murder, adultery, and inheritance are seldom strictly complied with. Indeed, the laws of inheritance as given in the *Luwaran* are generally disregarded and are seldom considered at all. Mohammedan law does not recognize classes, except the slave class. But Moro law is not applied equally to all classes. Great preference is shown the datu class, and little consideration is given to the children of concubines.

The *Luwaran*, nevertheless, is the recognized law of the land and compliance with it is a virtue.



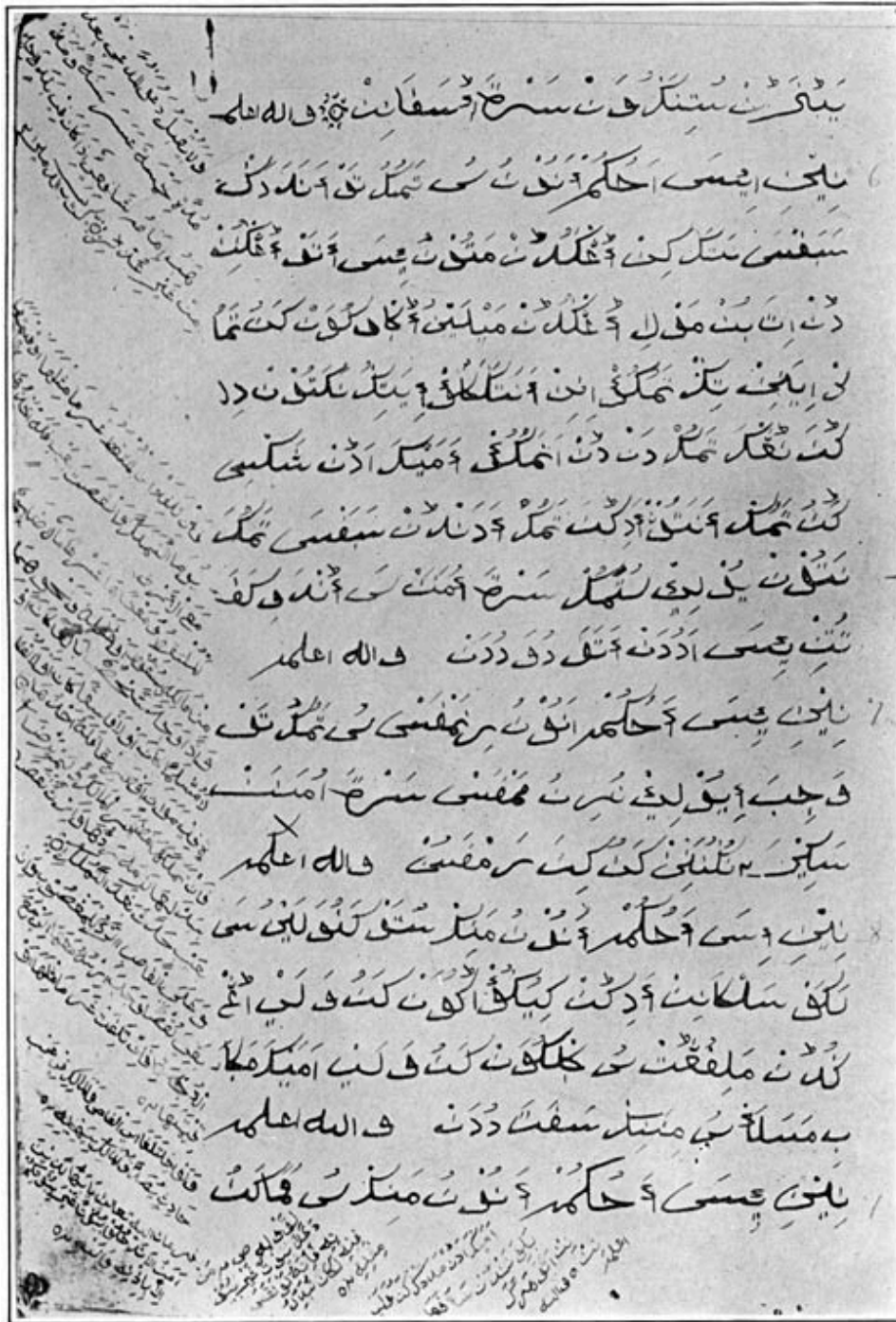
First page of an original manuscript copy of the Luwaran

Photo by Martin. (One-half original size.)



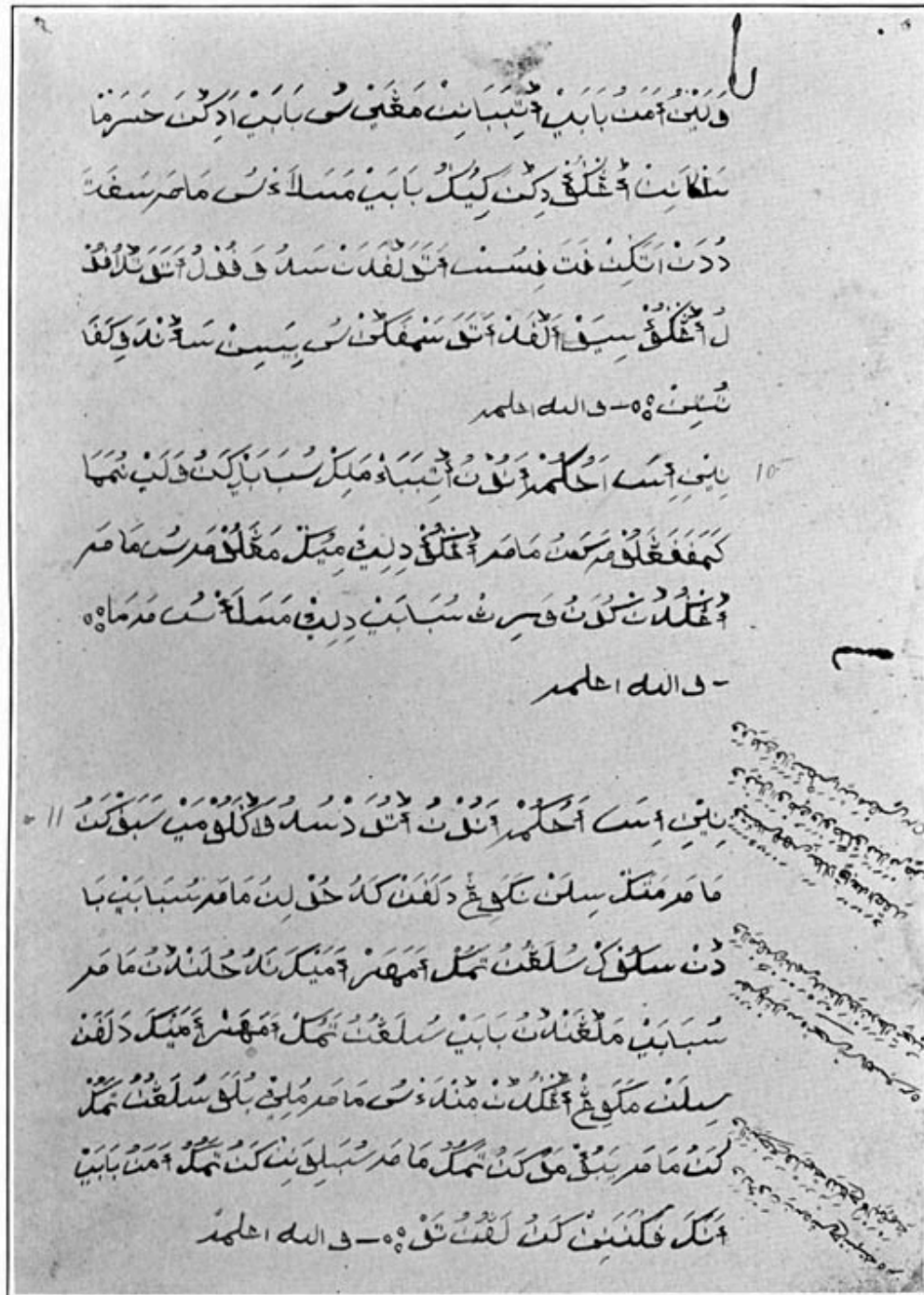
Second page of an original manuscript copy of the Luwaran

Photo by Martin. (One-half original size.)



Third page of an original manuscript copy of the Luwaran

Photo by Martin. (One-half original size.)



Fourth page of an original manuscript copy of the Luwaran

Photo by Martin. (One-half original size.)

Translation of the Luwaran, the Magindanao Code of Laws

In the name of God the Compassionate and Merciful, praise be to God, who led us to the faith and religion of Islam. May God's blessing be with our master Mohammed and with all his people and followers.

The following articles are taken from the *Minhāj* and *Fathu-l-Qareeb* and *Taqreebu-l-Intifā* and *Mir-ātu-t-Tullāb* and have been translated from the Arabic into the Java (Malay) dialect of Mindanao, the land of peace:

ARTICLE I

If two people disagree as to the ownership of a certain property, the actual possessor has the right to the property if he swears to that effect. In case both of them are in actual possession of the property, both ought to swear. If both of them swear to that effect, the property shall be divided between them equally. If only one person swears, the property shall be given to that person alone.

ARTICLE II

If a person borrows an article and loses it, he shall replace it or pay its value. The same rule shall apply in case the article is stolen. There shall also be paid a reasonable additional compensation for the lost article.

ARTICLE III

If a person borrows an ax or a button, and the ax is broken or the button lost while being used for the purpose for which it was loaned, and not on account of carelessness, the lost article shall not be replaced. But if the ax is used at a place overhanging the water or is used to cut a stock of bamboo without being well tied or fastened, and is lost, it shall then be replaced.

ARTICLE IV

If two persons disagree as to whether or not a certain debt has been paid and have no witness to the fact, the plaintiff's claim shall be sustained in case he confirms it by an oath. In case he refuses to take an oath the defendant's claim shall be sustained.

ARTICLE V

If a person intrusts another with his property and later calls for it and it is denied him on the plea that it has been taken back or that it was lost, and no witness can be obtained, the trustee's plea shall be sustained if he confirms it by oath.

ARTICLE VI

If a person enters a claim to his lost property which has been found and kept by another person, and the finder refuses to deliver the property on the plea that it is his own property and that it has been in his possession for a long time, and there be a witness who testifies that the property is a find and not an old possession of the finder, the finder shall return the property found and pay a compensation of one cuspidor or two.

ARTICLE VII

The seizer of another's property shall return the seized property and pay an additional amount proportional to the interest derived from the property.

ARTICLE VIII

If a person enters the house of another at night without the consent of the owner thereof, and the said owner complains of the offense, the defendant shall be fined four cuspидors.

ARTICLE IX

If a man enters the house of another with the intention of holding private intercourse with a woman therein with whom it is unlawful for him to associate privately, and the woman objects, he shall be fined four cuspидors or

four pesos, or shall suffer from twenty to thirty-nine lashes, or shall be slapped on his face, at the discretion of the judge.

ARTICLE X

If a woman comes into the house of a man with the intention of marrying him and of living with him, and the man refuses to marry her and she is later taken away by her people, the man shall not be liable to fine or punishment.

ARTICLE XI

SECTION 1. If a man divorces his wife after the conclusion of the marriage act or ceremonies, and before any sexual intercourse has taken place, the woman shall have half of the dower only. If the divorce occurs after sexual intercourse has taken place, the woman shall have all the dower.

SEC. 2. If a man refuses to marry a woman after having been engaged to her, the whole dower shall be returned to him, excepting the expenses for the feast incurred by the father of the woman.

ARTICLE XII

If a person curses or abuses another person without cause, he shall be fined not more than three cuspidors.

ARTICLE XIII

SECTION 1. If a person falsely claims another person as his slave, he shall be fined the value of one slave.

SEC. 2. If a person defames another person by calling him *balbal* (a human being who transforms at night into an evil spirit which devours dead people) or poisoner, he shall be fined one slave or the value of one slave.

ARTICLE XIV

If both the giver and the receiver understand that a return gift shall be made for a certain given property and the receiver fails to make the gift, the giver

can take back the gift.

ARTICLE XV

No gift given without expectation of reward can be recovered after the receiver has had possession of it. But if the giver changes his mind before the receiver takes possession of the gift, the giver resumes his ownership of the given property.

ARTICLE XVI

Property the gift of parents to their child shall be recoverable if it has not been expended or destroyed.

ARTICLE XVII

In the discretion of the judge and the datu, a thief of property amounting to the value of one *malong* or more shall have his hand cut off and shall return the stolen property. If the stolen property does not amount to the value of one *malong*, the thief shall suffer thirty-nine lashes or pay a fine of four cuspidors.

ARTICLE XVIII

If there is any doubt of the truth of evidence or the truthfulness of a witness, they shall be confirmed by oath.

ARTICLE XIX

Testimony of a slave which is detrimental to himself shall be accepted.

ARTICLE XX

Testimony of children and of the insane or imbecile shall be held invalid.

ARTICLE XXI

If a person enters a house without permission and in the absence of the owner, he shall be held responsible for and shall restore or pay for any article that may be found missing from said house. A person who enters the field of

another shall likewise be held responsible for and shall restore or pay for any article that may be found missing from said field.

ARTICLE XXII

If a person loans or sells to a slave without the knowledge or consent of the master of the slave, the person who loans or sells shall be guilty of a misdemeanor; and the master of the slave shall not be held responsible for the transaction of his slave.

ARTICLE XXIII

If in the course of an agreement for the sale of property questions arise respecting the price or the amount of the sold property, and no witness can be obtained, the seller shall be sustained if he confirms his statement by oath; but the statement of the buyer shall be sustained if the seller fails to take oath.

ARTICLE XXIV

If the seller and the buyer differ as to whether a certain defect in the purchased property developed prior to or later than the date of the purchase, the seller's statement shall be sustained if he confirms it by oath; otherwise the buyer's statement shall be sustained.

ARTICLE XXV

If after the purchase of property the buyer discovers a defect in the property which existed prior to the sale or purchase, he may return the property to the seller and pay him a reasonable compensation proportional to the decrease occasioned in the value of the property through the detection of the defect; and the buyer shall then recover the purchase price of the property.

ARTICLE XXVI

No purchased property shall be returnable to the seller on account of a defect therein which has developed after the sale.

ARTICLE XXVII

If a person buys a slave and later discovers a defect in him and returns him to the seller, but the seller denies the slave's identity, the statement of the seller shall be sustained if he confirms it by oath; otherwise the statement of the buyer shall be sustained. Similar cases pertaining to other kinds of property shall be judged similarly.

ARTICLE XXVIII

It shall be lawful to return promptly purchased property which is defective. The return shall not be delayed longer than prayer time or mealtime, or one night in event of the purchase having been made in the evening.

ARTICLE XXIX

If a creditor dies and his heirs sue his debtor, but the debtor denies the debt on the plea that the deceased creditor gave him as a gift, or in charity, or that he has paid for that for which he is sued, and there is no witness, the heir must swear. Failure to swear on the part of the heir shall render the debtor free from payment of the debt.

ARTICLE XXX

If a person buys property or a slave, and another person recognizes the slave or property as his own and lays claim thereto, and is able to produce a witness to that effect, the buyer shall return the purchased property or the slave to the seller, but shall recover whatever he has paid.

ARTICLE XXXI

If a person finds his property in the possession of another, and is able to recover it without any injury or injustice, he shall be justified in so doing. But in the event of an objection being raised to the recovery or in case an injury or injustice is unavoidable in recovering the property, he shall present the matter to the datu and to the judge, after which it shall be justifiable for him to take his property even though it be necessary to break through a door or through walls to do so. Under any circumstances he shall have the right to recover his property, or its equivalent in kind, or any other substitute not in excess of the value of the property.

ARTICLE XXXII

If, while a person is spying on the house of another, the occupants throw a stone or other thing out of the house and thereby cause the death of the spy, no guilt shall be attached to their action.

ARTICLE XXXIII

If the provisions or the fowls of a person are eaten by cats or cattle, and the owners thereof are notified by the injured person to secure their animal or animals, and the warning or notice is disregarded so that the provisions or fowls are eaten up, the owners of the cats or cattle shall be held responsible for the loss.

ARTICLE XXXIV

SECTION 1. If a person seduces or cohabits with a female slave, held by him as security for debt, with the knowledge or consent of the debtor, he shall not be held guilty; but he shall give her a dower.

SEC. 2. If the seduction or cohabitation occurs without the consent of the debtor, the creditor shall be liable to a fine, or shall give the woman a dower to be paid to the debtor.

SEC. 3. If the creditor begets a child of the slave held as security in the preceding section, he shall buy the child from the debtor; otherwise the child shall become the slave of the debtor.

ARTICLE XXXV

If the creditor and the debtor differ as to the security or its amount, the debtor's statement shall be sustained if confirmed by oath; otherwise the statement of the creditor shall be sustained.

ARTICLE XXXVI

If the security is lost and no blame is attached to the creditor, he shall not be held responsible for the loss, and the debtor shall not be relieved from his

debt.

ARTICLE XXXVII

If a principal and his agent differ, and the agent claims that he has acted in accordance with the orders of his principal, and the claim be denied by the principal, the statement of the latter shall be sustained if confirmed by oath.

ARTICLE XXXVIII

If a married woman commits adultery, both adulterer and adulteress shall suffer eighty lashes. If the lashes are changed or reduced to a fine, half the number of the woman's lashes shall be added to the man's fine.

ARTICLE XXXIX

If a person charges another with the payment of his debt, and the creditor sues the proxy for the unpaid debt, but the proxy claims to have paid the same, the creditor's statement shall be sustained if confirmed by oath.

ARTICLE XL

If a man seduces a maiden, both shall suffer one hundred lashes, and the man shall marry the woman and live with her even though he is married.

ARTICLE XLI

The statement of the plaintiff shall be sustained if confirmed by a witness. If there is no witness, the defendant shall take an oath.

ARTICLE XLII

If slaves commit adultery, both man and woman shall suffer fifty lashes.

ARTICLE XLIII

If a married man commits adultery with a free woman, both shall be stoned to death. The punishment of the man may be reduced to imprisonment. The

woman shall be buried up to her chest and be stoned with medium-sized stones.

ARTICLE XLIV

If a free man seduces a maiden slave, the property of another person, and she becomes pregnant and dies during childbirth, the seducer shall then pay the value of the slave to her owner.

ARTICLE XLV

If a bachelor or widower commits adultery and is killed by a non-Mohammedan, the non-Mohammedan shall be put to death. But a Mohammedan who may kill such an adulterer shall not be put to death.

ARTICLE XLVI

If a man recognizes his cattle or his trees in another's charge and notifies him of the fact, and has a witness to confirm his statement that the cattle or trees are his, he shall be entitled to the produce of the cattle or of the trees although they remain in the charge of the other. Likewise, if a slave who has been lost is recognized by his master in the charge of another person, and the master of the slave notifies that person of the fact that the slave is his and has a witness to confirm his statement, he shall be entitled to whatever his slave may produce if he remains in the charge of the person aforesaid.

ARTICLE XLVII

If a man rents a field of another with the intention of cultivating it, but later fails to do so and returns it to the owner thereof, he shall be liable for the rent and shall pay the same at harvest time, as though he had cultivated the land and reaped the produce. Likewise, if a boat is hired, the hire thereof shall be paid to its owner, whether or not it has been used for the intended travel.

ARTICLE XLVIII

If a slave runs away and enters the house of a certain person, or if a person finds a runaway slave, the owner of which is known to him but to whom he

fails to give notice of the fact, and the slave again runs away, he, the finder, shall be responsible for the slave to the owner thereof.

ARTICLE XLIX

If a married man leaves his home on a long journey and nothing is heard of him, his wife shall not have the right to marry another; but if she learns that he has died or that he has divorced her, she shall then wait four years, after which she shall observe the customary mourning for his death; then she may marry again. The judges shall be careful not to change this decree in order that their power and influence may not suffer.

ARTICLE L

If a boat is in danger of sinking, it shall be right and proper to throw its cargo overboard. But if a man throws away property without the knowledge of the owner thereof, and the boat does not sink, he shall replace the property. If a person tells another to throw his property overboard, promising to replace it, and the property is thrown overboard but the boat does not sink, he shall replace the property; but where there has been no promise to replace the property he shall not be held liable.

ARTICLE LI

SECTION 1. If a debtor dies, his debts shall be payable from his estate, his estate being regarded in the nature of a security.

SEC. 2. If a debtor dies and leaves no estate, his heirs shall not be liable for his debt. By heirs is here meant parents, children, brothers, sisters, grandchildren, or grandparents.

SEC. 3. If a debtor dies and leaves an estate to his heirs, the estate shall be expended in payment of his debts whether it is sufficient in amount or not.

SEC. 4. If the heirs divide their inheritance before they know of the existence of a claim for debt against the estate, they shall return their shares to pay the debt, whether the inheritance is sufficient or not; and if they have used their

inheritance prior to the knowledge of the debt, they shall pay out of their own property an amount equal thereto in payment of the debt.

ARTICLE LII

If a man orders another to shoot at a deer, believing that he is ordering him to shoot at a deer, and the person shoots believing also that he is shooting at a deer, but hits a man, neither the shooter nor the man who has ordered him to shoot shall be liable to punishment, but shall pay only a light fine as blood money. Likewise, if a man orders another to shoot at a tree, believing that he is ordering him to shoot at a tree, and the person shoots, believing also that he is shooting at a tree, but hits a man, neither the shooter nor the man who has ordered him to shoot shall be liable to punishment, but shall pay only a light fine as blood money.

ARTICLE LIII

In case a person orders another person to climb up a tree and the climber falls from the tree, there shall be no liability to punishment, whether the person dies or not. A medium fine only shall be paid as blood money.

ARTICLE LIV

If a female slave in the possession of a certain person has a child which is recognized by another person as his own child and born of the slave during her stay in his possession, and the claim is denied by her present owner and there is a witness to the truth of the claim, the plaintiff shall confirm his testimony by oath. Failure to confirm this testimony by oath and the lack of conclusive evidence that the child is a free child, begotten by the plaintiff of the slave, shall render the claim null.

ARTICLE LV

If a man recognizes a slave whom he has liberated in the possession of another man who denies the claim, and there is a witness who bears out the claim of the plaintiff, the plaintiff shall confirm his statement by an oath, and, having taken an oath, may recover his slave and reliberate him. But his statement shall not be sustained if an oath is not taken.

ARTICLE LVI

SECTION 1. If two persons enter into partnership and later one of them asks the other to sell the property or stock and divide the proceeds, and the property is sold and its amount received, but the seller claims the whole amount as his, to which the other partner objects on the ground that it belongs to the partnership; or if the seller claims that it belongs to the partnership, and the other partner claims that it is his own, the statement of the person in possession of the property or its price shall be sustained if confirmed by oath; but otherwise it shall be rejected.

SEC. 2. If in the preceding case the seller divides the proceeds and gives his partner a part thereof and holds the remainder for himself, claiming that the amount of the proceeds has been divided, but the other partner refuses to accept the division on the ground that it has not occurred, the claim against the division by the complaining partner shall be sustained if confirmed by oath; otherwise it shall not be sustained.

SEC. 3. If one of the two partners in the preceding case buys and takes possession of the property of the partnership and then denies that it is the former property, claiming that it has been bought by some one else, to which the other partner objects as a false claim, the statement of the latter shall be sustained if confirmed by oath; otherwise the buyer's statement shall be sustained.

ARTICLE LVII

SECTION 1. If a free man kills another free man, or a free woman kills another free woman, or a slave kills another slave, the slayer shall be punished.

SEC. 2. If a free man kills a slave, the free man shall not be put to death.

SEC. 3. If a slave or other servant kills a free person, he shall be put to death.

ARTICLE LVIII

The blood money for the life of a woman or of a hermaphrodite shall be half that of a man; so also shall the fines for wounding a woman be rated as half

those for wounding a man.

ARTICLE LIX

If a free man divorces his wife three times, or a slave divorces his wife twice, it shall not be lawful for him, the man, to marry again before the divorced woman is married to another person.

ARTICLE LX

SECTION 1. If the husband of a pregnant free woman dies, or a free woman is divorced, she shall mourn four months and ten days.

SEC. 2. If a slave woman is divorced, she shall mourn two months and five days.

SEC. 3. If a pregnant free woman is divorced, she shall mourn until childbirth.

ARTICLE LXI

If a person throws the sweepings of a house or the parings of fruits on the road, and a person carrying certain articles and passing on the road steps on them and thereby slips and falls and loses his property, the person who threw the sweepings or the fruit parings on the road shall pay for the lost property. He shall also be responsible for any injury resulting from the fall.

ARTICLE LXII

If a person gives an imbecile or an insane person or a child poison to eat, and said child, insane person, or imbecile dies as a result thereof, he shall be punished.

ARTICLE LXIII

If a man gets drunk and fights or kills another, he shall be liable to punishment.

ARTICLE LXIV

If a child or an imbecile or an insane person kills another person, he shall not be liable to punishment, but shall pay blood money.

ARTICLE LXV

If a child under age is in a high place and is frightened by some person and as a result thereof falls and dies, the person who frightened him shall pay his blood money.

ARTICLE LXVI

If a person who is shooting or hunting startles a child who happens to be in some high place, and the child falls and dies as a result thereof, he shall pay a small fine as blood money.

ARTICLE LXVII

If a slave is wounded, the fine in compensation for his injury shall be the price of the slave in case of death, or an amount equal to the decrease in the value of the slave in case he does not die.

ARTICLE LXVIII

SECTION 1. If a slave is guilty of cutting another, he shall be liable for the fine thereby incurred; if his master does not pay the fine, he may sell the guilty slave and pay the fine from the amount received therefor.

SEC. 2. If the master of the guilty slave refuses to sell him, he shall compensate for the decreased value of the slave who has been cut.

ARTICLE LXIX

SECTION 1. If a plaintiff produces a witness, his statement shall be sustained.

SEC. 2. If a plaintiff has not a witness, the defendant shall take an oath; but if the defendant refuses to take an oath, the plaintiff shall swear and his statement shall be sustained.

ARTICLE LXX

If the owner of a slave dies and his heirs claim the slave, and the slave objects on the ground that he had been liberated by his deceased master, the slave shall take an oath to that effect, which oath shall confirm his statement; but if an oath is not taken by the slave, the claim of the heirs shall be sustained.

ARTICLE LXXI

All property loaned shall be paid back in kind, but if that be impracticable, the value thereof shall be accepted.

ARTICLE LXXII

The will of a free person shall be legitimate whether he be a non-Mohammedan or a person of bad character; but the will of an insane person or an imbecile or a child or a slave shall not be legitimate.

ARTICLE LXXIII

If the legatee dies before the testator, the will shall be held invalid; but if the legatee dies after the death of the testator, the heirs of the legatee shall be entitled to his share under the will.

ARTICLE LXXIV

If a person wills his estate to one of his heirs, the will shall be sustained if the other heirs consent to it; but if they do not consent, the will shall not be sustained.

ARTICLE LXXV

If a person recognizes his property in the possession of another, which property he has neither sold nor given away as charity or otherwise, it shall be lawful for him to take or recover his property, unless he is afraid of being killed. In case he is afraid, he shall present the matter to the datu and then to the judge.

ARTICLE LXXVI

The action of a guardian or agent shall be binding on the ward or the principal, respectively. The insane, imbeciles, or children shall never be guardians or agents.

ARTICLE LXXVII

If two persons collide unintentionally and one person is injured, the liability of the guilty person for the fine or compensation thereby incurred shall extend to his heirs. The fine shall be small.

ARTICLE LXXVIII

If in the preceding case the collision is intentional, the liability shall be the same, but the fine shall be equal to half the limit.

ARTICLE LXXIX

If children or imbeciles or insane persons collide, the same law shall govern as in the case of *sui juris* persons.

ARTICLE LXXX

SECTION 1. A son, the only child, shall inherit all of the estate of his father and mother.

SEC. 2. A daughter, the only child, shall inherit half the estate of her father and mother.

SEC. 3. Two or more sons, the only children, shall share the estate of their father and mother equally.

SEC. 4. In case one son and one daughter are the only children, the estate of the father and mother shall be divided into three equal parts, of which the son shall receive two parts and the daughter one part.

SEC. 5. In case of multiplicity of sons and daughters, the estate shall be so divided as to give each daughter half the share of one son.

ARTICLE LXXXI

A husband shall inherit half the estate of his wife in event of her death and when she has neither a child nor a grandchild.

ARTICLE LXXXII

In the event of the death of a wife who has children or grandchildren, her husband shall inherit one-quarter of her estate only, and the other heirs shall inherit the remaining three-quarters.

ARTICLE LXXXIII

In the event of the death of a man who has no children or grandchildren, his wife shall inherit one-quarter of his estate only.

ARTICLE LXXXIV

In the event of the death of a man who has children or grandchildren, his wife shall inherit one-eighth of his estate only.

ARTICLE LXXXV

SECTION 1. A father or son or wife or husband can not be disinherited by other heirs.

SEC. 2. A son disinherits full brothers and sisters, and all other heirs.

SEC. 3. Full brothers and sisters disinherit more remote heirs.

SEC. 4. A grandfather, a father, and a grandson disinherit a brother or sister from the mother alone, or other heirs.

SEC. 5. A grandfather, brother, son, and uncle or aunt on the father's side disinherit a full nephew or niece, or more remote heirs.

SEC. 6. A full nephew disinherits another nephew who is not from a full brother or sister.

SEC. 7. A nephew on the father's side disinherits a full cousin and more remote heirs.

SEC. 8. A full uncle³ or aunt disinherits an uncle or aunt on the father's side.

SEC. 9. A full cousin disinherits a cousin on the father's side.

God's knowledge surpasses our knowledge.

[THE END]

This copy [the original] was made at noon of the 20th day of *Jamādu-l-awal*, in the year of the war between Bwayān and the infidels [non-Mohammedans].

WOUNDS

Wounds are classified with respect to depth, locality, and tissue cut. To each class of wound a definite fine is fixed.

CLASS I

SIMPLE WOUNDS

The fine for wounds of the skin unaccompanied by bleeding shall be three pesos.⁴

CLASS II

BLEEDING WOUNDS

The fine for wounds of the skin accompanied by bleeding shall be five pesos.

CLASS III

SKIN-PENETRATING WOUNDS

The fine for wounds of the skin where the skin is cut through and the flesh exposed shall be ten pesos.

CLASS IV

FLESH WOUNDS

The fine for wounds where the skin and flesh are cut through shall be fifteen pesos.

CLASS V

PERIOSTEAL WOUNDS

The fine for wounds where the skin and flesh are cut through and the periosteum exposed shall be twenty pesos.

CLASS VI

DEEP WOUNDS

The fine for wounds that cut into the bone shall be twenty-five pesos.

CLASS VII

FRACTURE WOUNDS

The fine for wounds where the bone is fractured and cut through shall be fifty pesos.

CLASS VIII

DISLOCATING WOUNDS

The fine for wounds where the bone is dislocated shall be seventy pesos.

CLASS IX

SKULL-PENETRATING WOUNDS

The fine for wounds where the membranes of the brain are penetrated shall be two hundred and fifty pesos.

CLASS X

BRAIN WOUNDS

The fine for wounds where the brain is penetrated shall be three hundred pesos.

CLASS XI

BLOOD MONEY

The blood money for the intentional or willful murder of a Moslem shall be one hundred camels or one thousand three hundred and seventy pesos.

CLASS XII

The fine for amputating or cutting off one hand at the wrist, or higher, shall be fifty camels or six hundred pesos.

CLASS XIII

DEEP BONE WOUNDS OF THE HEAD OR FACE

The fine for deep wounds of the head or face shall be five camels, or sixty-eight and one-half pesos.

CLASS XIV

FRACTURE WOUNDS OF THE HEAD OR FACE

The fine for fracture wounds of the head or face shall be ten camels, or one hundred and thirty-seven pesos.

CLASS XV

DEEP STAB WOUNDS

The fine for deep stab wounds shall be thirty-three camels and one-third, or four hundred and fifty-six and two-thirds pesos, which is one-third of the amount of blood money.

CLASS XVI

The minimum amount of the blood money of a Moslem shall be eight hundred and sixty-eight and one-quarter pesos.

CLASS XVII

The minimum blood money of a heathen or pagan, fifty-seven and one-quarter pesos.

CLASS XVIII

The fine for an involuntary deep wound of a pagan shall be two and four-tenths pesos.

CLASS XIX

The blood money for the accidental or involuntary murder of a pagan shall be forty-three and one-third pesos.

CLASS XX

The fine for the intentional deep wound of a pagan shall be four and two-tenths pesos.

Arabic Marginal Quotations of the Luwaran

Introduction

These quotations are given here in the same order in which they appear on the margin of the original copy of the *Luwaran*, with only a few clerical corrections. They are selections from Arabic books on law and religion, and form the basis of the Magindanao law as given in the *Luwaran*. The order

they come in does not always conform to the order of the corresponding articles of the *Luwaran* to which they are appended. The Magindanao judges who prepared the *Luwaran* used these texts or quotations as authority for the corresponding Magindanao articles they made. But subsequent scribes must have changed the order of these texts on account of their ignorance of the meaning of the Arabic text and the places where they should be applied.

For aid in reference the following table is prepared:

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Translation of the Arabic Marginal Quotations of the Luwaran

1. The person in charge of a property the subject of a suit has the first right to that property; his right must, however, be confirmed by oath. If both parties have charge of the property, their rights shall be regarded equal, and both parties shall take oath.
2. The compensation for a slave shall be equal to his value. The loss of a limb shall be compensated for by the amount by which that loss reduces the value of the slave.
3. No indemnity shall attach to the loss or damage of an article borrowed if such loss or damage be incurred in the proper use of such article.
4. The plea of the defendant in reference to the loss of a borrowed article shall be confirmed by oath. In cases of doubt the loss shall be established first by evidence, and the plea of the defendant shall then be confirmed by oath.
5. If the borrowed article or property is subjected to insecurity or danger, responsibility shall attach to such an action.
6. No suit shall be triable after the lapse of fifteen years from the date of the act giving rise to the suit. Imam Shafii restricted the application of this law to cases where the plaintiff and the defendant live in one town, and where the delay was avoidable.
7. Lost or damaged finds shall be compensated for in kind or in value.
8. A find shall be the property of the finder irrespective of his religion or character.

9. The find shall be delivered to its owner, if the owner is known. The finder shall be held responsible for loss of the find or damage to it as long as the find is in his charge.

10. Property seized by force shall be returned to its owner with compensation for any loss that may have been incurred by the seizure. If the seized property be lost, the seizer shall compensate for the loss in kind or in value.

11. If the seizer and the owner differ concerning a defect in the property, the owner's statement shall be valid if confirmed by oath.

12. God said, "To you believers I say, you shall not enter the houses of others without their permission."

13. Mohammed said, "Whoever enters the house of another shall be responsible for the loss that may occur therein."

14. If a divorce occurs after marriage but prior to sexual intercourse, half the dower shall be paid. If the divorce occurs after sexual intercourse, all the dower shall be paid.

15. No dower shall be paid if the marriage contract is broken prior to sexual intercourse.

16. The expenses of the marriage feast shall not be recovered.

17. A gift conditioned on compensation may be recovered in kind or value.

18. The will of the giver and the acceptance of the receiver shall determine the gift.

19. A gift not conditioned on compensation shall not be recoverable.

20. A thief shall have his hands cut off.

21. The thief shall return the stolen property or compensate for its loss.

22. The confession of the thief and the oath of the plaintiff shall confirm the theft.

23. The plaintiff's oath if corroborated by evidence shall confirm the theft.

24. If the statement of the defendant begins with confession and ends with denial, the confession shall be regarded valid.

25. The testimony of a minor or insane person is null.

26. The testimony of a slave shall be valid when it bears a disadvantage or punishment to himself.

27. A slave shall not be contracted with or loaned without the permission of his master.

28. A slave shall be liable for the payment of a debt contracted prior to liberation.

29. If the vender and the vendee differ as to the time a certain defect developed in the property sold, the vender's claim shall be sustained if confirmed by oath.

30. Differences between the vender and the vendee as to the amount or price of the property sold or date of the purchase shall be subject to oaths by both parties.

31. If a defect in the purchased property is recognized after the conclusion of the sale, the property may be returned to the vender, who shall retain of its price an amount equal to the reduction in the value of the property occasioned by the discovery of the defect.

32. The occurrence of a defect in a slave after the conclusion of the contract does not constitute a right by which the vendee can revoke the sale contract.

33. If a person purchases a slave and later presents a defective slave and requests the revocation of the purchase contract, and the vender denies the identity of the slave, the vender's statement or plea shall be sustained if confirmed by oath.

34. If a defect is observed during prayer or meals or at night, notice thereof may be delayed for the time necessary to finish the prayer or meal, or overnight.

35. Other nonpermissible delays annul the right to revoke a sale contract.

36. If a debtor is sued by the legatee of the creditor and makes the plea that the debt was canceled, the legatee shall take oath to the effect that he has no knowledge of the cancellation of the debt.

37. A sale contract may be revoked if it does not define the price of the property sold.

38. The right to property justifies breaking a door or breaking through walls for the purpose of securing it, or its equivalent in kind.

39. If a person spies on the wife of another person through cracks or holes in her house and an occupant throws a stone at him which hurts or kills him, no fault shall attach to such action.

40. If the owner of a cat is warned of the fact that his cat eats fowls or provisions of others and the cat repeats such an act, the owner of the cat shall be held responsible for its action.

41. If a woman is held as security for debt, and her trustee cohabits with her, without the knowledge and consent of the debtor, his action shall be regarded as adultery and he shall pay her dower. If such cohabitation is with the consent of the debtor, no blame shall attach to such action, but the creditor shall pay her dower. The child born under such conditions shall be regarded as a free child, but his value shall be paid to the debtor.

42. In cases of difference between the debtor and the creditor in reference to the security and its value, the debtor's statement shall be sustained if confirmed by oath.

43. The creditor shall not be held responsible for the unavoidable loss or destruction of the security.

44. In cases of difference between the principal and his agent in reference to the compliance of the latter with the instructions of the former, the statement of the principal shall be sustained if confirmed by oath.

45. The penalty for adultery committed with a married woman shall be eighty lashes.

46. If an agent is intrusted with the payment of a debt of his principal and is sued by the creditor for his failure to pay the debt, the statement of the creditor shall be valid if confirmed by oath.

47. The penalty for adultery committed with an unmarried woman is, according to the letter of the law, stoning to death of both adulterers. This is generally reduced to 100 lashes for each offender.

48. The judge shall first hear the evidence of the plaintiff if he has any, and render judgment accordingly. If no evidence is produced, the statement of the defendant shall be valid if confirmed by oath.

49. The punishment for adultery committed by slaves is fifty lashes.

50. In stoning adulterers both men and women shall be buried to the level of the chest and the stones shall be of medium size.

51. If a man has sexual intercourse with the slave of another man and she dies during childbirth, he shall pay a fine equal to her value.

52. If a married Mohammedan is killed by a Christian on account of adultery, the Christian shall be put to death; but if he is killed by another Mohammedan, the latter Mohammedan shall not be put to death.

53. If a plaintiff proves by evidence his ownership to a certain animal or tree, he shall be entitled to the future produce of that animal or tree.

54. If a person secures a lease on a certain piece of land for the purpose of cultivating it, he shall be bound by the terms of the lease whether he cultivates the land or not. The payment is generally made at harvest time.

55. If a slave runs away from his master and seeks refuge in the house of another person who knows the master of the slave and such person does not inform the master of the slave of the fact, such person shall be held responsible for the slave whether the slave stays with him or runs away again.

56. If a husband's absence is unusually long and no information can be obtained concerning him, his wife shall not marry another person unless she knows surely that he is dead or that she is divorced.

57. If a ship is in danger of foundering, the cargo should be cast overboard for the purpose of saving the passengers; but if a person cast overboard another person's property without order or permission, he shall be held responsible for the loss.

58. If a person under conditions similar to the preceding case orders another person to cast his property overboard and such other person casts his property overboard, no responsibility shall be attached to the order, unless express responsibility is stated in the order.

59. The estate of a deceased person shall be held as security for the payment of his debt, whether the debt be known to his heirs prior to or after the division of the estate.

60. The heir has the right to take possession of the estate if he pays the debt with his own money.

61. No punishment shall attach to accidental murder while hunting, whether the shooting be voluntary or forced.

62. If in such a case a fine is imposed, it shall be equally divided between the shooter and the person who ordered the shooting.

63. If a person shoots at a tree and kills a person, or shoots at a person and kills another, such murder shall be regarded as accidental murder.

64. If a person is ordered to climb a tree and he falls and dies, no blood money shall be paid by the person who gave the order, for such murder is not intentional.

65. If a person claims that a certain child was born of a female slave who conceived the child while in his possession, and confirms his claim by witness and by oath, his claim shall be valid and the child shall be regarded as a free child.

66. If a person claims that a certain slave had been his and was liberated, and his claim is confirmed by a witness and by oath, the slave shall be liberated again.

67. If two parties differ as to whether a certain property belongs to one of the parties or to both of them as partners, the statement of the party in charge of the property shall be valid if confirmed by oath.

68. If a person claims that the partnership has been dissolved and that a certain property has become his own, and his claim is contested by another party to the partnership, the statement of the latter party shall be valid if confirmed by oath.

69. If a person who is a party to a partnership buys a certain property and states that such property has been bought for the partnership, and his statement is contested by another party to the partnership, the statement of the purchasing party shall be valid if confirmed by oath.

70. God said, "The punishment for murder has been ordained for you, a free person for a free person, a slave for a slave, and a woman for a woman."

71. Such punishment shall not be executed without the authority of the *Imam* (Caliph).

72. A free person shall not be put to death for killing a slave, but all grades of slaves shall be subject to such punishment.

73. A free woman or a hermaphrodite shall be regarded as half a man in all considerations referring to person or injury.

74. If a free man divorces his wife three times or a slave divorces his wife twice, it shall not be lawful for either of them to marry the same woman again before she has been married to another person.

75. A nonpregnant woman shall mourn for her husband four months and ten days in full. A nonpregnant slave woman shall mourn for her husband two months and five days.

76. God said: "Your widows shall not be allowed to marry again before the lapse of four months and ten days. Pregnant widows shall not marry again before childbirth."

77. A divorced wife who is still in the period of suspension can inherit unless she has been divorced three times.

78. If a person throws sweepings or melon rinds on the road, he shall be responsible for the consequences.

79. If a person helps a child or insane person to poisoned food, he shall be punished.

80. Adults and sane persons shall be liable to punishment for murder; an intoxicated man is also liable to punishment for the same offense.

81. Intentional intoxication fixes the liability to punishment.

82. A defendant's plea on the ground that he was a child or insane at the time the murder or crime was committed, if reasonable and confirmed by oath, shall be valid.

A child is exempt from oath and from punishment.

83. If a person startles a minor standing near the edge of a roof (flat roof) and the minor falls and dies on that account, he shall pay a heavy fine.

84. If a minor is accidentally alarmed and falls from a roof and dies, the fine shall be light.

85. Injuries done to a slave are compensated for by the amount of the reduction affecting his value.

86. Similar to 85.

87. A slave is liable to fine for his crimes; his master shall either pay his fine for him or sell him to pay the fine, if the price exceeds the fine. If the fine exceeds the price, the slave shall be held personally responsible.

88. In case the plaintiff can not produce evidence or witness, the defendant shall take the oath. But if the defendant refuses to take oath, the plaintiff shall take oath and confirm the charge.

89. If the plaintiff claims that a certain adult person is his slave, and the defendant denies the charge, the defendant's statement shall be valid if confirmed by oath.

90. What is borrowed shall be returned in kind.

91. The will of a free adult shall be legitimate whether he be an immoral person or an infidel. The will of the insane, the intoxicated, the child, and the slave shall not be legitimate.

92. A will is null if the legatee dies before the testator; otherwise it is legitimate, and [the property] may be transmitted to the heirs of the legatee.

93. A will can not exclude legitimate heirs in the interest of one heir alone, except with the consent of the excluded heirs.

94. A person may recover his property directly if that can be done peaceably; otherwise he shall submit the case to the judge.

95. To be legal and binding the instructions and the trust of a principal must be authentic.

96. The agent must be capable of independent action and must be of age and sane. The agent shall not be a minor or insane.

97. In case of involuntary collision attended with the death of both parties, the respective heirs shall pay a light fine. (This is intended to secure aid for funeral expenses.)

98. If the collision is intentional, the fine shall be heavy. If only one party intended the collision, such party shall be punished on the merits of the case.

99. Minors and insane persons shall be judged like sane adult people. (This has reference to conditions similar to those of the two preceding cases.)

100. Male children, whether single or multiple, shall inherit all the estate of the parents.

101. A daughter shall inherit one-half.

102. Two or more daughters shall inherit two-thirds.

103. In case of multiplicity of children, males and females, the male child shall receive twice as much as the female child. The word of God said: "This command God gives you concerning your children, the male shall have the shares of two females."

104. God said: "Each man shall have half of the inheritance of his wife if she have neither a child nor a grandchild born of a son."

105. God said: "If a man's wife dies and leaves a child or a grandchild born of a son, he shall have a quarter of her inheritance."

106. God said: "If a husband dies without a child or a grandchild born of a son, the wife shall inherit a quarter of his estate."

107. God said: "If a husband dies and leaves a child or a grandchild born of a son, the wife shall inherit an eighth part of his estate."

108. The father, the son, and the husband can not be disinherited.

Transliteration of Articles I–VIII of the Luwaran

Bismi-l-Lāhi-r-Rakmani-r-Rahīm. Alhamdu lillāhi-l-lazi hadānā lil īmān wal islām, wa sállā-l-Lāhu ala sāyyidina Muhammad wa ala ālihi wa sahbihi ajmaīn.

ARTICLE I. Nīni īsa a húkum. Amayka adūn ūttuntūta a duwa a taw atawa i yā tīgu sakataw tamúkku inín yā manūm tīgu sakataw tamúkku inín, i yā būnārūn su ūppákakámal kanu tamuk sarta ūssápanin. Amáyka silandūn a duwa kataw ūppákakámal kanu tamuk sapan silan a duwa kataw; amayka ūssápa silan a duwa kataw bādūn sakanīlan su tamuk sapapagíssanūn. Amayka yā bu ūssápa su sakataw yā bu makákwa kanu tamuk su ūssápa salkanín su tamuk. Hatta wal-Lāhu ālam.

ARTICLE II. Nīni īsa a húkum. Anūnu sumū́mbay su īsa a taw kanu pūdin ūnggu dūn mādadag su sinūmbayan, báliwanan dūn kanu háraganin. Píssan rinámpas su sinū́mbayan ū kanu sinumū́mbay báliwanan dūn kanu háraganin ūnggu úmanan sa ūndáwi (ndáwi) kapatúta kaúmanun kanu tamuk ū nádadag. Hatta tamat al-Lāhu ālam.

ARTICLE III. Nīni īsa a húkum. Anūnu sumū́mbay su īsa ataw kanu pūdin sapáratī pātuk atawa tambūku ūnggu dūn matūpūd su pātukatawa mágbang atawa mādadag su tambūku, amayka yā katūpūdu pātuk atawa yā, kakkángu pātuk atawa yā kadádagu tambūku su átagu kina-sū́mbayninún ūnggu dikna táksir su sinumū́mbay dīli kabáliwanán su sinūmbayan. Amayka sin itímbas su Pātuk sa átaga īg atawa sin itímbas kanu sápun a tamlang ūndu dīli íktan su pātuk ūnggu dūn mādadag dīsadíli baliwanan dūnu sinumūmbay su sinūmbaynin. Tamat wal-Lāhu ālam.

ARTICLE IV. Nīni īsa a húkum. Anūnu malīdu duwa kataw i yā, tīgu sakataw su utángku nábayadángku dūn, i yā manūm tīgu sakataw dālaka makabáyad, amayka dāla sáksi nu duwa kataw būnārūn su panúntut sarta ūssápanin; amayka dīli ūssápa, i yā būnārūn su pudtuntūtan. Tamat wal-Lāhu ālam.

ARTICLE V. Nīni īsa a húkum. Anūnu itágunu īsa ataw su tamukin kanu pūdin, mávli nggū dūn kuwánu (kwánu) tinumágu su tamukin, i yā tīgu tinágwan kinwānūngka dūn atawa yā nin tīg nádadag, amayka dāla saksi nilan a duwa kataw yā būnár su tinágwan sarta ūssápanin. Tamat wal-Lāhu ālam.

ARTICLE VI. Nīni īsa a húkum. Anūnu su támuku taw a nadagag sáwap sa natágakin nggū dñ matūnu īsa a taw nggū nin dñ itábun, mawli nggū dñ maylaynu ũgkwān kanu támuk i yā nin tīg támuku inín a natagákkū, i yā tīgu nakatūn dikna nñngka tamuk dan dñ a tamuku; amayka adñ saksi kanu tamuk a natūn a dikna tamuk a dan dñ sabap sa támuk a natūn, yūli su tamuk sarta úmanan su ũndáwi kapatútín, īsa a dúdan atawa duwa a dúdan. Tamat wal-Lāhu ālam.

ARTICLE VII. Nīni īsa a húkum. Anūnu rinámpas su támuku taw wájib i yūlinu rinumámpas sarta úmanan sa kīira kīranu gúnanin kanu kínarámpasun. Tamat wal-Lāhu ālam.

ARTICLE VIII. Nīni īsa a húkum. Anūnu mánik su taw kanu walaynu salakáw sálkanin a dikna kiyúgu ũgkwān kanu walay ũnggū dñ malipungŭ't su gkwān kanu walay, amayka mágabi masála su minánik sa pāta dúdan. Tamat wal-Lāhu ālam.

Sulu Codes

The Principal Sulu Code

This code was prepared by Sultan Jamālu-l-A'lam and was used without any modification by Sultan Harūn. The present sultan's minister, Hajji Būtu Abdul-Bāqi, has made a new code which has just been proclaimed, but which has not yet met with general approval.

This copy of the old Sulu Code is the original which was used by the Sultan Jamālu-l-A'lam himself, and also by Sultan Harūn. It was written by Asmawil, the chief clerk and minister of Jamālu-l-A'lam. The manuscript was secured from Sheikh Mustafa, former minister to Sultan Harūn.

This code differs considerably from the former one used by Sultan Pulalun, the father of Jamālu-l-A'lam, which was more in conformity with the letter of the Quran, much more severe in its sentences; hence the change was welcomed.

Introduction

This book is a guide for the proper execution of the duties of office in accordance with the law and rules of the country. It is concurred in by all, and is promulgated with the general consent of all the *datus*, *panglima*, and subordinate officers of state.

This on Sunday, the fourth day of the month *Rabi' Akir*, in the year *Dal Akir*, which corresponds to the year 1295 A. H.

May it enhance the good and the prosperity of our country; and may God give blessing and peace to its author.

فصل في تنفيذ الولاية في الأحكام الشرعية
والعادات المتفق عليها مع موافقة وأمشاء من البر
والبحر فلعل الله ببركته ينزلنا الخيرات والسود
سقمه في فخره ابن سقمه في كوفيقه نيله أميك فكل
ممشاء سقمه في بنوه فند صت دي هاء دلو أحد
أفت أيدو في كيسيغن سقمه بولت ربيع الآخر
جمو هتنت دال آخر هتنت نكند و نكسب
نك كسيمن تكبره نكسنت ديت هتبعرو النبوية
الحمد لله على ما جاء في فضل الصلوة والزكاة لسلامة دين

First page of the Sulu Code made and used by Sultan Jamalul-A'lam

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فَصَلْ فَرَّ تَامَ سِيْخُ ٢ عُوْثَمَا كُوْهَانُوْ تَوُ
 مَدِيُوْ بُوْ كِيْغَتْنِ اُمِيْ هُبْتَعُ كَرِيْ مَسَاوِيْ
 كُوْ هَاوْ نَجْهَلُوْ سِدْفُوْ نَاوْ بُوْ وَيْ كَجْهَلُوْ
 عِيْغُ قِيْمَةُ نِيْ اُمْفُ عِيْشَتَا كُوْ نِيْ اُكْ لُتْ
 نِيْ هُشَاكْ سَدَا نِيْ هِسْبُوْ سُوْ نَتَا كُوْ نِيْ
 اُمْفُ عِيْشَتَا اِيْغَتْنِ اُمِيْ مَكْ تَاكُوْ هُوْ مَدِيُوْ
 نَاوْ تَرَكِيْ هُوْ نِيْ بُوْ عِيْشَتَا بِيْ كِيْ
 اَتُوْ بَاكُوْ كَهْ نَاوْ بُوْ هَاوْ بُوْ نِيْ عِيْشَتَا
 بِيْ اُفْسَقُوْ سِيْ هَقْرَانْ مَلِيْكَتْ مَسِيْ
 سِيْ نَاكْ سَقْنَةُ سِيْ دَلَا مِيْ عِيْشَتَا مَدَلْ
 هُنْتَا كُوْ سُوْ اِيْغَتْنِ نِيْ اُمْفُ عِيْشَتَا تَاكُوْ

Second page of the Sulu Code made and used by Sultan Jamalu-l-A'lam

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اَمْ مِّنْ كَذٰبٍ سَخِيْبٍ تَكُوْنُ فَاِلٰهٌ مِّنْهُ يَشْرُوْدُ
 سَخِيْبًا كَذٰبًا تَكُوْنُ نَاوُ بَعْدُ فَاِلٰهٌ مِّنْهُ مَوْدَاكُ وَفَاِلٰهٌ
 يُّسَبِّحُ بِحَمْدِ مَدِيْنَةٍ هُوَ تَشْمُسُ دِيْنِيَّةٌ يُّشْرُوْكَ
 تَكُوْنُ فَاِلٰهٌ مِّنْهُ يُّشْرُوْكَ لَكُوْنُ دِيْنِيَّةٌ نَّوْ بَعْدُ يُّسَبِّحُ
 يُّوْمًا وَفَاِلٰهٌ مَّاكَ سَفَاةٌ مَّوَدَّ لَا يُّسَبِّحُ فَاِلٰهٌ
 سَخِيْبًا مَدِيْنَةٍ تَكُوْنُ مَدِيْنَةٍ بَكُوْمُ مَدِيْنَةٍ
 سَلِيْدٌ يُّشْرُوْكَ كَرِيْمٌ هُوَ فَصْلٌ هَكَذَا
 يُّشْرُوْكَ سُلْطَانٌ يُّشْرُوْكَ مَتَاكَ تَشْمَعُ عَادَةُ نِيَّةٌ يُّوْمًا
 يُّشْرُوْكَ مَتَاكَ كَيْفَ تَشْمَعُ لَوْ يُّشْرُوْكَ كَسَاةً سَخِيْبًا
 تَكُوْنُ مَوْ قُشْمَةٍ دَكُوْنُ تَكُوْنُ كَوَلًا سَوَادُ
 هَيُوْنُ شَرِيْفٌ عُمَانُ بَعْدُ مَدِيْنَةٍ كَتَاوُنُ

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كُنُونُ تَجْمَعُ كَسَا اَنْ سَفَنَا تَكُو
اَمْوُ سَفَمَعْدُ تُو وَي كُو لال سُو دُ تُو بَعْسُ
شَرِيْفُ ابْنُ نَفَقَايِهِم اَدَقُ بَعْرُ مَبِ كَتَاوُنُ
كُنُونُ تَجْمَعُ كَسَا اَنْ سَفَنَا تَكُو اَمْوُ
تُفْمَعُ مَنَرِي تَا كُو لال سُو دُ تُو فَعْلَايِهِم
فَهُو بَعْرُ سَبِ اَمْبِ كَتَاوُنُ كُو هَا اَنْ تَجْمَعُ
تَجْمَعُ كَسَا اَنْ سَفَنَا تَكُو اَمْوُ سَبِ
تُفْمَعُ تَكُو فَيَقَالُ سَفْمَعُ فَعْلَايِهِم سُو دُ تُو فَعْلَايِهِم
فَكَاوِي مَلَبَه ابْنُ سَفْمَعُ كِبِ وَكَنْ سَفْمَعُ
سُلْطَانُ ابْنُ سَفْمَعُ كِبِ وَكَنْ نَفَقَايِهِم بَعْرُ اَمْبِ
كَتَاوُنُ كُو هَا اَنْ تَجْمَعُ كَسَا اَنْ سَفَنَا

Fourth page of the Sulu Code made and used by Sultan Jamalu-l-A'lam

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The Code

ARTICLE I

SECTION 1. Whoever shall abduct the child of a free man, and be found out, shall be fined twenty rolls or pieces (*gajahilaw*) of calico (*siddip*) or its value.⁵ The abductor shall return the child. A bail also is required which shall be equal in character and value to the abducted child.

SEC. 2. If the abductor of a free person is a slave, the master of the slave shall be examined to find out whether or not the abduction was committed with his knowledge and consent. In case he says that it was done without his knowledge and consent he must be sworn on the Quran. But, though he swears to that effect, he shall be held responsible for the return of the abducted person. Then if the actual abductor or abductors do not return the person or persons abducted, he or they shall be taken in payment thereof.

But if the master of the slave does not swear to that effect, he shall be held responsible personally for the abduction, and the case shall be treated as a case of abduction by a free man. The condition of the slave, whether privileged to live independently or not, does not affect this decision.

ARTICLE II

SECTION 1. (a) If property of any kind of the sultan is stolen, the thief shall be fined fifty pieces (*gajahilaw*) of calico.

(b) If property of datus with official titles or that of Twan Sarip Usman is stolen, the thief shall be fined thirty-five pieces of calico.

(c) If datus without official title or descendants of a Sarip or of Panglima Adaq are robbed, the thief shall be fined thirty pieces of calico.

(d) If ministers of state or Panglima Pihaq are robbed, the thief shall be fined twenty-five pieces of calico.

(e) If subordinate officers below the *panglima*⁶ or inland country *pandita* or the agents of the sultan or *panglima* are robbed, the thief shall be fined twenty pieces of calico.

(f) If children of subordinate rulers or chiefs are robbed, the thief shall be fined ten pieces of calico.

SEC. 2. (a) Theft of small articles (petit larceny) such as articles of diet, etc., of the value of one piece or half of a *kusta* or sarong, shall not be punished by fines, but the articles themselves shall be restored to the proper owner or owners, twofold, and the thief shall suffer fifty lashes; if the theft is repeated on two or three occasions, the offense shall then be regarded as a case of great theft.

(b) Theft of property of the value of one *kusta* and over is great theft (grand larceny) and shall be punished by fine as provided in section one: *Provided further*, That the articles of property stolen shall be restored to the owner or owners thereof, and the thief shall suffer one hundred lashes.

The fine shall be divided between the person robbed and the governor (the chief usually acts as judge), in the following manner: When no trial shall have been held, the robbed party shall receive seven parts and the governor three parts; if a trial is held, the fine shall be divided equally between the governor and the party robbed, whether he be a person of rank or otherwise.

(c) If the thief is a great or noted person or a governor, the fine shall be doubled.

(d) The same penalty shall be applied to all persons convicted of theft, whether male or female.

(e) In all cases of theft the stolen property shall be restored to the owner or owners thereof.

(f) The buyer of stolen property shall be regarded as a thief unless he proves the truth of the sale in the presence of the governor. If he fails to have the seller examined and brought before the governor, he shall be regarded as a partner in the theft.

ARTICLE III

SECTION 1. A false claim to property or debt shall be regarded as theft and shall be adjudicated accordingly.

ARTICLE IV

SECTION 1. Whoever exacts a claim by force without the permission or direction of the governor shall return whatever he exacts and forfeit his claim; and in case the claim is not substantiated he shall return the exacted object, and shall be fined two pieces of calico, to be equally divided between the governor and the person from whom he has exacted.

ARTICLE V

SECTION 1. Complainants who disagree upon the authority before which they should appear shall come to a *panglima*. In case they do not agree upon a *panglima* they must come to the sultan. But in case they agree, it is preferable that they should appear before the local governor or authority.

ARTICLE VI

SECTION 1. Whoever attempts to kill and kills a freeman shall be fined fifty pieces of calico as blood money, also twenty *gajahilaw* to be paid to the governor.

Whoever attempts to kill, but fails to kill, a freeman shall be fined twenty-five pieces of calico, to be paid to the attacked party, and ten *gajahilaw* to be paid to the governor.

Cases of unintentional and accidental killing and cases where the killing is done by an undetermined party shall be regarded alike. The blood money in each case shall be thirty *gajahilaw*.

NOTE.—In case a murder occurs in a neighborhood or village, and the actual murderer is unknown, the blood money is paid by the people of that neighborhood or village. They pay the full amount of blood money in case they do not swear to the effect that they did not commit the murder, but in case they swear to that effect they pay only half the fine.

ARTICLE VII

SECTION 1. The fine for marriage by abduction⁷ shall be six pieces of calico and the woman's dower⁸ shall be doubled. In case the dower is expressed in terms of slaves, the value of the slave shall be considered equal to four pieces or *gajahilaw*. The price of the bride, usually paid to the parents of the woman, in ounces of gold, called in Sulu *basing*, will be paid at the rate of one *gajahilaw* for a *basing*. The governor's share of the fine shall be four *gajahilaw*.

SEC. 2. The fine for elopement is four *gajahilaw* and the dower shall not be doubled. The slave's rate of exchange shall be four *gajahilaw* in case it is the custom of her family to receive actual slaves as a dower. The *basing*'s rate of exchange is one *gajahilaw*.

In case the slave dower is nominal, the slave's rate of exchange shall be three *gajahilaw* of calico, and the *basing* one piece of *kusta*, of low grade.

SEC. 3. In case of seduction admitted or disguised, marriage shall be concluded if the woman requests it. The man shall be fined two *gajahilaw* and the woman shall be treated as if she eloped. In cases of actual slave dowers, the slave's rate shall be four *gajahilaw* and the *basing* one *gajahilaw*. In cases of nominal slave dower, the slave's rate shall be three *gajahilaw* and the *basing*'s one piece of *kusta* of the low grade.

SEC. 4. Compulsory marriage is treated as marriage by abduction.

SEC. 5. (a) If adultery is committed with a *panglima*'s wife, the man shall be fined fifty *gajahilaw*, which can not be exchanged with anything except gold, silver, brass drums, or *lantaka*. If unable to pay, the man himself shall become the property of the *panglima*.⁹

(b) If adultery is committed with the wife of a *maharāja pahlawan*,¹⁰ the man shall be fined forty *gajahilaw*; which can not be exchanged except as in the previous case.

(c) If adultery is committed with the wife of a subordinate officer of state or a country *pandita*, or an agent of a governor, the man shall pay a fine of thirty *gajahilaw*, unexchangeable except as in section five (a).

(d) If adultery is committed with the wife of a *pandita* who is in the council or in the capital of the sultan, the man shall pay forty *gajahilaw*.

(e) If adultery is committed with any married woman, the man shall pay a fine of twenty *gajahilaw*, unexchangeable except as in section five (a).

(f) If a married woman commits adultery with her own consent, she becomes a slave to her husband; but if it is compulsory and without her consent, she will not be subjected to slavery; it is her duty then to tell her husband or his nearest relatives of the fact at the earliest opportunity—the next morning in case it occurs at night.

(g) If a male slave commits adultery with a free married woman, the slave becomes the property of the husband of that woman.

(h) If a free man commits adultery with a married female slave, the decision will be the same as if the crime had been committed with a free married woman.

(i) If a male slave commits adultery with a married female slave against her consent, the male slave becomes the property of the master of the married female slave; but if the crime is committed with her consent, she becomes the property of the master of her husband. Her master pays the fine due the governor.

(j) If a man commits adultery with the sister of his wife, his wife not being divorced, he will be judged as if he had committed adultery with the wife of another man.

All the subordinate officers¹¹ of state are hereby requested to exercise all care in administering justice to all who come to them for judgment and decision. They should all adhere to the seven articles of Mohammedan law and be deliberate in their just application.

In case any complainant appeals to one of you from the decision of another authority, do not accept the appellant's statement and render your decision unless you inquire well about the case from the previous authority who judged it. In case you find the decision of that authority wrong do not be ready and quick to blame him and criticise him, but try to act in conformity and union. In case you find his decision right, notwithstanding the appellant's complaints, bring both the appellant and the appellee to the *panglima*. If the *panglima* can not render a solution, he should bring them to the sultan, together with the authority from whose decision the appeal was made and the authority to whom the appeal was made.

If the governor or the authority to whom they appeal does not investigate or inquire about the case from the governor from whom they have appealed, his decision shall be null and void.

Any person who exercises the right to judge without authority from the sultan shall be fined one male slave.

All governors and their subjects ought to abide by and aid in carrying out all the articles of this code. Any person who does not fulfill this duty will have all the curses and the calamities of this world and the world to come that befall the man who swears falsely by the thirty parts of the Quran.

The New Sulu Code

The new code is a rearrangement of the old code with some changes and modifications. Its author is Hajji Būtu Abdu-l-Bāqi, the present prime minister or adviser of the Sultan Jamālu-l-Kirām the Second. It was issued in the latter part of 1902, but there has been so much objection to it on the part of many datus and chiefs that its general adoption seems impossible.

For a Sulu Hajji Būtu is a man of talent and understanding. He knows some Arabic and is probably the best Sulu scholar in the Archipelago.

This code greatly increases the fines exacted from the people, creates a treasury under the control of Hajji Būtu, and entitles the sultan to a share of the fines collected by the various datus and chiefs. The chiefs and the people look upon it as another form of unjust taxation. The opposition to its adoption is so strong and so bitter that nothing except force of arms can enforce its use. This is beyond the power of the present sultan.

Introduction

This book is a guide to the proper execution of the duties of office in accordance with the law and the rules of the country. It is concurred in by all and is promulgated with the general consent of all datus, ministers, *panglima*, and subordinate officers of state.

May God enhance by it the good and prosperity of our country.

This at 9 o'clock, Saturday, the 11th of the month *Jul Kaidat* of the year *B*, which corresponds to the year 1320 A. H.

This is to proclaim hereby the decrees of Padukka Mahasari Mawlāna Hajji Mohammed Jamālu-l-Kirām.

The subjects discussed in the following articles are, first, theft; second, murder; third, adultery; fourth, opprobrium; fifth, cases arising from unwitnessed purchase; sixth, false claims; seventh, unlawful or unauthorized exactions; eighth, debt; ninth, finds; tenth, unjust actions and decisions.

To every crime or misdemeanor which comes under these articles a fine is attached, differing according to the nature and the degree of the crime.

The Code

ARTICLE I

SECTION 1. The thief shall be fined seventy pesos, no matter what he steals. The fine shall always be seventy pesos irrespective of the person robbed, be he low or high in rank. The manner in which the fine shall be divided between the person robbed and the treasury differs.

(a) If the sultan's property is stolen, fifty pesos shall go to the sultan and twenty pesos to the treasury.

(b) If *datus* with official titles or *Twan Habīb Mūra* are robbed, forty pesos shall go to the person robbed and thirty pesos shall go to the treasury.

(c) If other *datus* or *Twan Hajji Būtu* or a descendant of a *Sarīp* are robbed, thirty-five pesos shall be paid to the person robbed and thirty-five to the treasury.

(d) If a minister of rank and official title or a *hajji* in the council of the sultan is robbed, thirty pesos shall be paid to the person robbed and forty pesos to the treasury.

(e) If a minister of rank without any official title or a *panglima pihaq*¹² or a *pandita* of the capital is robbed, twenty-five pesos shall be paid to the person robbed and forty-five to the treasury.

(f) If a subordinate officer of state or an agent of the sultan or a country *pandita* is robbed, twenty pesos shall be paid to the person robbed and fifty to the treasury.

(g) If a common person is robbed, fifteen pesos shall be paid to him and fifty-five to the treasury.

(h) The thefts referred to above include cattle, slaves, and every article of value.

SEC. 2. (a) If a free person is abducted, the fine shall be divided equally between his agnate and cognate heirs and the treasury.

(b) The abducted person should be returned. No one except the child or wife of the abductor, in case the abductor is a free man, can be substituted for the abducted person.

(c) If a free person is abducted by a slave, the master of the slave will be held responsible. If the abducted person is not returned, the abducting party, whether one person or many, will be taken instead.

(d) Small thefts below the value of one peso shall not be punishable by fines. The stolen object shall be returned twofold and the thief shall suffer fifty lashes.

ARTICLE II

SECTION 1. Murder is of four kinds—the first is intentional; the second, semiintentional; the third is accidental; the fourth, murder committed by a crowd.

SEC. 2. The fine for intentional murder shall be one hundred and five pesos; seventy for the agnate and cognate heirs of the murdered person and thirty-five for the treasury.

SEC. 3. An attempt to kill that does not result in death shall be punished by a fine of fifty-two pesos and a half; thirty-four pesos and a half shall be paid to the near relatives of the attacked or injured person and eighteen pesos shall be paid to the treasury.

SEC. 4. All cases of semiintentional and of accidental murder and cases of murder committed by a crowd shall be treated alike and fined equally. The fine shall be fifty-two pesos and a half; thirty-four pesos and a half shall be paid to the heirs of the murdered person and eighteen pesos to the treasury.

SEC. 5. If more than one person is killed, one hundred and five pesos shall be paid for each person killed as his blood money.

ARTICLE III

IMMORAL CONDUCT

SECTION 1. If a married woman commits adultery, she shall become the slave of her husband, and the guilty man shall pay a fine of one hundred pesos to the treasury, and in case he can not pay that sum he shall become a slave himself.

SEC. 2. If a married woman is simply guilty of immoral conduct, such as a kiss or an embrace with another man, and quickly reports the facts to her husband or his immediate relatives, her conduct will then be regarded as compulsory and she will not be liable to any punishment; but the man shall be liable to a fine of one hundred pesos, half of which shall be paid to the husband of the woman and the other half to the treasury.

SEC. 3. The abduction of a woman and cases of compulsory marriage shall be treated alike. The guilty man shall pay a fine of fifty pesos, out of which the treasury shall receive twenty pesos.

The woman's dower under such circumstances will be like that of her mother, and nothing else of the usual formalities shall be given to her people.

SEC. 4. In cases of seduction, admitted or inferred by the woman's request to marry the man, both man and woman shall be fined. The man shall pay a fine of fifty pesos, twenty of which shall be paid to the treasury, and the woman shall pay a fine of ten pesos to the treasury.

SEC. 5. Cases of elopement are considered as seduction, though there be no actual sexual intercourse between the man and the woman, because elopement occurs by the mutual consent of both parties.

SEC. 6. (a) In case a woman was regularly engaged and has lost her virginity, her dower and her *basingan* (the bridal price expressed in ounces of gold, and paid to the parents of the bride) and all other gifts shall be returned to her

husband. The expenses of the marriage, as of rice and meat, etc., shall not be paid back.

(b) But in case a woman who has lost her virginity is abducted or married by compulsion, the husband shall forfeit all claim to her dower or her *basingan*, etc.

SEC. 7. (a) If a male slave commits adultery with a married free woman, he becomes the slave of her husband.

(b) If a free man commits adultery with a married slave woman, he becomes the slave of her husband.

(c) If a male slave commits adultery with a married female slave, he becomes the property of her master.

(d) Cases of seduction or marriage between slaves, in which the woman is a maid, shall be treated the same as if they were free persons, except that the fines shall be half as much.

ARTICLE IV

OPPROBRIUM

SECTION 1. An adult who insults, abuses, defames, or slanders another adult, without any provocation or in a way that is inappropriate to the guilt committed, shall, if brought to trial, be fined ten pesos.

SEC. 2. Children who commit the aforesaid offense are not liable to trial.

SEC. 3. If in such cases an adult interferes with children and hurts a child, he shall compensate for the harm done.

SEC. 4. If in such cases an adult interferes with children and he hurts himself, he forfeits all claim for compensation.

SEC. 5. Women who commit the same offense shall, as in the case of children, not be liable to trial.

ARTICLE V

TRADE AND EXCHANGE

SECTION 1. Under this article is included the sale or exchange of slaves, cattle, arms, and all commodities.

SEC. 2. Whoever trades or exchanges without the knowledge and the authorization of the governor or his representative shall be fined seventy pesos. Each party to a sale or exchange, no matter what the rank of the person may be, shall pay the fine. All of the fine shall go to the treasury.

SEC. 3. To buy a stolen article is the same as to steal it.

ARTICLE VI

FALSE CLAIM

SECTION 1. A false charge, a false claim of debt, and a false complaint or suit shall be regarded as cases of robbery.

ARTICLE VII

UNLAWFUL EXACTIONS

SECTION 1. Whoever exacts or enforces a claim without either the permission or the advice of the governor shall forfeit that claim and all rights to a just trial of the case.

SEC. 2. If a person fails to respect or disobeys the advice or decision of the governor, he shall forfeit his right to the contested object.

SEC. 3. If a person is not sure of the exact amount of the claim he exacts, he shall forfeit his right, and shall return the amount exacted, and pay a fine of ten pesos, to be divided equally between the governor and the treasury.

SEC. 4. (a) If a fight starts unexpectedly between two parties and results in harm to a third noncombatant party, the combatants shall be held equally responsible for the harm.

(b) If the harm in the above case amounts to death, both combatants shall be liable for the blood money and the crime shall be regarded as intentional murder.

(c) If harm in the same case falls short of death, the combatants shall be liable for half the blood money and a fine of twenty pesos, to be paid to the treasury.

SEC. 5. Whoever attacks or invades the house of another without the permission of the governor and causes the death of another party shall be guilty of intentional murder and shall be liable for the blood money of the person killed and a fine of twenty pesos to the treasury.

SEC. 6. (a) If in the above case the attacking party is killed the blood money shall be forfeited.

(b) If the attacking party is only injured, he shall be liable to a fine of twenty pesos and shall pay for all that is lost or destroyed by reason of his attack.

(c) If the attacking party is multiple, each person shall be liable to a fine of twenty pesos, no matter how many they may be, but the damage done shall be compensated for by the leader or instigator of the attack alone.

ARTICLE VIII

DEBT

SECTION 1. The creditor shall ask and investigate about the debtor from those who know him and shall also inform the heirs of the debtor concerning the debt to be contracted, for in case the debt is contracted without the knowledge of the heirs and the debtor dies the heirs shall not be held responsible for the payment of the debt.

SEC. 2. In case the debtor dies and leaves property inheritance and wives and children, his debt shall be paid from that inheritance.

SEC. 3. A debt is void unless it is called for before the lapse of three years in case both debtor and creditor live in the same town. This shall not hold true in

case they live in two different towns, especially when they are separated by sea.

ARTICLE IX

FINDS

SECTION 1. The finder of any property, whether it be a horse or head of cattle, or a runaway slave, or any forgotten or fallen article, shall be rewarded, no matter who finds it.

SEC. 2. The customary reward for a find is at the rate of one cent for every dollar's worth of the find.

SEC. 3. In case the find is made within the limits of the town and belongs to a member of the same party, it shall be returned without any reward.

SEC. 4. Any person who makes a find shall make it known to the public, or bring it to the governor, or return it to its owner. If this is not done, and the find is not submitted to the governor within seven days, the case shall be regarded as robbery and the finder shall be fined seventy pesos, to be paid to the treasury. The same rule shall govern similar cases that occur out in the country or on the sea, except that the fine shall be equally divided between the governor and the treasury. The share that belongs to the treasury shall be intrusted to the governor for safe-keeping and future payment to the treasury. Any dishonesty committed in this matter will be a sin that results in loss both in this world and in the world to come.

ARTICLE X

All subordinate officers of state are hereby enjoined to exercise all care and justice in their judgments and to adhere with all devotion to the seven articles of Mohammedan law.

In case any complainant appeals to one of you from the decision of another authority, do not accept the appellant's statement and render your decision without inquiring well about the case from the previous authority who judged

it. In case you find the decision of that authority wrong, do not be ready and quick to blame and criticise him, but try to act in conformity and union.

In case you find his decision right, bring both the appellant and the appellee to the *panglima*. If the *panglima* does not furnish a solution, he shall bring them to the sultan, together with the authority from whose decision the appeal was made and the authority to whom the appeal was made.

If the authority to whom they appeal does not investigate or inquire from the authority from whom they have appealed, his decision shall be null and void.

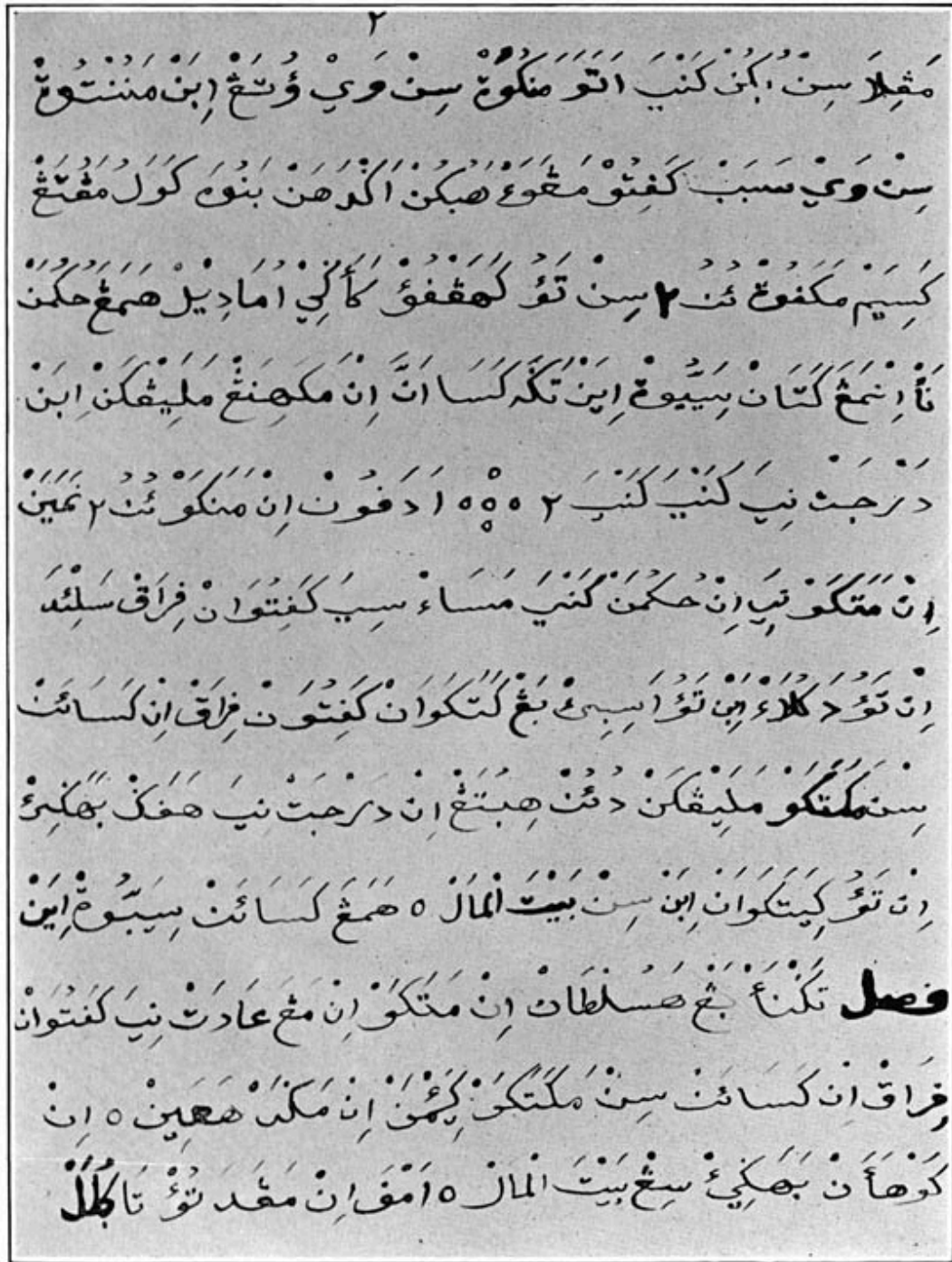
Any person who exercises the right to judge without authority from the sultan shall be fined one male unmarried slave.

All governors and their subjects shall abide by and aid in carrying out all the articles and provisions of this code. Any person who does not fulfill this duty will have all the curses and the calamities of this world and of the world to come that befall the man who swears falsely by the thirty parts of the Quran.

فصل في تنفيذ الوديات في الأحكام الشرع والعادة متبعة عليه مع
 الموافقة والمشاورت من البر والبر طعل الله ببركته يزيقنا الخير والسعادة
 سنمخ فعلم ابن سنمخ تكوفيفل بيله امي كي فك مشاورت سنمخ وزير
 الأعظم فند هزان ديوان سيورة ادلو سبتو لسك سيم ان جام
 هغغو تكس ان كي سبتن سن بولن ذالتعد جت هتص
 ب هغبتو غكس تك كوهان دين هجج النبوي محمد يث على
 صاحبها افضل الصلاة وازكى السلام فامس امنين ان كنوكي سن
 قد برنت سن فادك ماسري مولانا السلطان حج محمد جمال الكرام ادا
 باب چتا سنمخ حكمن كتاهك جائت كسر تكو كد و بنوء
 كتو مشوسبهاء هاتق اسوسن تو كوفت مونغ ٢ هتو
 سن مكسيفوز كلم مكيب منيب سن وي سقسى كؤنم

First page of the new Sulu Code in the Sulu dialect

Photo by Martin. (About one-half original size.)



Second page of the new Sulu Code in the Sulu dialect

Photo by Martin. (About one-half original size.)

¹ See Pls. I-IV. This manuscript is purely Magindanao in its style and is the oldest copy that I have seen. The main text is a little inferior to that of Datu Mastura's copy, but its marginal Arabic quotations

are more nearly correct and better written. The spelling and the grammar differ in many places, but the general sense of the text is mainly the same and does not warrant a separate translation.

2 This copy is in the possession of The Ethnological Survey. It is not reproduced here because of the expense of half-tone work—the only satisfactory method of reproduction in this case.

3 By a full uncle is meant a brother of one's father or mother who had both the same father and the same mother as one's own father or mother, as distinguished from a half uncle; so of a full aunt.

4 These fines are stated in Mexican currency. The peso was worth about 50 cents, United States currency.

5 The *gajahilaw* of *siddip* or piece of calico used is worth 1.50 pesos. It used to be the rule to demand the son of the abductor as bail for the return of the abducted free child or person.

6 The words *panglima* and *pandita* are used in a plural sense in this paragraph.

7 Abduction and elopement are regarded as crimes by the Sulus. The consent of the parents is always necessary for the marriage contract.

8 Dower is a provision for a widow on the death of the husband or on separation by divorce. It is generally paid or delivered or guaranteed before marriage.

9 Such slaves are generally killed by the authority against whom the offense was committed.

10 The *maharājah pahlawan* form the highest grade of *maharāja*, their rank being next below that of a *panglima*.

11 The term *tuku-pīpul*, which is applied in Sulu to all officers subordinate to *panglima*, means the small and large poles or pillars that support the house.

12 A *panglima pihaq* is one of the regularly chosen *panglima* of the Island of Sulu. The island used to be divided into five main divisions for administrative purposes, each of which used to have one *panglima* intrusted with its rule.

CHAPTER III

TWO SULU ORATIONS

The Sulu Oration for the Feast of Ramadan

(Written in the six semicircles)

PRAISE BE TO GOD. GLORY BE TO GOD. THERE IS NO GOD BUT
GOD. GOD IS ALMIGHTY

This oration was finished at noon, Friday, the 29th of Rabi-el-Akhir, in the
year 1321 Hejira.

In the name of God the Compassionate and Merciful. God is greatest. God is exalted. He is the Master of the World and the King of the Universe who rules with conquering power. Invisible to the eye, He is visible through His power and might. His is all the power and glory. His is all kindness and glory. He is the Almighty and the Ruler of All. He is everlasting and never dies. There is no God but He. Everything vanishes but the face of God. He is our Governor, and to Him all shall return. Before Him the learned men are humiliated; and the mighty humble themselves in His presence. All the prophets have spoken of His Lordship; and all the men of old have borne witness to His unity. All the men of learning have spoken of His eternal being. The wise men are unable to give an adequate description of His attributes. All that is in the earth and the heavens acknowledge His worship, and praise Him day and night without ceasing. God is greatest. He is the Lord of Lords and the Liberator of the World. He inspired the Book and commands the clouds. He overcomes all difficulties. He is the Cause of all Causes. He opens all doors and answers all who call Him. The Lord has said, "Call Me, and I shall answer you. All who despise My worship shall

enter hell.” God is almighty. All the heavens praise Him. The sandy deserts, the shades and all darkness, on the right and on the left, praise Him morning and night. There is nothing that does not sing His praises; but you can not understand their praises. Oh, how kind and forgiving He is! God is almighty. All the angels praise Him. The heavens, the earth, the mountains and hills, and all the birds praise Him. Praise and glory be to Thee, O Lord. Thou art the Lord of Indescribable Might and Honor. Peace be to the missionaries, and praise to God, the Lord of the Universe.

Here the orator shall repeat, “God is almighty,” seven times, then say the following:

God is Almighty. Praise be to God, the God of Kindness and of Grace, who ordained that the faithful should observe the month of fasting and gave them at the end thereof a feast, to all whether near or far, in token of His hospitality and generosity. Let us praise him always. He is righteous and all sacredness. The King of the Universe, land and sea. He ordained for the Mohammedans the two feasts, Ramadan and that of the Sacrifice. I bear witness that there is but one God, who is alone without a partner. He made the two feasts for the observance of all Mohammedans and the time of their celebration the greatest season of the year. I testify that Mohammed is His servant and apostle. God bless Mohammed at all times and through all ages. Oh, you people, fear God. May God have mercy on you fellow-Mohammedans and brothers in the faith. He has sent down to you this exalting and magnifying day as an expression of his generosity and hospitality. On this day He permits you to feast and forbids you to fast. Respectful observance of this day is pleasing to God and he who so observes it shall be greatly blessed. Charity on this day is highly acceptable. All you ask on this day shall be given you. On this day every call is answered. The prophet, God bless him, said, “On this day give charity for everyone, male and female, for every free man, for every slave, for the young, and for the old give a measure of flour or a measure of dates, a measure of rice, a measure of raisins, or a measure of barley, or whatever you eat on this day give as charity for all the people who are of your religion, of your nation and under your law. This will atone for your sins and all your misdeeds during the days of fasting.” The prophet, God bless him, has said, “He who fasts the month of Ramadan and withholds his

measure of charity on the feast day, his fasting shall not be acceptable to God, and he shall not reach heaven, but shall be stopped halfway between earth and heaven.” The prophet said, “He who fasts the month of Ramadan and follows it with six days of *Shawal* shall be regarded as if he had fasted forever.” May God make us successful and honest and enlist us in the ranks of His faithful followers. The best of all speech is the word of God, the All-knowing King, the Exalted and the Respected. God himself, whose word is perfect truth, said, “When the Quran is read, listen to it with attention, that ye may obtain mercy.”

When the Quran is read, ask refuge in God from the accursed devil. Jesus, the son of Mary, said, “God our Lord, send us a table from heaven that we may all, from the first to the last, feast thereon.” Be Thou generous to us for Thou art the best of all givers. Exalted is God the true King. There is no God but God, the Lord of the great throne. He who calls another god whose deity he can not prove shall render account to the Lord his God. Infidels can not succeed. Say my Lord, forgive me, and have mercy upon me. Thou art most merciful.

He who may deliver this oration shall here repeat the chapter of the salvation, after which he shall rise and read the following oration twice, and shall say, “God is Almighty,” seven times:

God is Almighty. Praise be to God, whose praise is exalted and glorious. I testify that there is no God but God, and that He is alone and has no partner. I bear witness that Mohammed is his servant and apostle, and the bright light of the world. May God bless Mohammed and all his people and descendants. Oh, ye people, depart from evil and draw near to good. Avoid excess and ye shall be happy. God and His angels bless the prophet. Ye who have faith bless Him also. Ye servants of God answer His call, and bless Him through whom God has directed you. O God, bless Mohammed and his descendants, for he has directed us to paradise and the roads that lead thereto. O God, bless Mohammed and his descendants because he warned us of the fire and its evils. O God, forgive his followers, and his caliphs Abu-Bakar, Omar, Othman, Ali, Talhat, Zubayr, Abdu-r-Rahmān the son of Awf, Sa’din Saidin, and Abi Ubaydat, because they are the princes of the

faithful and the best of all people. O God, forgive all other followers and friends of your prophet, and all who follow them. Be kind to them in the day of judgment. Give them and us mercy, for Thou art most merciful. O God, perpetuate the power and the victories and the conquests of him whom Thou hast chosen for the administration and good management of temporal affairs and religion; he who beseeches the intercession of the faithful prophet, our master, the Sultan Mohammed Pudhalun, the son of the late Sultan Mohammed Jamālu-l-Kirām, and the Sultan, the master, and the noble whom Thou hast chosen, Sultan Esh-Sharīfu-l-Hāshim, the kindled light of God; and our thoughtful and wise master the late Sultan Kamālu-d-Dīn; and protect the kind and generous late Sultan Alawa-d-Dīn, whose descendants became the kings of the Sulu country. Protect the champion of the Mohammedan religion and faith, the late Sultan Amīrul Umara, and the late Sultan Shāh Muizzu-l-Mutawādhi-īn. Protect the power of the generous and victorious late Sultan Shāh Nāsiru-d-Dīn the First. Defend the conqueror, the late Sultan Shāh Mohammed el Halīm; defend the intelligent late Sultan Batara Shāh; protect the noble late Sultan Muwalli el Wasīt Shāh; aid our great master, the excellent and powerful and the victorious on land and sea, the Sultan Shāh Nāsiru-d-Dīn the Last; aid the just and honorable and ascetic master, the late Sultan Shāh Salāhu-d-Dīn.

O God, support Islam and all Mohammedans. Fight against atheism and heresy and evil, the enemies of religion. Aid the ever-victorious Sultan Ali Shāh, the great and most superior sultan; sultan of the land and sea; and his heir, the late Sultan Shāh Shahābu-d-Dīn Mohammed, who was versed in law and all learning; and the late Sultan Shāh Shāfi-d-Dīn Mohammed Mustafa, the best of all things. Defend the late sultan and wise Governor Shāh Badaru-d-Dīn Mohammed, the victorious. May God perpetuate on earth his power, and his kingdom, and his justice.

O God, support the late Sultan Nasaru-d-Dīn, the victorious, the administrator, and the able supporter of our religion; the late Sultan Alīmu-d-Dīn the First, Mohammed, the prince of the faithful, the seeker of God's mercy; and the obedient to His will; the late Sultan Shāh Muizzi-d-Dīn Mohammed, the emigrant, the learned, the truthful, and the generous; the late patient Sultan Shāh Mohammed Isrāyil; the late Sultan Shāh Alīmu-d-

Dīn the Second, Mohammed, the peaceful, the chosen, and the powerful; the late Sultan Shāh Sharafu-d-Dīn Mohammed, the merciful, seeker of knowledge, and doer of good deeds; the late noble Sultan Shāh Alīmu-d-Dīn the Third, Mohammed; the late Sultan Shah Aliu-d-Dīn Mohammed, the great and victorious; the late Sultan Shāh Shakira-l-Lah Mohammed, conqueror of atheism and heresy, who was versed in Mohammedanism and monotheism; the late Sultan Shāh Jamālu-l-Kīram Mohammed, the kind and the wise and beloved of his people, master of truth and good, whom God alone prevented from making the pilgrimage to the House, and who was patient, lenient, and good, who encouraged good deeds and forbade evil, and who was good in his administration. May God perpetuate his kingdom, his power, his justice, and his kindness. May God forgive him and his forefathers and be good to all of them and give them a place in paradise. O God, aid all who befriend him; be the enemy of all his enemies; uphold all who uphold him; reject those who reject him; and vanquish those who may vanquish him. Be Thou his help and aid, and use him as a sword of vengeance against all offenders.

Thou art my God, the God of Truth and Lord of the Universe.

O God, set right our leaders and our nation, our judges, our rulers, our learned men, our lawgivers, our wise men, and our old men. Aid them in righteousness, and guide us. O God, destroy the enemies of our religion and unite the hearts of the faithful. Free the captives and pay the debts of the debtors. Relieve the distressed and forgive the living and the dead. God grant peace and safety to us and to the pilgrims and to the travelers on land and on sea who are of the people of Mohammed, for Thou art the most powerful, the best Master and the best Helper.

O God, drive away famine and distress, and disease, and iniquity, and oppression, and all calamities, and all evils outward and secret that may exist in our country especially and the countries of the Mohammedans in general, for Thou hast power over everything. Our Lord, forgive us and forgive our brothers who preceded us in the faith, and cast away from our hearts all jealousies and ill feeling toward the faithful. O God, our Lord,

Thou art kind and gracious and generous and compassionate and able to forgive.

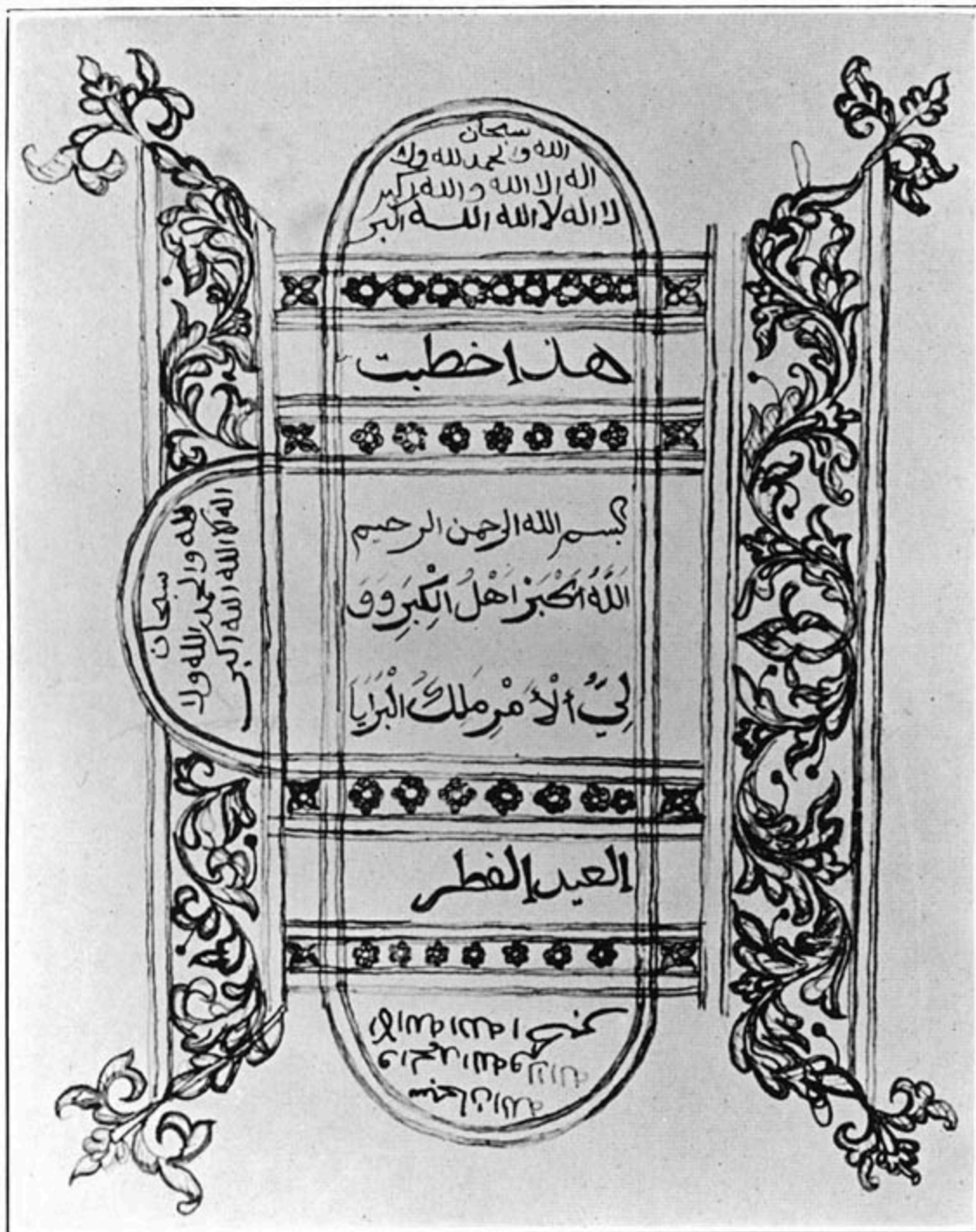
This was written by the poor and humble pilgrim Hajji Abdu-l-Bāqi, who hopes for forgiveness from the forgiving Lord and who was the son of Twan Hatib Jawari, a native of Sulug and follower of Shafi'i and Ash'ari.

May God forgive them and all Mohammedans and all the faithful. Amen.



First page of the Sulu oration for the feast of Ramadan

Photo by Martin. (About two-thirds original size.)



Second page of the Sulu oration for the feast of Ramadan

Photo by Martin. (About two-thirds original size.)

بِالْقُوَّةِ الْقَاهِرَةِ ۝ وَاحْتَجِبَ عَنِ الْإِبْصَارِ بِالْقُدْرَةِ الظَّاهِرَةِ
 ذِي الْعِزَّةِ وَالسُّلْطَانِ ۝ وَلَمَنْ وَالِإِحْسَانِ ۝ وَالْجُودِ وَالْإِمْنَانِ
 الَّذِي تَفَرَّدَ بِالْجَبْرُوتِ ۝ وَتَوَحَّدَ بِالْمَلَكُوتِ ۝ وَهُوَ حَيٌّ دَائِمٌ
 لَا يَمُوتُ ۝ لَا إِلَهَ إِلَّا هُوَ كُلُّ شَيْءٍ هَالِكٌ إِلَّا وَجْهَهُ لَهُ الْحُكْمُ
 وَإِلَيْهِ تُرْجَعُونَ ۝ اللَّهُ أَكْبَرُ تَصَاغَرَتْ لَهُ الْكِبَرَاءُ ۝ وَتَوَاضَعَتْ
 لَهُ الْعُلَمَاءُ ۝ وَتَذَلَّتْ لَهُ الْأَعْمَاءُ ۝ وَنَطَقَتْ بِرُيُوبِهِ
 الْأَنْبِيَاءُ ۝ وَشَهِدَتْ بِوَحْدَانِيَّتِهِ الْوَلِيَّاءُ ۝ وَفَاهَتْ بِأَرْبَابِ
 زُلَيْفَتِهِ الْفُلَهَاءُ ۝ وَعَيَّتْ عَنْ تَكْفِيهِ الْحُكَمَاءُ ۝ وَعَرَفَتْ
 بِعُودِيَّتِهِ مَنْ فِي الْأَرْضِ وَالسَّمَاءِ ۝ يَسْبَحُونَ اللَّيْلَ وَالنَّهَارَ
 لَا يَفْتُرُونَ ۝ اللَّهُ أَكْبَرُ رَبِّ الْأَرْيَابِ ۝ وَمَعَتِ الرِّقَابُ ۝ وَ
 مَنَزَلُ الْكِتَابِ ۝ وَمُسَخَّرُ السَّحَابِ ۝ وَمِزَلُ الصَّعَابِ ۝ وَ
 مَسَبُّ الْأَسْبَابِ وَمُفْتِحُ الْأَبْوَابِ ۝ وَمِنْ حَيْثُ مَا دَعِيَ بِهِ إِبْرَاهِيمُ
 وَقَالَ رَبِّكُمْ ادْعُونِي أَسْتَجِبْ لَكُمْ ۝ إِنَّ الَّذِينَ يَسْتَكْبِرُونَ عَنْ عِبَادَتِي

Third page of the Sulu oration for the feast of Ramadan

Photo by Martin. (About two-thirds original size.)

The Sulu Friday Oration

IN THE NAME OF GOD THE COMPASSIONATE AND MERCIFUL. TO GOD BE ALL THE PRAISE AND GLORY. THERE IS NO OTHER GOD BUT GOD

This I repeat a thousand times more than others. God is greater, far greater, than He is thought to be. I testify that there is no God but God alone. God is one, and only one. He has no partner. God is the owner of the heavens and the earth and all that is therein. God is owner of all.

I testify that Mohammed is His servant and His apostle, sent by Him to guide all people to the true religion, and that His religion may thereby be exalted above all others, though the unfaithful and the worshipers of many gods may reject it. We ask Thee, O God, to bless Mohammed and all his descendants and bestow on them all the blessings that can be named and all the blessings that can be forgotten. I advise ye, O people, and myself, servants of God, with fear of God which is the sign of faith and God's command to us all. Fellow-Mohammedans, the mercy of God be upon you. Friday is the chief of all days. The apostle of God said: "The day Friday is the chief of all days." It is greater than the day of Ramadan and the day of el-Adha and the day of Ashura.

Charity on Friday is preferable to all charity. Good deeds done on Friday are preferable to all good deeds, and evil done on Friday is the greatest evil that can be done. The noblest and best men have testified to its greatness over other days. It is the beauty of all days and years. It is a pilgrimage that the poor can make once every seven days. Its observance intercedes for the offender before the King of Unbounded Knowledge.

It has been told of the chosen prophet that he said: "God registers the name of the person who leaves out three successive Fridays, on a tablet on which he keeps the number of liars." The prophet said that he who leaves out three successive Fridays shall have written on his forehead when the day of judgment comes: "He has no hope of the mercy of God." May God bless us and give us all peace.

May it be that God has declared us among the successful and the faithful and enlisted us into the number of His good servants. The best of all utterances and constitutions are in the word of God, King of Unbounded Knowledge, possessor of glory and of all reverence. It is God the Highest who speaks and who is the truest of all speakers.

When the Quran is read you should listen attentively so that you may obtain mercy. He said, and His saying is most precious and full of wisdom, "When you read the Quran ask God's help against the accursed Satan." I take refuge in God the All Hearing and All Knowing from the accursed Satan. Oh, ye who have believed, when you hear the call for prayers on Friday go ye to hear God's word. Leave your business, for you have a greater good and benefit in this. May God bless the great Quran for us, and may he benefit us through its texts and the wise mention of His name. May He reward us all with mercy from the painful punishment.

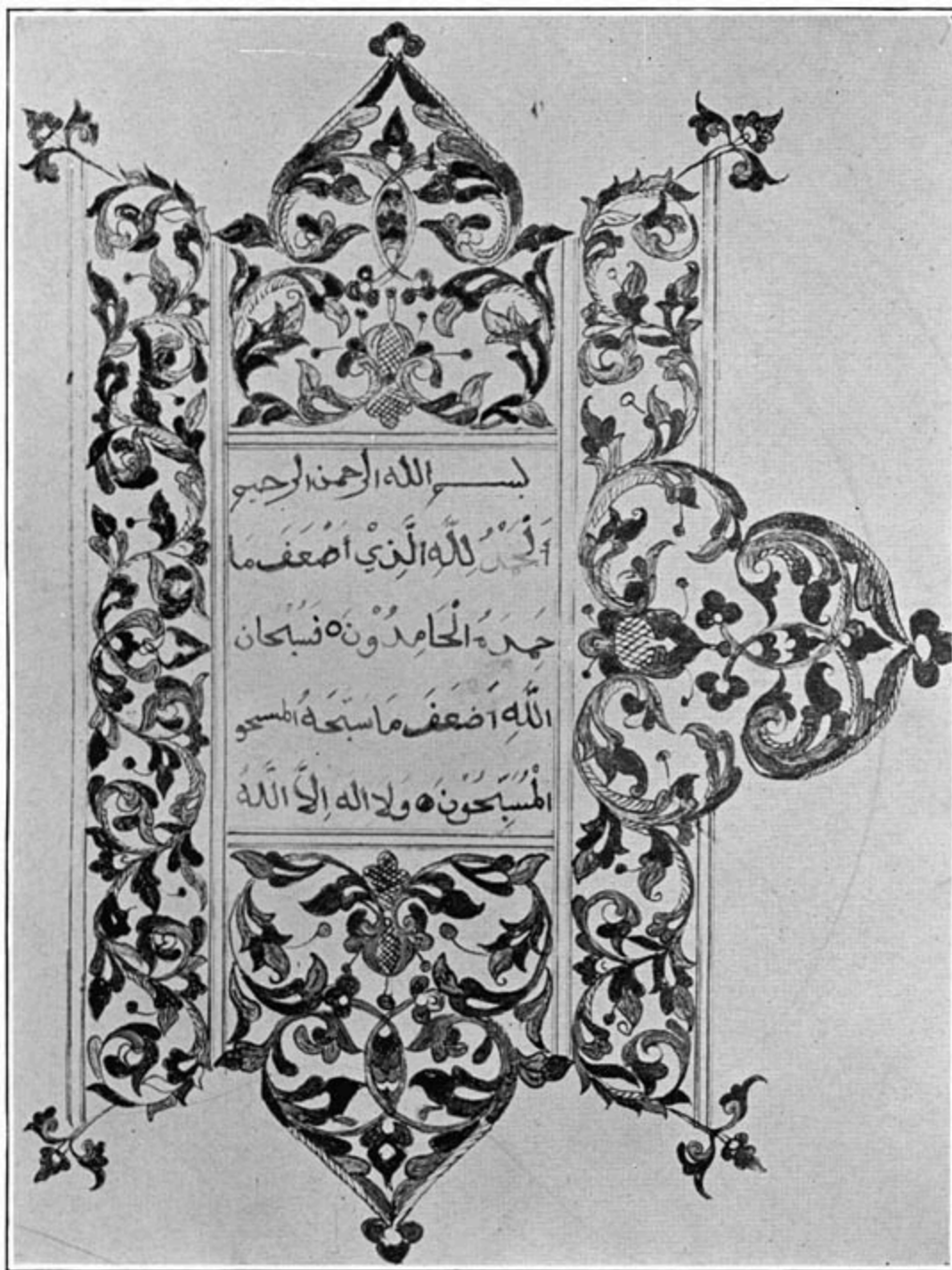
I command you, and myself, with what God demands for good obedience so that you may obey Him. And I prohibit you from doing evil and from disobedience as He prohibits you so that you may not disobey him. I pray for the plentiful reward of God for you and for myself, so that you may seek Him; and I ask the pardon and forgiveness of God for you and for myself and for all the faithful Mohammedans for He is gracious and forgiving.

Praise be to God. I praise and exalt God with all my strength and I testify that, there is no God but God. God is one and only one. God has no partner. He knows all and has good news for you all. I testify that Mohammed is the servant of God and His apostle, and a shining light to the world. We ask Thee, O God, to bless Mohammed and his people and descendants because he is our preacher and warner. To ye, Oh, people, I say, fear God, draw near to good, and depart from evil. God and all His angels bless the prophet. All ye believers bless him, too. Ye servants of God, obey the call of God, and bless him who directed you to God. We ask Thee, O God, to bless Mohammed and the people of Mohammed, for he directed us to paradise and to the roads that lead thereto. We ask Thee, O God, to bless Mohammed and the descendants of Mohammed, because he warned us of the fire and its destruction. We ask Thee, O God, to bless Mohammed because he

conquered the kings of the infidels and their empires. We ask Thee, O God, to forgive his followers and his successors, Abu Bakar, Omar, Othman, Ali, Abi Ubaydat, for they are the princes of the faithful and the best of all people. We ask Thee, O God, to forgive his two sons, Hasan and Husein, and his two noble uncles, Hamzat and Abbas; and mayst Thou be kind to all the emigrants and all the allies and followers till the judgment day, that we may share Thy mercy with them and through them, for Thou art most merciful. We ask Thee, O God, to perpetuate the power, the victory, and the valor of those whom Thou hast chosen for the good administration and good conduct of our religious and worldly affairs, chief among whom is he who begs the intercession of the faithful prophet, our master, the sultan and the pilgrim, Mohammed Jamālu-l-Kirām, the brother of the late sultan, the pilgrim Mohammed Badaru-d-Dīn the Second, both of whom made the pilgrimage to the house Al-Harām. May God give them a place with the faithful. They are the children of the late Sultan Mohammed Jamālu-l-A'lam. May God perpetuate his kingdom and his power, and his justice and kindness. And may God forgive his predecessors and his grandfathers and be good to them and give them a place in paradise. We ask Thee, O God, to be friendly with those who are friendly with him, and to antagonize them who are against him; give victory to those who aid him; reject those who reject him; vanquish those who disobey him, and be his help and helper and make him Thy sword of vengeance against the offender. O God, my God, Thou art Truth and the Lord of the Universe. O God, set right our leaders and our nation, our judges, our rulers, our learned men, our lawgivers, our wise men, and our old men. Aid them in righteousness, and guide us. O God, destroy the enemies of our religion and unite the hearts of the faithful. Free the captives and pay the debts of the debtors. Relieve the distressed and forgive the living and the dead. God grant peace and safety to us and to the pilgrims and to the travelers on land and on sea who are of the people of Mohammed, for Thou art the Most Powerful, the best Master and the best Helper.

O God, drive away famine and distress, and disease and iniquity, and oppression, and all calamities, and all evils outward and secret that may exist in our country especially and in the countries of the Mohammedans in general, for Thou hast power over everything. Our Lord, forgive us and

forgive our brothers who preceded us in the faith, and cast away from our hearts all jealousies and ill feeling toward the faithful. O God, our Lord, Thou art kind and gracious and generous and compassionate and able to forgive.



First page of the Sulu Friday oration

Photo by Martin. (About one-half original size.)



Second page of the Sulu Friday oration

Photo by Martin. (About one-half original size.)

وَأَشْهَدُ أَنَّ مُحَمَّدًا عَبْدُهُ وَرَسُولُهُ أَرْسَلَهُ بِالْهُدَى
 وَدِينِ الْحَقِّ لِيُظَاهِرَهُ عَلَى الدِّينِ كُلِّهِ وَلَوْ كَرِهَ الْمُشْرِكُونَ
 اللَّهُمَّ صَلِّ عَلَى مُحَمَّدٍ وَعَلَى آلِهِ وَاصْبَحْ بِهٖ كُلَّمَا ذَكَرَهُ الذَّا
 الذَّاكِرُونَ وَكُلَّمَا غَفَلَ عَنْ ذِكْرِهِ الْغَافِلُونَ وَسَلِّمْ وَسَلِّمْ
 كَثُرَ أَهْلُهَا النَّاسُ وَأَوْصِيَكُمْ عِبَادَ اللَّهِ وَإِلَٰهِي بِتَقْوَايَا
 اللَّهِ فَإِنَّهَا شَعَارُ الْمُؤْمِنِينَ وَوَصِيَّةُ اللَّهِ فِيكُمْ أَجْمَعِينَ
 مَعَاشِرَ الْمُسْلِمِينَ رَحِمَكُمُ اللَّهُ إِنَّ يَوْمَ الْجُمُعَةِ سَيِّدُ الْأَيَّامِ
 كَمَا قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ سَيِّدُ الْأَيَّامِ
 كُلِّهَا يَوْمُ الْجُمُعَةِ وَهُوَ أَعْظَمُ مِنْ يَوْمِ الْفِطْرِ وَيَوْمِ الْأَضْحَى
 ضَحْيٍ وَيَوْمِ عَاشُورَاءَ وَالصَّدَقَةُ فِيهِ أَفْضَلُ الصَّدَقَةِ
 وَالْعَمَلُ فِيهِ أَفْضَلُ الْعَمَلِ وَالْإِشْتِمُ فِيهِ أَكْبَرُ الْإِشْتِمِ

Third page of the Sulu Friday oration

Photo by Martin. (About one-half original size.)

DIAGRAMS

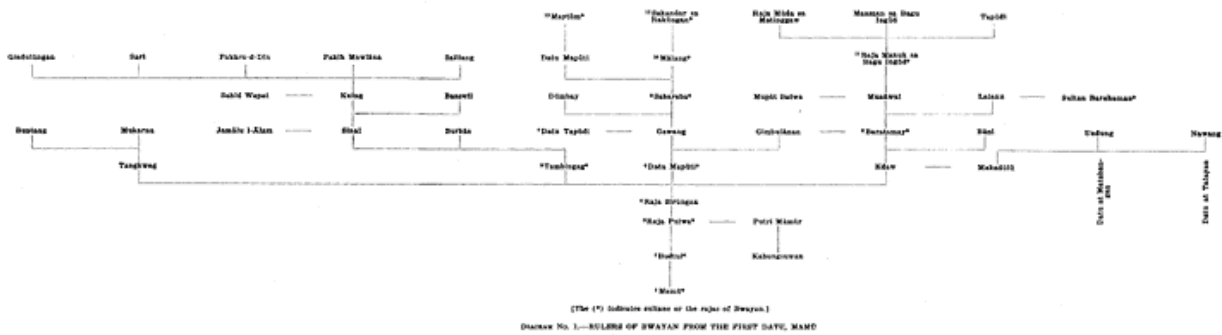


DIAGRAM NO. 1.—Rulers of Bwayan from the First Datu, Mamū

[The (*) indicates sultans or the rajahs of Bwayan]

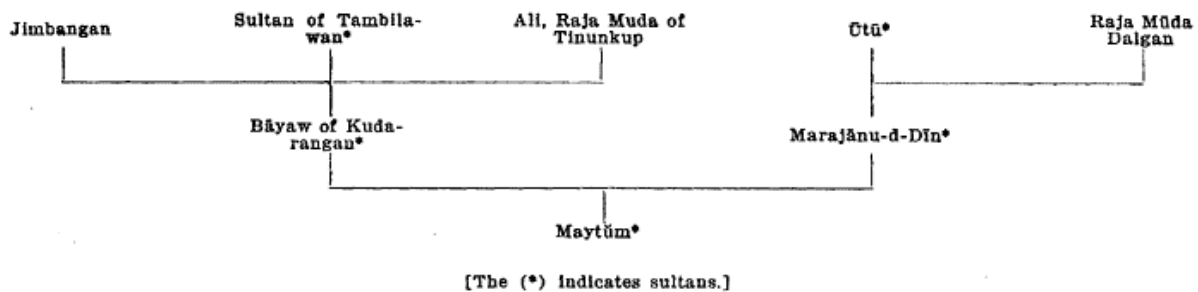


DIAGRAM NO. 2.—Rulers of Bwayan from Maytūm to the Present Time

[The (*) indicates sultans.]



DIAGRAM NO. 3.—Rulers of Magindanao from Kabunsuwan to Sultan Pakir Mawlanā Kamza

[The (*) indicates sultans.]

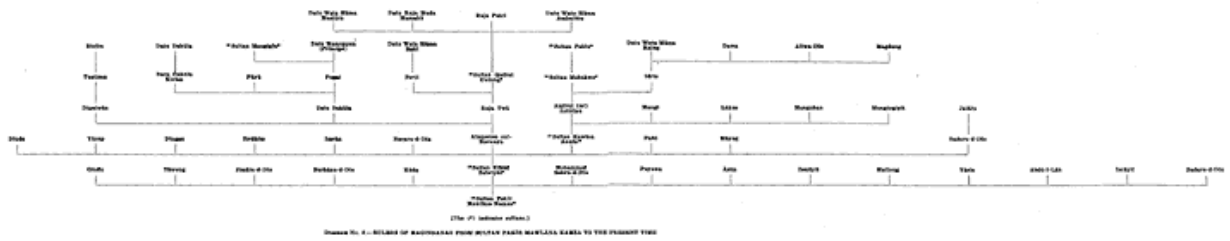


DIAGRAM NO. 4.—Rulers of Magindanao from Sultan Pakir Mawla Kamza to the Present Time

[The (*) indicates sultans.]

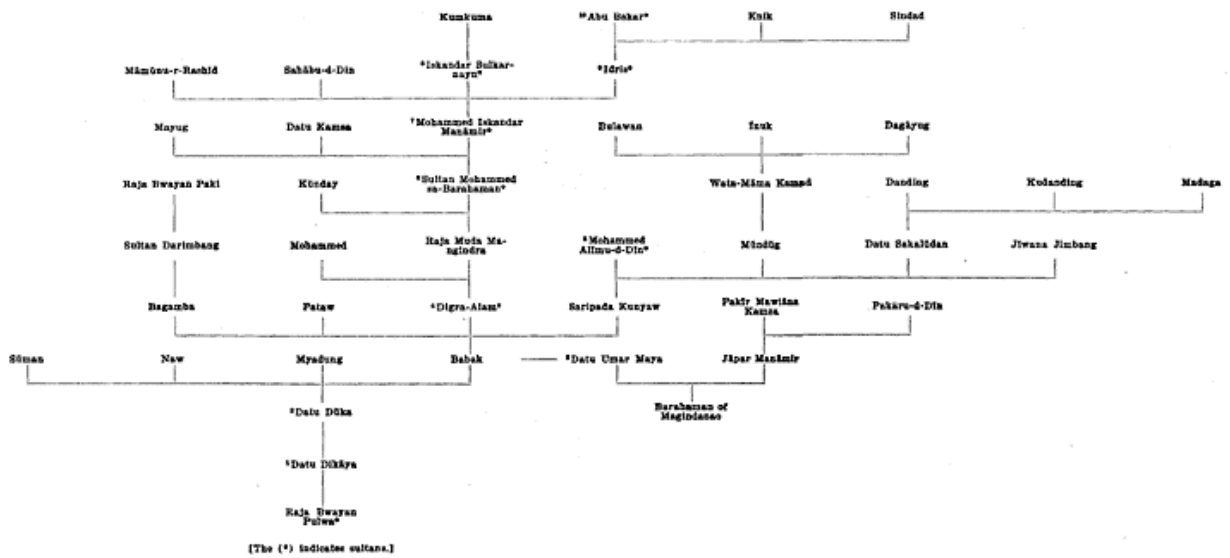


DIAGRAM NO. 5.—Rulers of Bagumbayan from Raja Bwayan

[The (*) indicates sultans.]

COLOPHON

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Najeeb M. Saleeby's *Studies in Moro History, Law, and Religion*, and *The History of Sulu*, often bound together in a single volume, provide an interesting insight in the traditions and history of the Southern-most Islands of the Philippines. Predominantly Muslim, this area was only nominally Spanish throughout much of its history, and its rulers were *de facto* independent until the middle of the nineteenth century.

Part I of this work starts with translations of some fanciful genealogies, which trace back the ancestry of the Sulu Sultans to Adam and Eve, and of course include the prophet Muhammad. This is followed by translations of laws, and a history of the islands in Part II. In a series of appendixes the text of a number of significant treaties are given, which, among others, show the historical roots of the Philippine claims on Sabah.

The author, Dr. Najeeb Mitry Saleeby, was born in 1870 in Souk al-Gharb, a town near Beirut, Lebanon. He studied at the American University in Beirut, and then at the Bellevue Medical School in the US. During the Spanish-American War, he served as a surgeon in the US Army. He came to the Philippines on the USS *Thomas* in October 1900, and was sent to Mindanao because of his knowledge of Arabic. Although himself a Christian Arab, he quickly befriended many Muslims, and respected the Muslims, their religion and culture. He decided to remain in the Philippines after his assignment. He died in Baguio on December 18, 1935.

This work first appeared as volume 4 of the Ethnological Survey publications, printed in Manila by the Bureau of Public Printing. Part I, *Studies in Moro History, Law, and Religion*, appeared in 1905; part II, *The History of Sulu*, followed in 1908.

Scans of this work are available from the Internet Archive (copy [1](#), [2](#), [3](#), [4](#)).

A reprint from by the Filipiana Book Guild, 1976 with new introduction and some additional materials, is also available (copy [1](#)).

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Corrections

The following corrections have been applied to the text:

Page	Source	Correction
32	Sumánnap	Sumannap
51	en	an
59	relaitons	relations
64	Lawaran	Luwaran
79	.	[Deleted]

*** END OF THE PROJECT GUTENBERG EBOOK STUDIES IN
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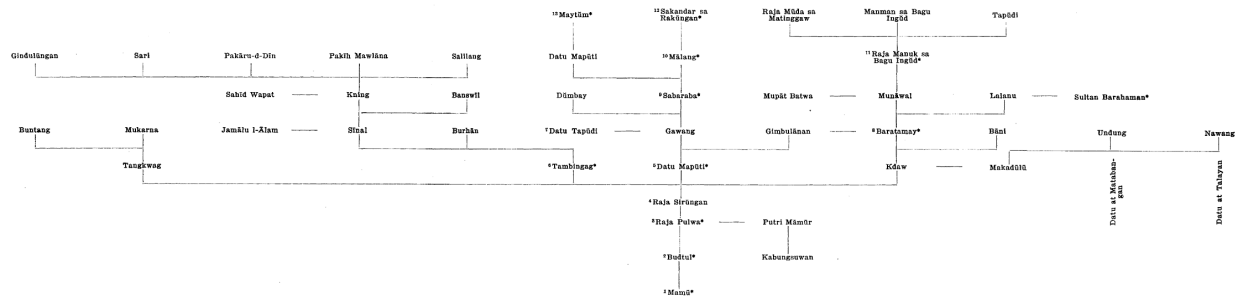
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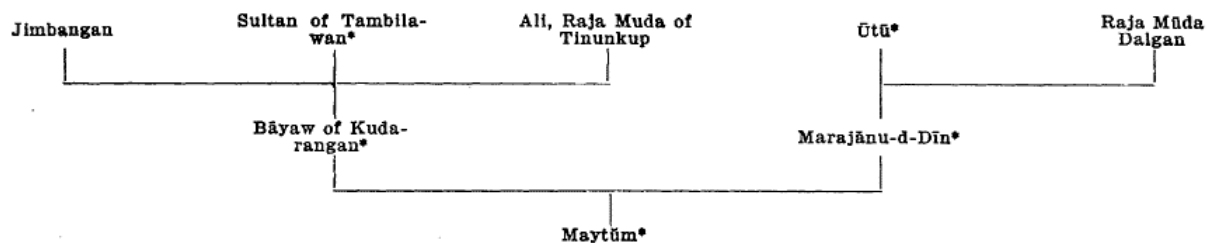
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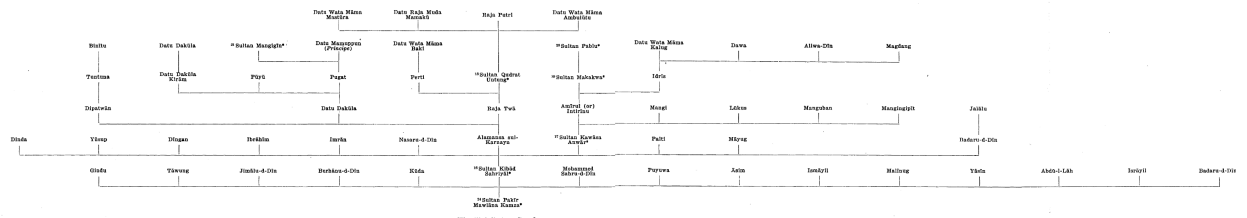
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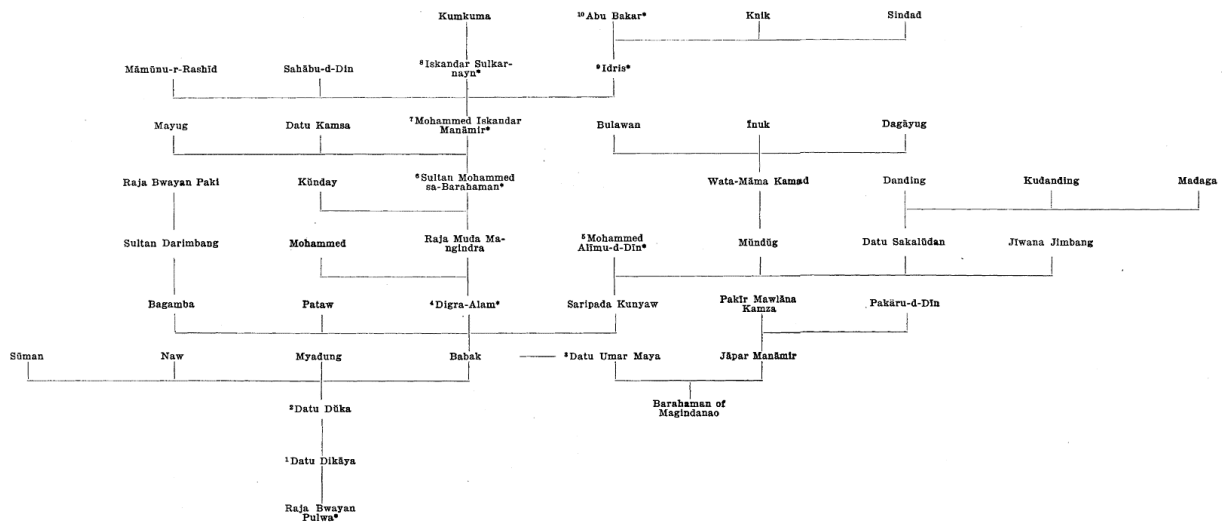
DIAGRAM No. 2.—RULERS OF BWAYAN FROM MAYTÜM TO THE PRESENT TIME

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(The (*) indicates coffin.)
 Diagram No. 4.—RULERS OF MAWDDANAW FROM DULAN PAITH KAWLENA KAMEA TO THE PRESENT TIME

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DIAGRAM No. 5.—RULERS OF BAGUMBAYAN FROM RAJA BWAYAN

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